TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, JULY 13, 2022
6:00 PM
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AGENDA HEARING

Public has three minutes to ask questions or comment on any agenda item.

REGULAR MEETING

1. **Call to order**

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

4. **Approval of Minutes from Previous Meeting**: **pg. 3 – 7**
   Minutes of June 8, 2022

5. **Presentations:**

   a) CEMA Hurricane Presentation
   b) Finance Report: **pg. 8-13**
   c) Blessing of the Fleet

6. **Public Hearing for Planning and Zoning** **pg. 14 – 40**

   a) **Petitioner:** Lisa & Mark Galipeau
   Request: Side and Rear Setback Variance
   Parcel Involved: 3-0004-05-003
   Location: 2610 River Drive
   P & Z voted to approve

   b) **Petitioner**: Laurie deVegter & Ansley Williams
   Request: Setback Variance
   Parcel Involved: 3-0004-02-006A
   Location: 2618 Mechanics Ave.
   P & Z voted to approve

7. **Consent Agenda:**

   a) Approval of Outdoor Permit for American Legion Post 184 and Waiver **pg. 41 - 46**
   b) Approval of the T-SPLOST Agreement (change to allow collection more funding) **pg. 46 – 60**

c) Approval of the Senior Citizens Agreement (change to include grant funding) **pg. 61**
d) Film Production Permit (modified rates keeping with other municipalities) **pg. 62 – 71**
e) Approve Intergovernmental Agreement with Chatham County for County Pricing **pg. 72 – 73**
f) Approval of the GMC Contract for MS4 Stormwater Management Plan Update **pg. 74 - 82**
g) Approval of the GMC Contract for MS4 Stormwater Compliance **pg. 83 – 91**

8. **Discussion Agenda:**

a) Review and Award Disaster Hauler RFP **pg. 92**
   1. KDF Enterprise LLC
   2. TFR Enterprising, Inc.
   3. CERES Environmental
   4. DRC Emergency Services
   5. Crowder Gulf
   6. Custom Tree Care Disaster Response

b) Milage Rate Options Discussion **pg. 93 – 94**

9. **Town Administrator Report:** Town Administrator, Bob Milie **pg 95 – 97**

10. **Department Report –** Written Reports Submitted

by: **Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police** **pg 98 – 99**
Fire –Fire Chief, Andrew Bateman **pg 100 - 102**
Public Works Department – Oscar Crosby, Public Works Manager **pg 103 -104**

11. **Legal Report – Town Attorney**
    a) Second Reading of Planning & Zoning Meeting Change

12. **Mayor and Council –**
    a) Water & Sewer Committee – Council Member Drohan **pg 90 – 97**
    b) Thunderbolt Museum Report

13. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

14. **Adjournment:**

TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, JUNE 8, 2022
6:00 PM

AGENDA HEARING

Beth Goette, 3006 Leonard St., asked why the Council is changing the meeting schedule for Planning and Zoning without notifying the P & Z Board. Town Attorney explained this is the start of the process. The ordinance changes will be to allow for more flexibility to hold meetings to shorten the time frame for citizens before final approval from Council.

Jan Yarbrough, 24 Bonaventure Rd, asked about the new meeting procedure, if it is recorded. Mayor Williams explained it is being recorded.

Nicole Register, 3407 Bannon Dr, stated she is against Mr. Johnson's petition to rezone his property to River Drive District. The area is residential and should stay residential.

Geneve Golden, 3126 Gilbert St., asked for explanation on all the acronyms being used on the agenda. Town Administrator went through the agenda and stated what each acronym meant.

Mayor Williams thanked all those who attended the Blessing of the Fleet. He thanked staff for their hard work. He thanked Council for their support, all the volunteers and the museum for their help. He stated an estimated 3,000 people attended. They are looking to expand more for next year, i.e. if possible a beauty contest and street dancing.

Mayor Williams closed the public hearing at 6:30 pm

REGULAR MEETING

1. **Call to order**

   Mayor Williams opened the business meeting at 6:32 pm.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

   Those in attendance was Mayor Dana Williams and Council Members: Brooks Barbaree, James Lavin, Ed Drohan, Larry Ward, David Crenshaw and Bethany Skipper-Greer. Staff in attendance was Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Clerk of Council, Deatre Denion, Fire Chief, Andrew Bateman, Police Chief, Sean Clayton; Accounts Payable/Utility Manager; Katina Spaulding and Public Works Manager, Oscar Crosby.

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3. **Approval of Meeting Agenda**
Mayor Williams asked for a motion and a second to approve the agenda. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting**:
Minutes of May 11, 2022

Mayor Williams asked for a motion to approve the May 11, 2022 meeting minutes. **Council Member Ward made the motion with a second from Council Member Skipper-Greer. The motion passed unanimously.**

5. **Presentations:**

a) **Finance Report/Audit Update:**

Shannon Brett – – The final draft of the audit was received, and Attorney Barrow has issued the legal letter. June 30th is when the audit has to be submitted to DCA. The audit had no findings.

6. **Public Hearing for Planning and Zoning**

a) **Petitioner:** Jason T. Johnson
Request: Rezone from R-1 to RDD
Parcel Involved: 3-0006-17-001
Location: 3403 Bannon Drive
P & Z voted to deny

The petitioner wants to rezone their property from R-1 to RDD. Planning & Zoning denied the request.

Nicole Register, 3407 Bannon Dr., opposed the rezoning.

Jan Yarbourgh, 24 Bonaventure Ave, stated she was a P & Z member at the time of the creating of River Drive District. There was no intention to have the other side of Bannon Dr be commercial.

Maury Gallaher, 25 Bonaventure Ave, asked about short term rental. Town Clerk Denion explained short term rental has no bearing on the zoning.

Council Member Drohan made a motion to deny the petition and uphold P & Z recommendation. Council Member Lavin seconded the motion. The motion passed unanimously.

b) **Petitioner:** Release Properties
Request: Rezone from R-2 to P-B
Parcel Involved: 3-0003-01-112
Location: 2100 Roger Lacey Ave
P & Z voted to approve

This petition is rectifying a clerical error. This parcel was mistakenly assigned R-2 when it should have been P-B zoning. **Council Member Drohan made a motion to approve the request of the rezoning of 2100 Roger Lacy. Council Member Ward seconded the motion. The motion passed unanimously.**

7. **Consent Agenda:**

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a) **Approval of Renewal of Home Occupation Permit for Masonry Masters, 302 Laurel Oak Lane**

b) **Approval of Department Head Salaries**

Mayor Williams asked for a motion to approve the Consent Agenda. **Council Member Drohan made a motion to approve the consent agenda with a second from Council Member Lavin. The motion passed unanimously.**

8. **Discussion Agenda**

a) **Discussion of Tuberson Road Closure**

Town Administrator Milie stated there are pictures before them of what the Town could do with Tuberson. This started with an issue with Bannon Dr. First were temporary speed bumps, then Tuberson was closed. By closing Tuberson there was an impact to private properties. The Tuberson blockade has been removed. Police will be stepping up enforcement on trucks. Mayor Williams stated before he came into office he was working on this issue. Town Administrator Milie and Mayor Williams have invested a huge amount time into this issue. It is a public road and we can't prevent traffic from coming through. The Town can't put Police and speed bumps on every street. Council Member Drohan stated the issues brought forth are to stop trucks from coming through or driving on private property. The recommendation from Council Member Drohan is an island with enough clearance to allow cars through but not trucks. There also needs to be a truck route created. There are more roads that are more applicable to having trucks. Council Member Drohan asked Town Attorney Barrow about using public money to improve private property. Town Attorney Barrow stated you cannot on private property but a right of way you may. Town Administrator Milie recommended to wait until the next meeting. The barricade just came down and the Town can try a temporary island. Council Member Drohan stated he agreed with the recommendation but does want Town Administrator Milie to start working on a truck route**. Council Member Crenshaw made a motion to place a temporary sign and island on Tuberson for 30 to 60 days. Council Member Drohan seconded the motion. The motion passed unanimously.**

b) **Approval of HVAC Contractor for Fire Department**

Town Administrator Milie stated three bids were submitted. $8,190 from Gordon; $14,000 from JT and $10, 770 from Edge. Town Administrator Milie recommended accepting the low bid from Gordon. **Council Member Ward made a motion to accept the recommendation with a second Council Member Crenshaw. The motion passed unanimously.**

c) **Approval of HVAC Contractor for Server Room**

Town Administrator Milie stated this is one of Council's 2022 goals. There were three bids for a split unit to allow the door to the server room to be closed. Edge: $5,326.35; Gordon's: $7,337 and JT's: $11,000. Town Administrator Milie made the recommendation to not go with low bid. Gordon's was the only bid who proposed a cooling system design for server rooms. This type of system will not turn off when it is cooler outside. **Council Member Ward made a motion to accept Gordon in hopes of negotiation for a lower price due to awarding them on both projects. Council Member Skipper-Greer seconded the motion. The motion passed unanimously.**

d) **Approval of Retroactive 2021 Police Dept. Seizure Budget**

Town Administrator Milie explained this was a recommendation from the 2020 audit. This is where if CNT seizes more than their operational budget and the overage is shared among the other municipalities. This does not usually happen. **Council Member Crenshaw made a motion to accept as rendered and was seconded by Council Member Ward.** Council Member Drohan asked what is the funding utilized

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for? Town Administrator Milie explained it can only be used for Police. **The motion passed unanimously.**

e) **Approval of 2022 Police Dept. Seizure Budget**

Town Administrator Milie stated the 2022 Seizure Budget is the cost of a fingerprint scanner. Currently, Police have to use one from Savannah. Council Member **Crenshaw made the motion to approve with a second from Council Member Skipper-Greer. The motion passed unanimously.**

f) **Approval of SPLOST Budget**

Town Administrator Milie stated the Town is not required to have a SPLOST Budget but the auditors want a budget. If Council decides to move on Shell Road, a budget amended will be needed. **Council Member Ward made a motion to approve the SPLOST budget with a seconded by Council Member Crenshaw. The motion passed unanimously.**

g) **Allocation of 2021 & 2022 ARPA Funding**

American Rescue Plan Act is COVID funding. None of the money has been spent. The Town has already received $489,000 and will receive another $489,000. Town Administrator Milie recommended this funding be used as salaries until it is all expended. Council Member Drohan stated we are just shifting the line on the budget but wanted to know if there would be any problems to use with SPLOST funding. Town Administrator Milie stated there would not be. Council Member Skipper-Greer asked if legal had approved this. Town Administrator Milie explained he had not run it through with Town Attorney Barrow since Georgia Municipal Association recommended them to use the funding this way. **Council Member Crenshaw made the motion to approve as presented with Council Member Ward seconded the motion. The motion passed unanimously.**

9. **Town Administrator Report:** Town Administrator, Bob Milie

Town Administrator Milie stated he has been here for a year now and to describe the year, it is like the Blessing of the Fleet. Council, citizens and staff were all in. In July there will be a follow up from the coordinator.

There are plans to have two hurricane workshops for the citizens of Thunderbolt.

Thunderbolt Safe and Tidy monthly clean up went well. There was one truck full of litter. Mayor Williams stated he was working in his yard and there was a couple picking up trash. They told him with all the beautifications happening in the Town they wanted to do their part. Council Member Crenshaw stated he drove by the school and saw Town Administrator Milie picking up trash.

10. **Department Report –** Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police

The Police Department passed their audits. There have been some recent spikes in entering auto. Police did not give up on it and found the culprit. The speed cameras on Whatley are in the final permitting stage. The only change is the school zone time to go with the new school bell times. The monitoring will be from 6:30 am to 3:30 pm after feed back from other communities. Mayor Williams asked will it run when school is out. Chief Clayton stated not on weekends and during the summer. Council Member Drohan asked if it will be collecting data but not ticketing. Chief Clayton explained it will. Council Member Ward asked if they see more speeding will they change the hours. Chief Clayton stated it can be tweaked. Chief Clayton stated the time comes from the traffic engineers.

Fire –Fire Chief, Andrew Bateman

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Mayor Williams stated the Fire Chief left the hospital and came straight to work the Blessing of the Fleet. Town Administrator Milie explained Jasmin and Taylor Roads are by subscription for Fire and Rescue. He explained with SSU being closed, it is not as effective service. The County and Savannah have pitched their services to the residents.

Public Works Department – Oscar Crosby, Public Works Manager

Town Administrator Milie stated the most feedback was about Public Works and their attention to detail. Public Works helped a vendor who had to breakdown quickly and get to a sick child. Council Member Barbaree stated he was out the next day after the event and the area was so clean.

11. **Legal Report – Town Attorney**
    a) First Reading of Planning & Zoning Meeting Change

Town Attorney Barrow explained this is a first reading to proposal a change to the zoning ordinance to allow more meeting times. Change wording to "may meet more often".

12. **Mayor and Council –**
    a) Water & Sewer Committee – Council Member Drohan

Town Administrator Milie spoke on Shell Road. Staff are now in the process of modifying the three LMEGS. There needs to slip lining of the sewer and water line replacement. P & Z has asked staff to come back with detail data on the area.

Council Member Drohan participated in an electrification meeting. The idea is to replace gas vehicles with electrical vehicles. Several municipalities demonstrated with their police dept to save money using electrical vehicles. There were other conversations for renewable options in the town. Thunderbolt's Citizens Conservation Committee has 16 people. They had their first zoom meeting. The committee talked about being a resource for the Town. The Town needs to start a discussion to consider sewage limits. Due to the cost of property, there are developers wanting more density. As a Council we need to be aware of these issues and aware of the prices.

Ana Maria Thomas gave an update on museum. They made $2,400 at the Blessing of the Fleet. They have been able to recruit new memberships. June 25th is the next bizarre. There is plans for a spaghetti dinner in September.

Council Member Skipper-Greer stated at the last CMA meeting there was a discussion on recreation centers and talking with the School Board. Mayor Williams stated he has been working on that for six months.

Council Member Skipper-Greer asked about movie and concert planning. Town Administrator Milie stated there will be a July kids' movie night and in August there will be a small concert.

Mayor Williams asked for a motion to move into Executive Session. **Council Member Ward made the motion with a second by Council Member Drohan. The motion passed unanimously.**

13. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

Mayor Williams asked for a motion to move back into regular session. The motion was made by Council Member Crenshaw with a second from Council Member Ward. The motion passed unanimously.

Mayor Williams asked for a motion to adjourn. Council Member Crenshaw made the motion with a second from Council Member Ward.

14. **Adjournment:**

The meeting was adjourned at 8:32 pm

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Town of Thunderbolt
June 30, 2022

	Line Item	BUDGET FY 2022	Amendment	Final Admendment
REVENUES				
Taxes	**031**	2,218,000	-	-
Licenses and Permits	**032**	101,500	-	-
Intergovernmental Revenue	**033**	30,000	-	-
Charges for Services	**034**	61,358	-	-
Fines & Forfeitures	**035**	163,300	-	-
Miscellaneous Revenue	**038**	38,000	-	-
Water/Sewer	**400**	1,320,000	-	-
Solidwaste	**540**	282,000	-	-
Other Income	**038**	-	-	-
SPLOST	**320**	716,153	-	-
TOTAL REVENUES		**4,930,311**	**-**	**-**
EXPENSES				
Mayor And Council	**130**	32,953	-	-
General Administrative	**150**	319,064	-	-
General Govt Bldgs & Plant	**156**	64,000	-	-
Police	**300**	859,431	-	-
Municipal Court	**265**	119,466	-	-
Fire	**350**	628,196	-	-
Streets	**400**	417,271	-	-
Senior Citizens	**550**	37,513	-	-
Recreation	**610**	25,841	-	-
Thunderbolt Museum	**660**	3,323	-	-
Zoning Board/Commission	**741**	5,100	-	-
Capital Savings		100,000	-	-
Capital Additions		-	-	-
Water/Sewer	**400**	2,028,650	-	-
Solidwaste	**540**	285,342	-	-
SPLOST	**320**	232,580	-	-
TOTAL EXPENSES		**5,158,730**	**-**	**-**

(DEFICIT) SURPLUS	(228,419)

Amended Budget 2022	Actuals Year to Date	YTD %
2,218,000	1,258,373	57%
101,500	95,911	94%
30,000	14,102	47%
61,358	46,150	75%
163,300	100,256	61%
38,000	60,439	159%
1,320,000	905,162	69%
282,000	144,054	51%
-	196	0%
716,153	326,525	0%
4,930,311	**2,951,168**	**60%**
32,953	25,463	77%
319,064	321,845	101%
64,000	40,709	64%
859,431	465,307	54%
119,466	74,017	62%
628,196	324,745	52%
417,271	183,822	44%
37,513	21,019	56%
25,841	16,592	64%
3,323	2,812	85%
5,100	1,607	32%
100,000	-	0%
-	-	0%
2,028,650	688,037	34%
285,342	141,362	50%
232,580	3,768	2%
5,158,730	**2,311,106**	**45%**

(228,419)	640,062	

2022 Budg				
GEN Fund Revenue:		$ 2,612,158		ENT Fund Revenue
Expenses:	G&A	319,064		Expenses
	M&C	32,953		
	GEN GOV	64,000		
	PD	859,431		Expenses
	Mun Crt.	119,466		
	FD	628,196		
	Streets	417,271		
	Sen Cit	37,513		SPLOST
	REC	25,841		
	Mus	3,323		
	P&Z	5,100		
	CAP SAV	100,000		
Expenses	Total:	$ 2,612,158		
	Net	$ -		

2022 Actuals: (Ca				
			ACT vs BUD	
GEN Fund Revenue:		$ 1,575,230	$ (1,036,928)	ENT Fund Revenue
Expenses:	G&A	321,845	2,781	Expenses
	M&C	25,463	(7,490)	
	GEN GOV	40,709	(23,291)	
	PD	465,307	(394,124)	Expenses
	Mun Crt.	74,017	(45,449)	
	FD	324,745	(303,451)	
	Streets	183,822	(233,449)	
	Sen Cit	21,019	(16,494)	SPLOST
	REC	16,592	(9,249)	
	Mus	2,812	(511)	
	P&Z	1,607	(3,493)	
Expenses	Total:	$ 1,477,939	$ (1,134,220)	
	Net	$ 97,292	$ 97,292	

Town Of Thunderbolt Cash Status: June 2022				
Bank Account	Beginning Balance	Cash IN		Cash OUT
General fund	$ 1,561,937	$ 1,616,177		$ (1,640,117)
Water/Sever	166,262	1,054,202		(566,945)
Municipal Court	66,737	123,971		(180,628)
MC Cash Bond	31,564	14		(5,700)
Money Market Contingency	10,000	5		(5)
SPLOST Capital Projects	723,121	326,525		(3,768)
Special Projects	1,433	1		-

P.D. Asset	5,470	3		-
	$ 2,566,522	$ 3,120,898	$ -	$ (2,397,164)

et:

e:	$ 1,602,000	Town Revenue:	$ 4,930,311
Water/Sewer	2,028,650		
Garbage	285,342		
Total:	$ 2,313,992		
	$ (711,992)		
Revenue	716,153		
Expenses	232,580		
Net	483,573	Total Expense	$ 5,158,730
	$ (228,419)	(Deficit) Surplus/Contingency	$ (228,419)

ash Flow)

		ACT vs BUD		
e:	$ 1,049,413	$ (552,587)	Town Revenue:	$ 2,951,168
Water/Sewer	688,037	(1,340,613)		
SolidWaste	141,362	(143,980)		
		-		
Total:	$ 829,399	$ (1,484,593)		
Net	$ 220,014	$ 932,006		
Revenue	326,525	(389,628)		
Expenses	3,768	(228,812)		
Net	$ 322,757	$ (160,816)	Total Expense	$ 2,311,106
	$ 640,062	$ 868,481	Surplus/Contingency	$ 640,062

	Ending Balance	Net Change
	$ 1,537,996	$ (23,941)
	653,518	487,257
	10,079	(56,658)
	25,878	(5,686)
	10,000	-
	1,045,878	322,757
	1,434	1

	5,472	3
$ -	$ 3,290,256	$ 723,733

TOWN OF THUNDERBOLT
PLANNING & ZONING APPLICATION
RESIDENTIAL OR COMMERCIAL

Date Filed _____ Application # _____ Residential: ✓ Commercial: _____

Application Fees: $100.00 – Residential $200.00 – Commercial
Fee must be paid at the time of submitting the application and is non-refundable, even if Applicant decides to redraw their application before or after the application process.

The original plus nine copies of this application shall be submitted. The building permit application and nine copies of the plot plan and development plans of the site, if required for the building permit application, shall accompany this application.

DESCRIPTION OF PROPERTY

Applicant's Name: Lisa + Mark Galipeau Phone # 912.257.6107

Applicant's Address: 2610 River Drive

2610 River Drive 30004 05003
Property Address Parcel Number

Owner's Name & Address Same as Above

Zoning District _____ Current Use of Property Primary Residence

Proposed Use of Property Primary Residence

REASONS FOR APPLICATION

1. ( ) A decision of the Zoning Administrator which the applicant believes to be contrary to the meaning of the Zoning Ordinance.

2. ( ) An application to establish a use which must be approved by the Planning Board (See "Use Schedule – List of Uses #).

3. (✓) A request for a variance ( ) a yard requirement; ( ) a lot width requirement; ( ) a lot area requirement. Note: Variances are heard and approved on a case by case basis; when resulting in practical difficulty or unnecessary hardship. Code of Ordinances 16.6c

4. ( ) A request for extension of non-conforming use.

5. ( ) Rezoning request from _____ classification to a _____ classification

6. ( ) Other _____
Describe those things which you feel justify the action requested. List when necessary the specific Sections of the Zoning Ordinance which have a bearing on your request.
(Use back of this sheet if necessary.)

OTHER INFORMATION REQUIRED

Refer to Article XV, Zoning Ordinance

Attach, hereto, a scaled or dimensioned map, plat, or sketch of tract, of property in question and all other adjoining lots or properties under the same ownership. Said map, plat, or sketch shall indicate the approximate location of all the properties in question with respect to the nearby public roads in common use.

Date Received: _____ Zoning Administrator: _____

Name and Address of Contractor(s)_____

The following is a list of the names and addresses of all adjacent property owners within approximately a two-hundred (200) foot radius of the property:

_____ _____
_____ _____
_____ _____
_____ _____
_____ _____
_____ _____

(Please list additional names on a separate sheet)

I hereby certify that the above stated facts are True to the best of my knowledge and belief And that I am the owner or authorized agent for the owner of the subject property.

Sworn to and subscribed before me on this 25 day of April 2022.

Lon Galpin
Owner or Authorized Agent's Signature

Melanie L Holland
Notary Public

Melanie L Holland NOTARY PUBLIC Chatham County, Georgia

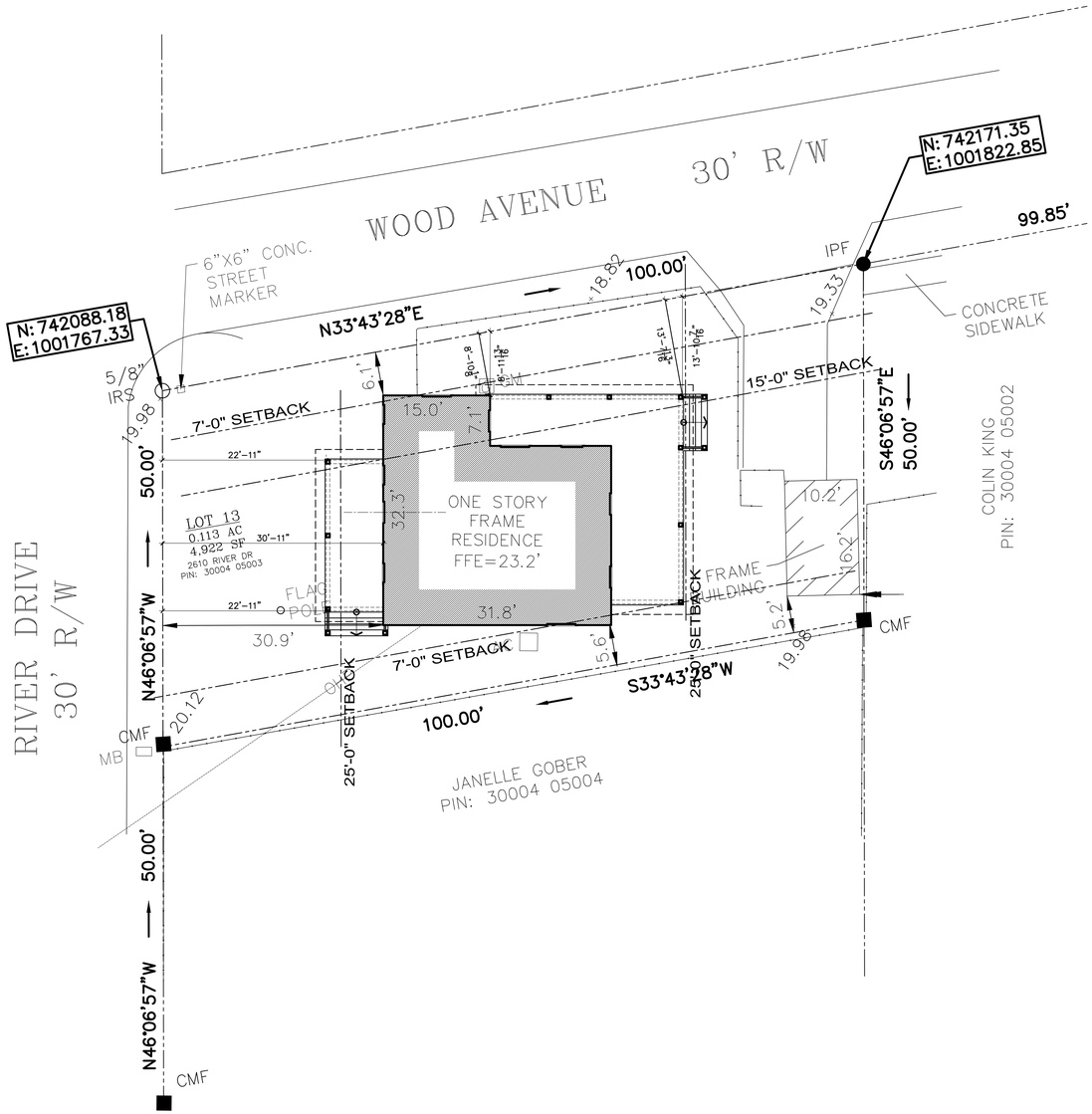
Fee received and paid: _____

STATUS

Notice of hearing sent: _____ _____
Date

Sign Posted: _____ _____
Date Address

Published Advertisement: _____
Date



SITE PLAN
SCALE: 1" = 10'-0"
L - 100 - 1

0 5' 10' 20' 40'

10

DRAWING NOTES

VERIFY ALL DRAWNGS WITH OFFICE MASTER SET PRIOR TO ANY CONSTRUCTION.

STRUCTURAL INFORMATION
SEE FOUNDATION PLAN FOR ADDITIONAL STRUCTURAL INFORMATION

DESIGN LOADS
DESIGN LOAD BASED ON WIND SPEED V3S = 135 MPH
EXPOSURE CATEGORY "B"
ICC 600-2014
I.R.C. - 2018

FLOOD ZONE PER SURVEY
X

EXISTING CONDITIONS

DESIGN DOCUMENTS ARE BASED ON VISUAL MEASUREMENTS TAKEN AND MAY NOT ACCURATELY SHOW THE CORRECT AND OR EXACT CONDITIONS ESPECIALLY NON VISIBLE CONDITIONS. VERIFY ALL CRITICAL DIMENSIONS WALL THICKNESS CEILING HEIGHTS PRIOR TO ANY ORDERING OF SYSTEMS WINDOWS AND DOORS

NOTATIONS ON THESE DESIGN DOCUMENTS MAY NOT FULLY REFLECT ALL THE WORK NECESSARY TO COMPLETE THE INTENT OF WHAT IS DRAWN. THEREFORE THE GENERAL CONTRACTOR SHALL SITE VERIFY ALONG WITH THE SUB CONTRACTORS DURING ALL PRICING, PRE ARRANGE INSPECTIONS OF THE PROPERTY WITH THE OWNER AND GENERAL CONTRACTOR. THE CONTRACTOR WILL MAKE TO THE BEST OF THEIR ABILITY VISUAL NON-DESTRUCTIVE INSPECTIONS OF THE AREAS EFFECTED BY THE WORK IN ORDER TO GIVE A COMPLETE QUOTE AS POSSIBLE

SURVEY

ALL SURVEY WORK HAS BEEN COMPLETED BY VINCE HELMY ON:

04-20-2022 JOB NO. 22-103

SAWYER
ENVISION • DESIGN • BUILD

GENERAL PROJECT NOTES

SEE COVER PAGE FOR NOTES AND LIMITATIONS TO ARCHITECTURAL AND DESIGN SCOPE OF SERVICES

VERIFY AND COORDINATE ALL MATERIALS SELECTIONS SPECIFICATIONS WITH THE MATERIAL SELECTIONS SHEETS PRIOR TO ORDERING FABRICATION AND INSTALLATION

DRAWINGS ARE PROVIDED BY THE DESIGN TEAM TO THE BUILDER AND OWNER AND ARE LIMITED IN SCOPE THE BUILDER AND THE OWNER ARE RESPONSIBLE FOR ALL DETAILS AND SPECIFICATIONS NOT CALLED OUT IN THIS DESIGN DRAWING SET ALONG WITH THE ADMINISTRATION AND OBSERVATION OF THE CONSTRUCTION CONTRACT

THE BUILDER AND THE OWNER ARE RESPONSIBLE FOR THE COORDINATION AND OR MODIFICATIONS NECESSARY TO MEET THE REQUIREMENTS OF ANY GOVERNMENT AGENCY HAVING JURISDICTION OVER ANY PART OF THIS PROJECT

GENERAL CONTRACTOR IS RESPONSIBLE TO VERIFY ALL DRAWINGS WITH OFFICE MASTER SET PRIOR TO ANY CONSTRUCTION

INFORMATION CONTAINED ON THESE DRAWINGS IS PROVIDED FOR THE CONVENIENCE OF THE GENERAL CONTRACTOR IN EXECUTING THE WORK. EVERY ATTEMPT HAS BEEN MADE TO PROVIDE COMPLETE AND ACCURATE REPRESENTATIONS OF ALL CONDITIONS

FOR DIMENSIONS NOT SHOWN OR IN QUESTION, THE CONTRACTOR SHALL REQUEST CLARIFICATION FROM THE DESIGN TEAM BEFORE PROCEEDING

CONTRACTOR SHALL VERIFY ALL EXISTING CONDITIONS IN THE FIELD, ANY DISCREPANCIES SHALL BE BROUGHT TO THE ATTENTION OF THE DESIGN TEAM

THE CONTRACTOR SHALL MAINTAIN AT THE SITE OF THE WORK, A SET OF RECORD DRAWINGS. THE CONTRACTOR SHALL RECORD ALL CHANGES AND DEVIATIONS FROM THE DRAWINGS ON THIS "AS-BUILT" SET, WHICH SHALL BE UPDATED AT LEAST EVERY OTHER WEEK. AT THE CLOSE OF THE JOB, THE CONTRACTOR SHALL PROVIDE ONE COMPLETE SET OF ALL "AS-BUILT" INFORMATION TO THE DESIGN TEAM IN CLEAR AND LEGIBLE FORMAT.

STRUCTURAL INFORMATION
SEE FOUNDATION PLAN FOR ADDITIONAL STRUCTURAL INFORMATION

DESIGN LOADS
DESIGN LOAD BASED ON WIND SPEED V3S = 135 MPH
EXPOSURE CATEGORY "B"
ICC 600-2014
I.R.C. - 2018

FLOOD ZONE PER SURVEY
X

VERIFY ALL DRAWINGS WITH OFFICE MASTER SET PRIOR TO ANY CONSTRUCTION.

GALIPEAU

SINGLE FAMILY RESIDENCE – COVERED PORCH

2610 RIVER DRIVE
TOWN OF THUNDERBOLT
SAVANNAH – GEORGIA
CHATHAM COUNTY

STRUCTURAL ENGINEER SEAL

SITE PLAN 24 x 36

BUILD ☐

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GALIPEAU
SINGLE FAMILY RESIDENCE – COVERED PORCH
2610 RIVER DRIVE
TOWN OF THUNDERBOLT
SAVANNAH – GEORGIA
CHATHAM COUNTY
22 - 011
06.12.2022
REV A

L - 100
02 - 05 SINGLE USE ONLY

GALIPEAU

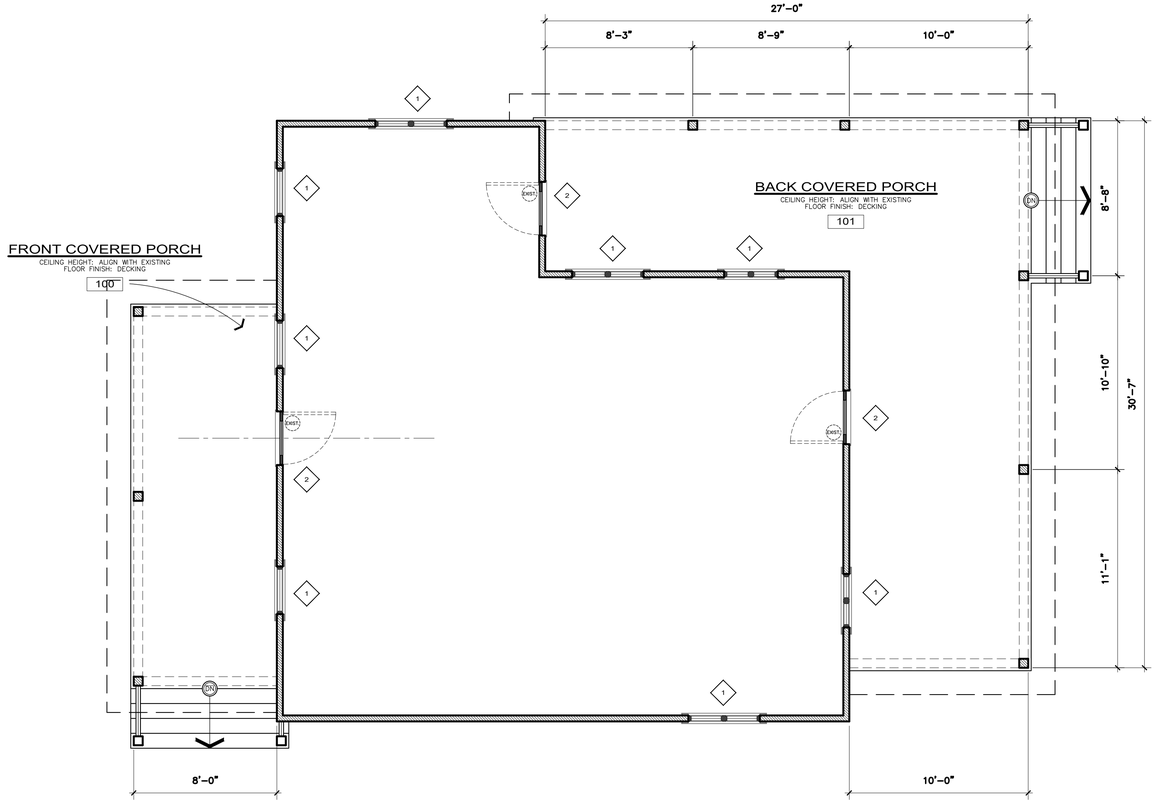
SINGLE FAMILY RESIDENCE - NEW C.P.
2610 RIVER DRIVE
TOWN OF THUNDERBOLT
SAVANNAH - GEORGIA
CHATHAM COUNTY

COVERED PORCH

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COVERED PORCH FLOOR PLAN
SCALE: 1/4" = 1'-0"
A - 100 - 1

0 1' 4' 8' 16'

DRAWING NOTES

VERIFY ALL DRAWNGS WITH OFFICE MASTER SET PRIOR TO ANY CONSTRUCTION.

STRUCTURAL INFORMATION
SEE FOUNDATION PLAN FOR ADDITIONAL STRUCTURAL INFORMATION

DESIGN LOADS
DESIGN LOAD BASED ON WIND SPEED V3S = 135 MPH
EXPOSURE CATEGORY "B"
ICC 600-2014
I.R.C. - 2018

FLOOD ZONE PER SURVEY X

DRAWING INDEX

1 A – 100 COVERED PORCH FLOOR PLAN
2 L – 100 SITE PLAN
3 A – 200 EXTERIOR ELEVATIONS
4 S – 100 FOUNDATION – SECTIONS – ROOF PLAN
5 S – 101 STRUCTURAL GENERAL NOTES

PROJECT AREA

FIRST FLOOR LIVING AREA EXISITNG:	931.58 Square feet
FRONT COVERED PORCH LIVING AREA:	127.00 Square feet
BACK COVERED PORCH LIVING AREA:	448.91 Square feet

EXISTING CONDITIONS

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KEYED NOTES

1 EXISTING WINDOW TO REMAIN AS IS

2 EXISTING DOOR TO REMAIN AS IS

3 EXISTING EXTERIOR SIDING TO REMAIN AS IS

INCLUSIONS

MARKED ITEMS ONLY

- BUILDER LEVEL DESIGN DRAWINGS – STANDARD
- STRUCTURAL ENGINEERING – UP–LIFT CONSULTATION
- NO STRUCTURAL ENGINEERING – FRAMING PACKAGE
- NO ME&P ENGINEERING
- NO CIVIL ENGINEERING – CERTIFIED DRAINAGE

- NO INTERIOR DESIGN – SELECTIONS
- NO CABINETRY DESIGN
- NO LANDSCAPE DESIGN
- NO POOL – SPA DESIGN

PROJECT DATES 06.12.2022

PROJECT INITIATION	00.00.2022
30% DESIGN REVIEW	02.18.2022
60% DESIGN REVIEW	03.02.2022
100% DESIGN REVIEW	03.09.2022
BUILD	03.10.2022
R–A (SIDE PORCH REDUCTION)	06.12.2022

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GENERAL PROJECT NOTES

SEE COVER PAGE FOR NOTES AND LIMITATIONS TO ARCHITECTURAL AND DESIGN SCOPE OF SERVICES

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SAVANNAH – GEORGIA
CHATHAM COUNTY

STRUCTURAL ENGINEER SEAL



COVERED PORCH FLOOR PLAN 24 x 36

BUILD

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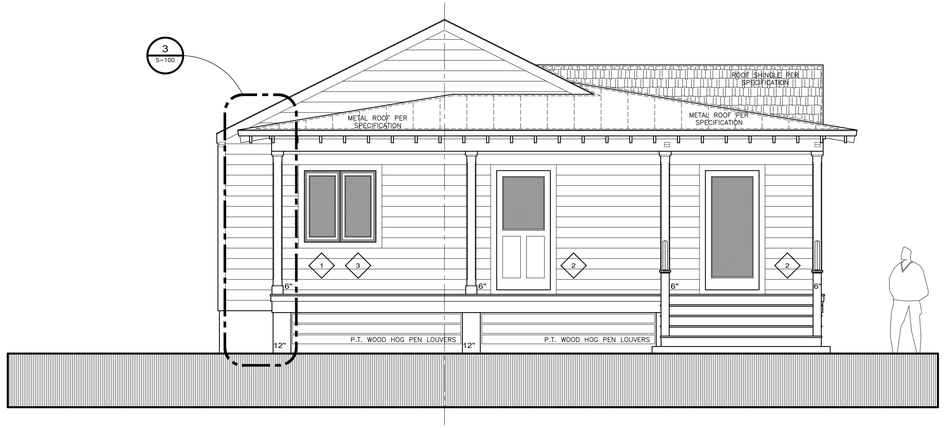
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GALIPEAU 22 - 011
06.12.2022
SINGLE FAMILY RESIDENCE – COVERED PORCH

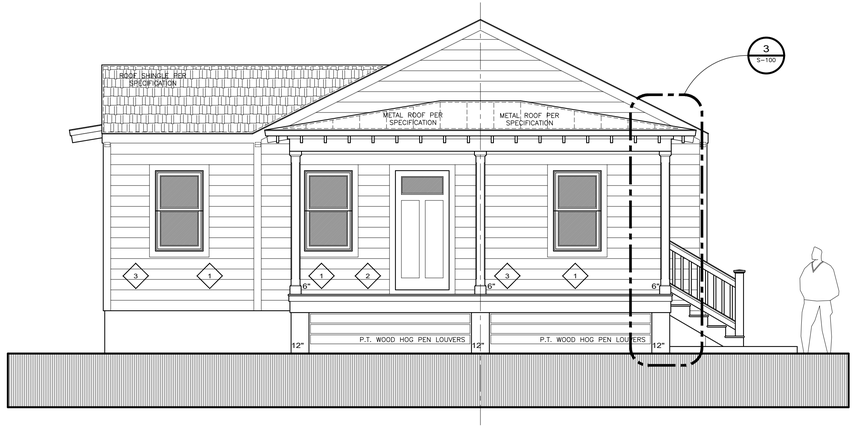
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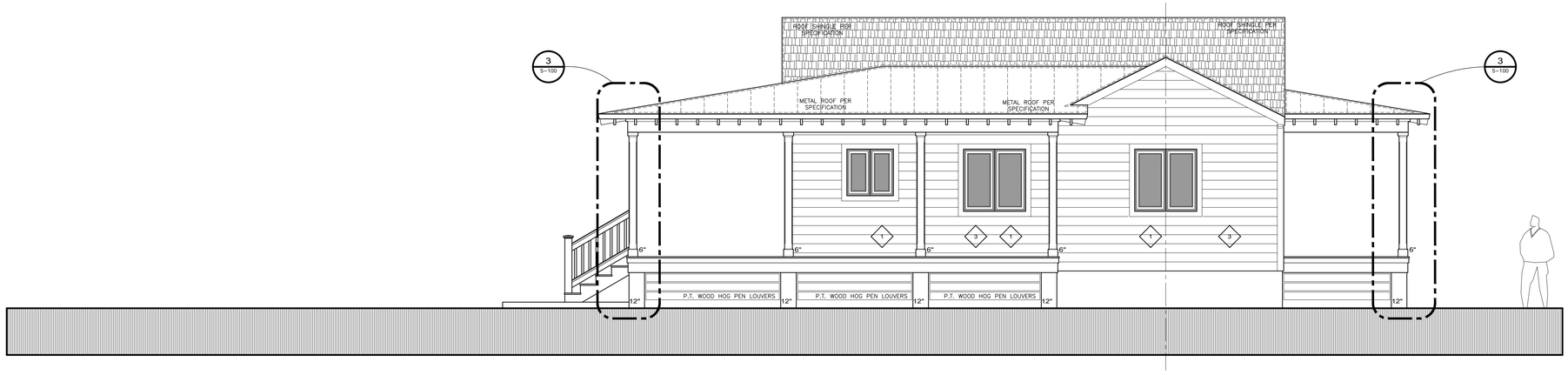


EXTERIOR ELEVATION - BACK
SCALE: 1/4" = 1'-0"
A - 200 - 2



EXTERIOR ELEVATION - FRONT
SCALE: 1/4" = 1'-0"
A - 200 - 2

0 1' 4' 8' 16'



EXTERIOR ELEVATION - LEFT
SCALE: 1/4" = 1'-0"
A - 200 - 1

0 1' 4' 8' 16'

DRAWING NOTES

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SAWYER
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2610 RIVER DRIVE
TOWN OF THUNDERBOLT
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STRUCTURAL ENGINEER SEAL



EXTERIOR ELEVATIONS 24 x 36

BUILD

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SAVANNAH – GEORGIA
CHATHAM COUNTY
REV A

A - 200
03 - 05 SINGLE USE ONLY

DRAWING NOTES
ROOF PLAN - DETAILS

HIP OVERHANGS
ALL ROOF OVERHANGS AT HIPS ARE TO BE 1'-6" UNLESS OTHERWISE NOTED

GABLE OVERHANGS
ALL ROOF OVERHANGS AT GABLE ENDS ARE TO BE 1'-0" UNLESS OTHERWISE NOTED

ROOF PITCH
ALL GABLE END MODIFIED HIPS TO BE 4-12 PITCH UNLESS OTHERWISE NOTED

STRAPPING
ALL ROOF RAFTERS WILL BE 2x8 @16" O.C. WITH A 10'-0" MAXIMUM SPAN WITHOUT BRACING UNLESS OTHERWISE SPECIFIED

RAFTERS
SIMPSON TYPE HURRICANE STRAP AT EACH ROOF RAFTER SEE STRUCTURAL NOTES

DESIGN LOADS
DESIGN LOAD BASED ON WIND SPEED
V3S = 135 MPH
EXPOSURE CATEGORY "B"

SHEATHING
PLYWOOD SHEATHING TO BE CONTINUOUS TO TOP PLATES

PRELIMINARY WATER PROOFING
ALL VALLEYS CRICKETS CHIMNEY TRANSITIONS FRAMED PROTRUSIONS AND EXPOSED DECK EXTENSIONS SHALL BE COVERED WITH GRACE ICE AND WATER SHIELD AND OR EQUAL VERIFY WITH SITE SUPERINTENDENTS FOR LOCATIONS AND SIZE REQUIREMENTS

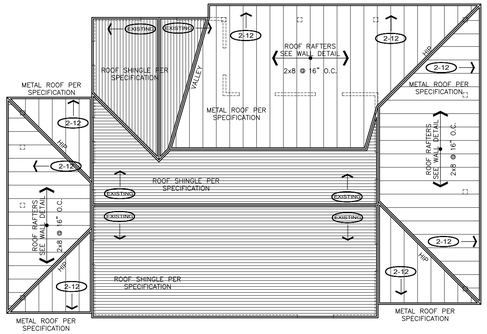
STRUCTURAL HARDWARE
THE HARDWARE SHOWN IS FOR DESIGN AND ORIENTATION ONLY EQUAL HARDWARE BY OTHER MANUFACTURERS IS ACCEPTABLE (USE APPROPRIATE FITTINGS FOR DOUBLE STUDS, RAFTERS ETC.)

TREATED WOOD FASTENERS
ALL FASTENERS – STRAPS – CLIPS THAT COME IN CONTACT WITH CBA-A OR CA-B TYPE TREATED WOOD MUST BE TRIPLE ZINC (G1-85) COATED AND FASTENED WITH LIKE KIND NAILS – SCREWS – AND OR BOLTS ISOLATE UNLIKE MATERIALS IF NECESSARY

ROOF PITCH
2 - 12
SEE NOTES FOR CLARIFICATION

ROOF SHINGLES

ALL ROOF SHINGLES SHALL MEET A.S.T.M. 3161D CLASS F PER I.R.C. SECTION 905.2.4.1



DRAWING NOTES

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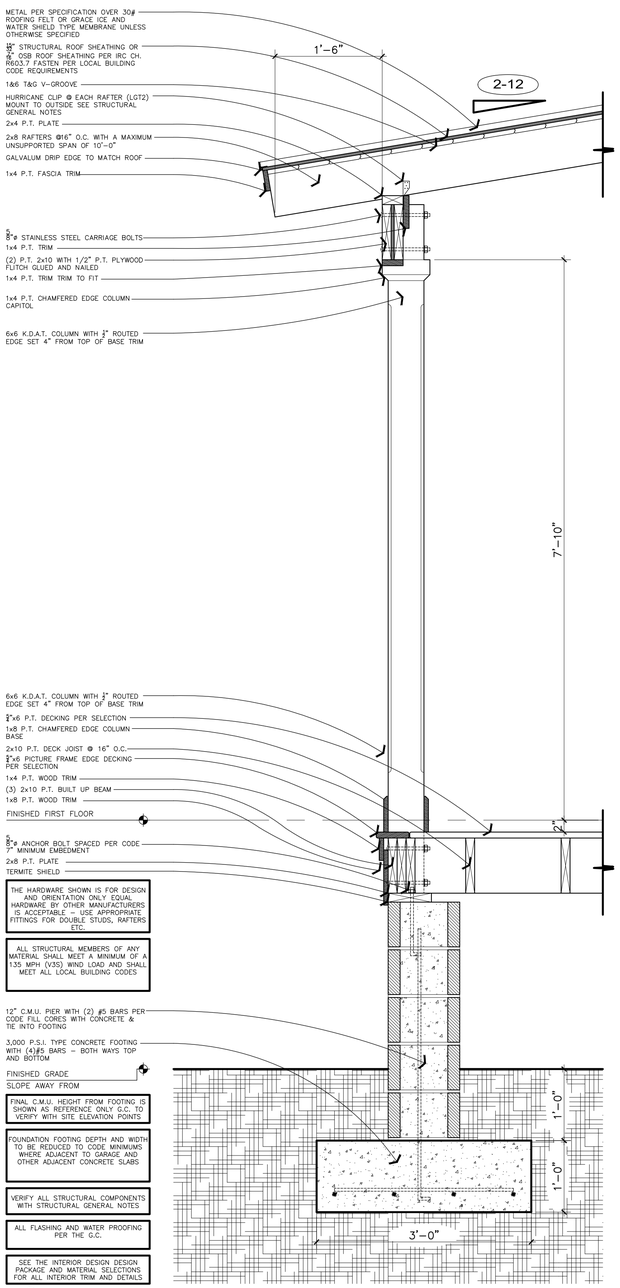
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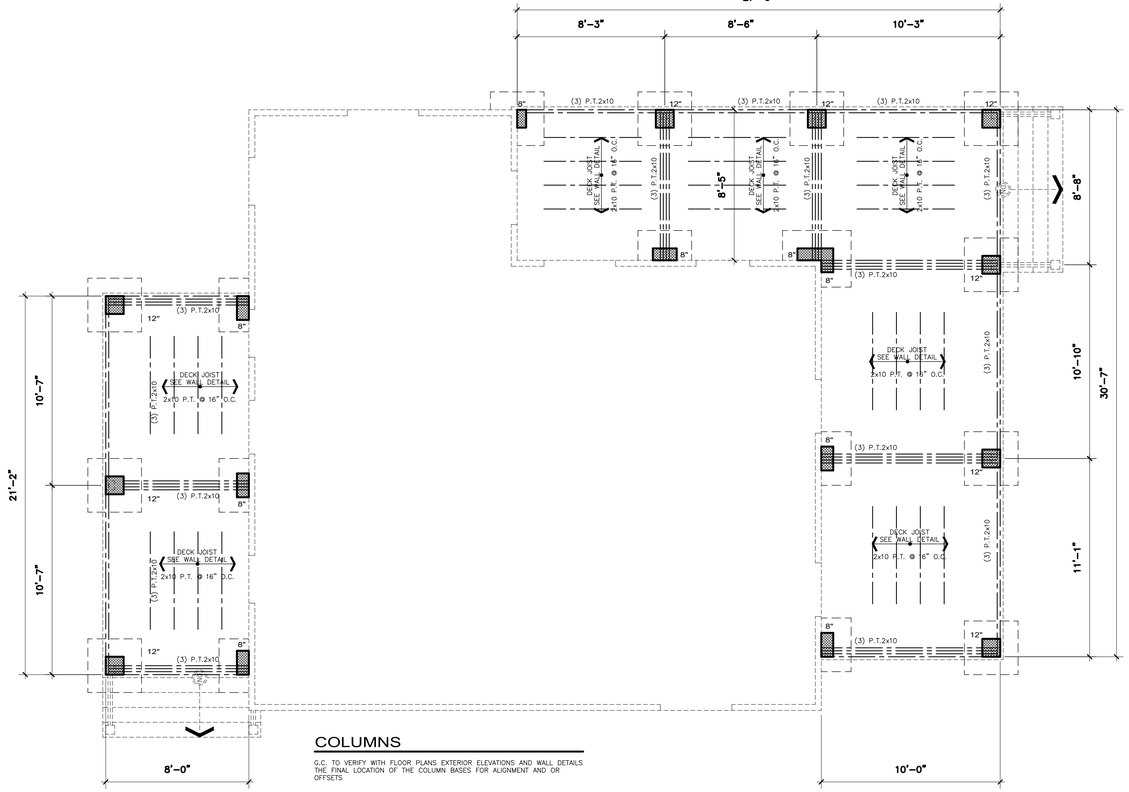


WALL DETAIL
SCALE: 1" = 1'-0"
S - 100 - 3

0 6" 1' 2'

ROOF PLAN
SCALE: 1/8" = 1'-0"
S - 100 - 2

0 1' 8' 16' 32'



COLUMNS

G.C. TO VERIFY WITH FLOOR PLANS EXTERIOR ELEVATIONS AND WALL DETAILS THE FINAL LOCATION OF THE COLUMN BASES FOR ALIGNMENT AND OR OFFSETS

FOUNDATION PLAN
SCALE: 1/4" = 1'-0"
S - 100 - 1

0 1' 4' 8' 16'

GALIPEAU

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STRUCTURAL ENGINEER SEAL



FOUNDATION PLAN – BUILDING SECTIONS – ROOF PLAN 24 x 36

BUILD

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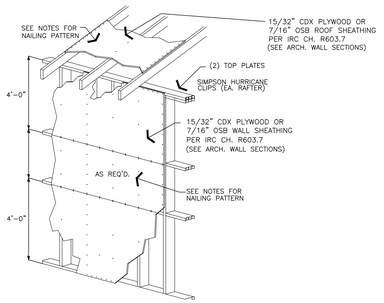
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2610 RIVER DRIVE TOWN OF THUNDERBOLT SAVANNAH – GEORGIA CHATHAM COUNTY	REV A

S - 100
04 - 05 SINGLE USE ONLY

	FASTENER	NUMBERS OR SPACING
JOIST TO BAND JOIST, FACE NAIL	16D COMMON	3
JOIST TO SILL OR GIRDER, TOE–NAIL	8D COMMON	3
BRIDGING TO JOIST, TOENAIL EACH END	8D COMMON	2
LEDGER STRIP	16D COMMON	3 @ EACH JOIST
1x6 OR LESS SUB FLOOR TO EACH JOIST, FACE NAIL	8D COMMON	2
OVER 1x6 SUB FLOOR TO EACH JOIST, FACE NAIL	8D COMMON	3
2" SUB FLOOR TO JOIST OR GIRDER, BLIND AND FACE NAIL	16D COMMON	2
SOLE PLATE TO JOIST OR BLOCKING, FACE NAIL	16D COMMON	16" O.C.
TOP OR SOLE PLATE TO STUD, END NAIL	16D COMMON	2
STUD TO SOLE PLATE, TOE NAIL	8D COMMON	4
DOUBLE STUDS, FACE NAIL	10D COMMON	24" O.C.
DOUBLE TOP PLATES, FACE NAIL	10D COMMON	16" O.C.
TOP PLATES, LAP AND INTERSECTIONS FACE NAIL	-	2-16D OR 3-10D COMMON
CONTINUOUS HEADER, TWO PIECES	16D COMMON	16" O.C. ALONG EACH EDGE
CEILING JOIST TO PLATE, TOENAIL	8D COMMON	3
CONTINUOUS HEADER TO STUD, TOE NAIL	8D COMMON	3
CEILING JOIST, LAPS OVER PARTITIONS, FACE NAIL	-	3-16D OR 4-10D COMMON
CEILING JOIST TO PARALLEL RAFTERS, FACE NAIL	-	3-16D OR 4-10D COMMON
RAFTER TO PLATE, TOENAIL	8D COMMON	3
1" BRACE TO EACH STUD AND PLATE, FACE NAIL	8D COMMON	2
1x8 OR LESS SHEATHING TO EACH BEARING, FACE NAIL	8D COMMON	2
BUILT–UP CORNER STUDS	16D COMMON	3
BUILT–UP GIRDERS AND BEAMS, OF THREE MEMBERS	20D COMMON	24" O.C.
STUDS TO SOLE PLATE, END NAIL	16D COMMON	16D COMMON

PER TABLE NO. 2306.1 SSTD 10–99
APPLIES UNLESS NOTED OTHERWISE ON DRAWINGS

SCHEDULE - NAILING
SCALE: N.T.S.
S - 101 - 11



WALL AND ROOF SHEATHING WILL BE NAILED WITH 8d NAILS (TWISTED SHANK)
3"o/c AROUND EDGES AND 6"o/c IN FIELD
OR
WALL AND ROOF SHEATHING WILL BE NAILED WITH 10d NAILS (TWISTED SHANK)
4"o/c AROUND EDGES AND 6"o/c IN FIELD
PROVIDE SHEATHING SPLICES OVER BLOCKING OR FRAMING
THE SHEATHING MAY BE PLACED EITHER HORIZONTALLY OR VERTICALLY

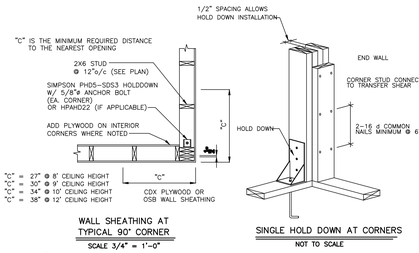
SCHEDULE - NAILING PATTERNS
SCALE: N.T.S.
S - 101 - 8

STRUCTURAL STUD LEGEND

LUMBER SPECIES: #2 S.Y.P.K.D. MEDIUM GRAIN
WIND SPEED: 130 M.P.H.

WALL LOCATION	CEILING HEIGHT	STUD SIZE	O.C. SPACING	OPT. STUD GRADE-(SPF)
EXTERIOR	8'-0"	2 x 4	16"	16"
EXTERIOR	9'-0"	2 x 4	16"	12"
EXTERIOR	10'-0"	2 x 6	16"	
EXTERIOR	12'-0"	2 x 6	12"	
EXTERIOR	14'-0"	2 x 6	12" & DBL. @ 36"	
INTERIOR	8'-0"	2 x 4	16"	
INTERIOR	9'-0"	2 x 4	16"	
INTERIOR	10'-0"	2 x 4	16"	
INTERIOR	12'-0"	2 x 6	16"	
INTERIOR	14'-0"	2 x 6	12"	
INTERIOR	16'-0"	2 x 8	16"	

*STUDS MAY BE USED AT HEIGHTS AND DISTANCES OTHER THAN WHAT IS LISTED ON THIS CHART IF SHOWN ON THESE PLANS.



WALL SHEATHING AT TYPICAL 90° CORNER
SCALE 3/4" = 1'–0"

SINGLE HOLD DOWN AT CORNERS
NOT TO SCALE

SCHEDULE - STRUCTURAL STUDS
SCALE: N.T.S.
S - 101 - 10

MINIMUM WALL AND HEADER STUD REQUIREMENTS PER SSTD 10–99 TABLE 305C

	MAXIMUM HEADER SPAN (FT.)				
		3 ft	6 ft	9 ft	12 ft
	NUMBER OF HEADER STUDS SUPPORTING EACH END OF HEADER				
		1	1	2	2
UNSUPPORTED WALL HEIGHT	STUD SPACING	NUMBER OF FULL LENGTH STUDS AT EACH END OF THE HEADER			
10 FEET OR LESS	16"o/c	2	2	3	3
GREATER THEN 10 FEET	16"o/c	2	2	3	3

THE EXTERIOR WALL STUDS SCHEDULE:
(FOR V =130MPH)

2x4's @ 16" o/c AT THE WALLS WITH THE PLATE HEIGHT UP TO 8'–1½"
2x4's @ 12" o/c AT THE WALLS WITH THE PLATE HEIGHT UP TO 9'–1½"
2x6's @ 16" o/c OR DBL. 2x4's @ 12" o/c
AT THE WALLS WITH THE PLATE HEIGHT UP TO' 10'–1½
2x6's @ 16" o/c AT THE WALLS WITH THE PLATE HEIGHT UP TO 12'–1½"
2x8's @ 16" o/c AT THE WALLS WITH THE PLATE HEIGHT UP TO 16'–1½"
(OR DOUBLE 2x6's @ IN LIEU OF 2x8's

DOOR AND WINDOW HEADER SCHEDULE: (WALLS 2x4's)

(2) 2x8's W/ (1/2) PLYWOOD FILLERS FOR UP TO 4'–0" OPENINGS
(2) 2x10's W/ (1/2) PLYWOOD FILLERS FOR UP TO 8'–0" OPENINGS
(2) 2x12's W/ (1/2) PLYWOOD FILLERS FOR UP TO 10'–0" OPENINGS

DOOR AND WINDOW HEADER SCHEDULE: (WALLS 2x6's)

(3) 2x8's W/ (1/2) PLYWOOD FILLERS FOR UP TO 4'–0" OPENINGS
(3) 2x10's W/ (1/2) PLYWOOD FILLERS FOR UP TO 8'–0" OPENINGS
(3) 2x12's W/ (1/2) PLYWOOD FILLERS FOR UP TO 10'–0" OPENINGS

THE CEILING / ATTIC JOISTS WILL BE:

2x6's @ 16"o/c UP TO 10' SPAN
2x8's @ 16"o/c UP TO 14'–0" SPAN
2x10's @ 16"o/c UP TO 16' SPAN
2x12's @ 16"o/c UP TO 20' SPAN

THE CEILING JOISTS WILL BE:

2x6's @ 16"o/c UP TO 14' SPAN
2x8's @ 16"o/c UP TO 17' SPAN
2x10's @ 16"o/c UP TO 22' SPAN

THE ROOF RAFTERS WILL BE:

2x6's @ 16"o/c UP TO 8'–0" (UNSHORED) SPAN
2x8's @ 16"o/c UP TO 12'–0" (UNSHORED) SPAN
2x10's @ 16"o/c UP TO 15'–0" (UNSHORED) SPAN
2x12's @ 16"o/c UP TO 18'–0" (UNSHORED) SPAN

SCHEDULE - STRUCTURAL STUDS
SCALE: N.T.S.
S - 101 - 10

GO–BOLT HOLD DOWNS CAN BE USED IN DIRECT REPLACEMENT OF ALL TIE DOWN STRAPS SPECIFIED ON SHEET S102

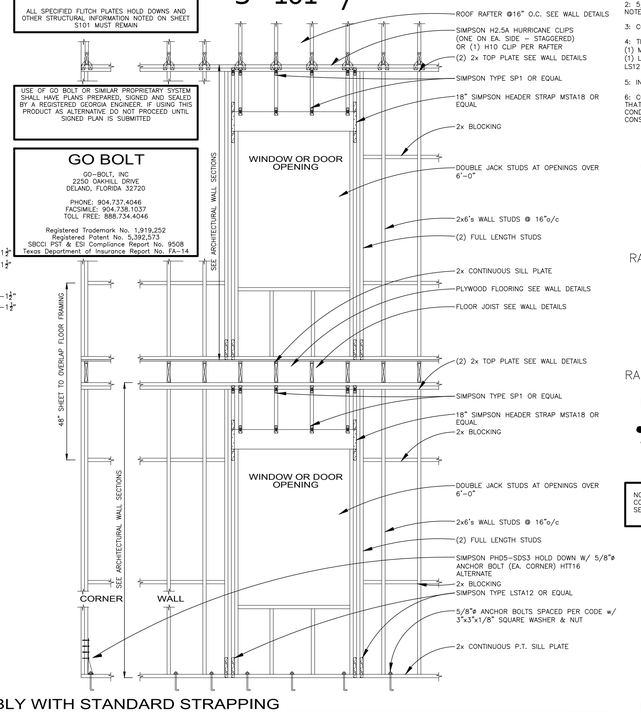
ALL SPECIFIED FUTCH PLATES HOLD DOWNS AND OTHER STRUCTURAL INFORMATION NOTED ON SHEET S101 MUST REMAIN

USE OF GO BOLT OR SIMILAR PROPRIETARY SYSTEM SHALL HAVE PLANS PREPARED, SIGNED AND SEALED BY A REGISTERED GEORGIA ENGINEER. IF USING THIS PRODUCT AS ALTERNATIVE DO NOT PROCEED UNTIL SIGNED PLAN IS SUBMITTED

GO BOLT
GO–BOLT, INC.
2250 OAKHILL DRIVE
DELAND, FLORIDA 32720

PHONE: 904.737.4046
FACSIMILE: 904.738.1037
TOLL FREE: 888.734.4046

Registered Trademark No. 1,919,252
Registered Patent No. 5,392,573
SBCCI PST & ESI Compliance Report No. 9508
Texas Department of Insurance Report No. FA–14



TYPICAL WALL ASSEMBLY WITH STANDARD STRAPPING
SCALE: N.T.S.
S - 101 - 9

SHOWN FOR REFERENCE ONLY – VERIFY WITH MANUFACTURES AND BUILDING CODE REQUIREMENTS PRIOR TO CONSTRUCTION

TYPICAL CORNER NOTES
SCALE: N.T.S.
S - 101 - 7

GENERAL CONCRETE NOTES

1: ALL CONCRETE SHALL HAVE A MINIMUM COMPRESSIVE STRENGTH OF 3000 PSI AT 28 DAYS

2: ALL CONCRETE WORK SHOULD BE IN ACCORDANCE WITH ACI 318 BUILDING CODE REQUIREMENTS FOR STRUCTURAL CONCRETE

3: ALL REINFORCING STEEL TO BE NEW DOMESTIC DEFORMED BILLET STEEL CONFORMING TO ASTM A–615 GRADE 60

4: WELDED WIRE FABRIC SHALL CONFORM TO A–185 POLYPROPYLENE FIBER MESH OR FIBER MESH STRANDS MAY BE SUBSTITUTED FOR WELDED WIRE FOR NON STRUCTURAL SLAB REINFORCEMENT

5: CONTRACTOR SHALL VERIFY LOCATIONS OF ALL OPENINGS SLEEVES ANCHOR BOLTS INSERTS ETC. AS REQUIRED BY OTHER TRADES BEFORE CONCRETE IS PLACED. NO SLEEVES OPENINGS OR INSERTS MAY BE PLACED IN BEAMS OR SLABS UNLESS APPROVED BY THE STRUCTURAL ENGINEER AND SHOWN CLEARLY ON THE APPROVED SHOP DRAWINGS.

6: ALL REINFORCING DETAILS ARE TO CONFORM TO "MANUAL OF STANDARD PRACTICE FOR DETAILING REINFORCED CONCRETE STRUCTURES, ACI 315 UNLESS DETAILED OTHERWISE ON THE STRUCTURAL DRAWINGS.

7: PROVIDE SPACERS CHAIRS BOLTERS ETC.. AS REQUIRED TO ASSEMBLE PLACE AND SUPPORT ALL REINFORCING IN PLAN

8: PROVIDE CORNER BARS FOR ALL FOOTINGS ALL FOOTING DOWEL BARS SHALL HAVE A STANDARD 90 DEGREE HOOK AND SHALL BE EMBEDDED 5" INTO INTERIOR FOOTINGS AND A MINIMUM OF 7" INTO ALL OTHERS. DOWEL BARS LAP VERTICAL WALL REINFORCEMENT A MINIMUM OF 25"

9: ALL LUMBER IN CONTACT WITH MASONRY OR CONCRETE SHALL BE PRESSURE TREATED

10: SOIL UNDER SLAB TO BE PRETREATED FOR TERMITES AS PER THE 2006 INTERNATIONAL BUILDING CODE

11: ALL FOOTINGS TO BE DESIGNED FOR AN ASSUMED SOIL PRESSURE OF 2500 P.S.F. OWNER AND CONTRACTOR ARE TO HAVE THE THE SOIL PRESSURE VERIFIED AND IF CONTACT PRESSURE IS LESS THAT 2500 P.S.F THE FOUNDATION WILL HAVE TO BE RE–DESIGNED. COMPACT FILL SOIL TO 98% STANDARD PROCTOR DENSITY DOWN TO 2'–0" BELOW ALL SLABS AND FOOTINGS

12: PLUMBING WASTE PIPES PENETRATING CONCRETE FOOTINGS SHALL BE CAST IRON OR SCHEDULE 40 PVC GROUP WORK AS PER ASTM C47613. MASONRY WORK PER ACI 530.1–02

FOUNDATION DESIGN ASSUMPTIONS

THE FOUNDATION SHALL BE PLACED ON UNDISTURBED SOIL OR ROCK WITH A BEARING CAPACITY WITH A SAFE WORKING DESIGNATION BY A GEOTECHNICAL ENGINEER. IF PORTIONS OF THE SLAB OR FOUNDATION IS ON PREPARED FILL, A REGISTERED GEOTECHNICAL ENGINEER SHALL VERIFY SUITABILITY OF THE FILL FOR USE AND ITS FOUNDATION BEARING CAPACITY. THE GENERAL CONTRACTOR IS RESPONSIBLE FOR VERIFYING THE CONDITIONS OF THE SOIL AND OR SITE LOCATION PRIOR TO COMMENCING WORK AND NOTIFYING THE STRUCTURAL ENGINEER AND DESIGN TEAM OF ANY DISCREPANCIES IN THIS DESIGN IMMEDIATELY

SOIL BEARING PRESSURE

SOIL BEARING PRESSURE ASSUMED AT 2500 P.S.F.
OWNER DID NOT FURNISH TEST TO ESTABLISH SOIL BEARING PRESSURE. THE OWNER ASSUMES ANY AND ALL RESPONSIBILITY FOR ANY AND ALL FOUNDATION SETTLEMENT AND HOLD THE STRUCTURAL ENGINEER AND THE ENTIRE DESIGN TEAM HARMLESS

STRUCTURAL STEEL COMPONENTS - TIE DOWNS

1: SHAPES ANGLES CHANNELS: ASTM A 36 Fy = 36KSI ROUND AND SQUARE METAL PIPE: ASTM A 53 GRADE B Fy = 36 KSI: SQUARE METAL TUBING: ASTM A 500, GRADE B Fy = 36 KSI

2: FASTENERS AND TIE DOWNS SHALL CONSIST OF BUTT ARE NOT LIMITED TO:
HIGH STRENGTH BOLTS: ASTM A325
MACHINE BOLTS: GALVANIZED ASTM A 307

3: SHEET METAL ACCESSORIES SHALL CONFORM TO: ASTM A446 OR ASTM A 526 Fy = 33 KSI WITH G90 GALVANIZED COATING IN ACCORDANCE WITH ASTM A 525

4: NAILS SHALL CONSIST OF RING SHANK NAILS WITH A MINIMUM DIAMETER AS FOLLOWS:
8D = 0.131"
10D = 0.148"
16D = 0.162

5: ALL FASTENERS AND TIE DOWNS EMBEDDED IN CONCRETE OR USED IN AN EXTERIOR APPLICATION ARE TO RECEIVE AN ANTI–CORROSIVE COATING PRIOR TO INSTALLATION

6: ALL FASTENERS AND TIE DOWNS ARE TO PROVIDE UPLIFT CAPACITY CALLED FOR IN THE PLANS AS A MINIMUM

7: ALL FASTENER TIE DOWNS BEAM HANGERS JOIST HANGERS AND FLOOR TRUSS STRAPPING ARE TO BE INSTALLED IN ACCORDANCE WITH THE PLANS AND MANUFACTURES SPECIFICATIONS

8: CONCRETE EMBEDDED "J" BOLTS USED FOR UPLIFT ARE TO BE WET SET PRIOR TO INITIAL SET ON THE CONCRETE SPACING AND ALIGNMENT ARE TO BE IN ACCORDANCE WITH THE DESIGN PLANS

9: CONCRETE EMBEDDED TIE DOWNS USED FOR TRUSS AND WALL UPLIFT ARE TO BE PLACED AROUND EMBEDDED REINFORCING PRIOR TO PLACING GROUT

10: FASTENERS ARE TO BE GALVANIZED ROOFING NAILS WITH A MINIMUM OF 12 GAUGE SHANK AND A MINIMUM 3/8" DIAMETER HEAD

11: FASTENERS ARE TO BE LONG ENOUGH SO AS TO PENETRATE THE SHINGLES AND STILL PROTRUDE AT LEAST 3/4" INTO OR THROUGH THE ROOF SHEATHING. USE 1" NAILS MINIMUM.

GENERAL STRAPPING NOTES

1: ALL EXTERIOR WALLS TO BE SHEAR WALLS WITH NAILING PATTERNS: 7/16" OSB 3" EDGE NAILS AND 12" FIELD NAILS

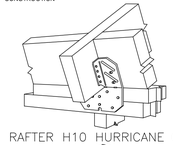
2: 5/8" GALVANIZED ANCHOR BOLTS @ 24" O.C. MAXIMUM AT EXTERIOR AND SHEAR WALLS UNLESS OTHERWISE NOTED

3: CONTINUE QUICK TIES TO SECOND FLOOR T.P. WHERE APPLICABLE

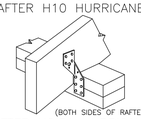
4: TIE DOWN TO EACH HEADER WITH:
(1) MS24 @ EACH END OF HEADER
(1) LS12 @ EACH END OF HEADER
LS12 @ 48" O.C. ACROSS HEADER

5: INSTALL SIMPSON TYPE AND OR EQUAL (1) H10A OR (2) H2.5 @ EACH RAFTER TO TOP PLATE

6: CONTRACTOR TO PROVIDE ADEQUATE TEMPORARY BRACING FOR STRUCTURE AND ITS INDIVIDUAL MEMBERS THAT WILL BE STABLE DURING ALL STAGES OF CONSTRUCTION. THIS STRUCTURE IS DESIGNED FOR A COMPLETE CONDITION ONLY AND THEREFOR REQUIRES ADDITIONAL TEMPORARY SUPPORTS TO MAINTAIN STABILITY DURING CONSTRUCTION

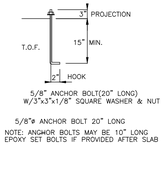


RAFTER H10 HURRICANE CLIP



RAFTER H2.5A HURRICANE CLIP

NOTE: MINIMUM EMBEDDED LENGTH OF ANCHOR BOLTS IS 7" PER CODE FOR SPACING NOT TO EXCEED 18" O.C. ANCHOR BOLTS PROVIDED WILL HAVE 15" EMBEDDMENT WITH 32" O.C. SPACING



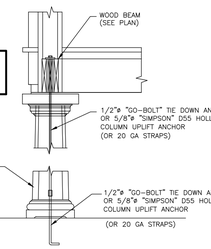
5/8" ANCHOR BOLT(20" LONG) W/3"x3"x1/8" SQUARE WASHER & NUT

5/8"ø ANCHOR BOLT 20" LONG
NOTE: ANGNOR BOLTS MAY BE 10" LONG EPOXY SET BOLTS IF PROVIDED AFTER SLAB

(BOTH SIDES OF RAFTER)

TYPICAL CLIPS - ANCHOR BOLT
SCALE: N.T.S.
S - 102 - 6

NOTE:
COLUMN IS SHOWN FOR REFERENCE ONLY. SEE SPECIFICATION FOR COLUMN TYPE



TYPICAL COLUMN TIE DOWN
SCALE: N.T.S.
S - 101 - 5

GENERAL CONSTRUCTION NOTES

ALL WORK UNDER THIS CONTRACT SHALL CONFORM TO ALL CODES – ORDINANCES AND REGULATIONS OF ALL AUTHORITIES HAVING JURISDICTION OVER THIS WORK WEATHER SHOWN IN THESE DOCUMENTS OR NOT.

THE GENERAL CONTRACTOR SHALL SECURE AND PAY FOR ALL NECESSARY PERMITS AND INSPECTIONS.

THE GENERAL CONTRACTOR SHALL SECURE AND PAY FOR ALL INSURANCE CALLED FOR BY LAW AND AS DIRECTED BY THE FUNDING INSTITUTION. COPIES OF INSURANCE CERTIFICATES SHALL BE FILED WITH THE ARCHITECT AND OR DESIGN TEAM LEADER.

THE GENERAL CONTRACTOR IS RESPONSIBLE FOR THE COORDINATION OF ALL WORK WITH ALL TRADED INVOLVED WITHIN THE CONTRACT SCOPE OF THIS PROJECT.

THE GENERAL CONTRACTOR SHALL VERIFY ALL ELEVATIONS DIMENSIONS AND LOCATIONS OF EXISTING FEATURES BEFORE STARTING WORK.

THE GENERAL CONTRACTOR IS RESPONSIBLE FOR NOTIFYING THE ARCHITECT – DESIGN TEAM LEADER AND OR THE STRUCTURAL ENGINEER OF ANY DISCREPANCIES PRIOR TO ANY CONSTRUCTION OR FABRICATION.

ALL CONSTRUCTION SHALL BE IN ACCORDANCE WITH IRC 2006 CODE, OSHA, ACI, AISC AND AITC CODES AND REQUIREMENTS AND ALL APPLICABLE STANDARDS

THE GENERAL CONTRACTOR SHALL REFER TO THE DESIGN TEAM. ARCHITECTURAL, MECHANICAL, ELECTRICAL, PLUMBING AND VENDOR DRAWINGS FOR COORDINATION OF EQUIPMENT IN AND OR BENEATH SLABS.

THE GENERAL CONTRACTOR IS TO PROVIDE ADEQUATE TEMPORARY BRACING FOR STRUCTURE AND ITS INDIVIDUAL MEMBERS SO THAT IT WILL BE STABLE DURING ALL STAGES OF CONSTRUCTION. THE STRUCTURE IS DESIGNED AS A COMPLETED STRUCTURED WILL NEED TEMPORARY SUPPORTS TO MAINTAIN STABILITY BEFORE COMPLETION.

ROOF DECKING AND WALL SHEATHING WILL BE INSTALLED AND ALL JOIST AND GIRDERS SECURED PRIOR TO TEMPORARY BRACING BEING REMOVED.

TEMPORARY BRACING DESIGN, INSTALLATION AND MAINTENANCE WILL BE AT ALL TIMES THE RESPONSIBILITY ON THE GENERAL CONTRACTOR AND OR ERECTOR. TEMPORARY BRACING IS NOT A DESIGN FUNCTION OF THE DESIGN TEAM AND OR THE STRUCTURAL ENGINEER.

SUBGRADE PREPARATION NOTES

REFER TO GEOTECHNICAL REPORTS FOR ALL SOIL INVESTIGATION RESULTS AND SOIL PREPARATION REQUIREMENTS.

PRIOR TO ANY CONSTRUCTION ALL BUILDING AREA PLUS APPROXIMATELY FIVE FEET ON EACH SIDE OF THE STRUCTURE SHOULD BE STRIPPED OF ALL VEGETATION TOP SOIL ROOT SYSTEMS FOREIGN OBJECTS DEBRIS AND ANY EXISTING PAVMENT

SITE DRAINAGE SHOULD BE ESTABLISHED TO PREVENT WATER POUNDING WITHIN THE CONSTRUCTION AREA AND TO FACILITATE THE STORM WATER RUNOFF.

IF NECESSARY THE SITE DEWATERING WILL BE EMPLOYED UNTIL THE FOUNDATIONS AND UTILITIES ARE IN PLACE. DEWATERING METHODS WILL BE SELECTED BY CONTRACTOR AND APPROVED BY THE DESIGN TEAM ARCHITECT AND STRUCTURAL ENGINEER.

ANY UTILITIES THAT UNDERLIE THE SITE SHOULD BE REELECTED AND THE TRENCHES BACK FILLED WITH APPROVED SUITABLE BACK FILL SOIL. THE BACK FILL IS TO BE PLACED IS SIX INCH THICK LIFTS AND COMPACTED TO A 98% DENSITY IN ACCORDANCE WITH ASTM–D–1557.

THE EXPOSED SUBGRADE UNDER FOUNDATIONS AND SLABS WILL BE LEVELED COMPACTED AND TREATED FOR TERMITES.

ALL EXPOSED SUBGRADE SHOULD BE COMPACTED BY REPEATED PASSES OF A VIBRATORY ROLLER. COMPACTION EFFORT SHOULD CONTINUE UNTIL SOIL UNDER FOOTINGS AND SLABS HAVE REACHED A DENSITY OF 98% IN ACCORDANCE WITH ASTM–D–1557 FOR A MINIMUM DEPTH OF 12 INCHES BELOW BOTTOM OF FOOTINGS AND SLABS.

ANY AREAS THAT BECOME UNSTABLE BENEATH COMPACTION EQUIPMENT SHOULD BE EXAMINED TO DETERMINE THE CAUSE. IF DUE TO UNSTABLE SOIL, SUCH AS CLAY OR HIGHLY ORGANIC SOIL, THE AREA SHOULD BE UNDERCUT TO FIRM SOIL AND THE EXCAVATED AREA BACKFILLED WITH APPROVED FILL COMPACTED TO 98% OF ITS DENSITY IN ACCORDANCE WITH ASTM–D–1557. IF THE INSTABILITY IS DUE TO EXCESS MOISTURE IN OTHERWISE ACCEPTABLE SOIL, THE AREA SHALL BE AERATED OR DRIED AND RECOMPACTED TO THE SPECIFIED DENSITY.

ALL OF THE FILL FOR THIS PROJECT SHOULD CONSIST OF A CLEAN FREE DRAINING SAND WITH A MAXIMUM OF 15% FINES. THE FILL WILL BE FREE OF ROOTS, CLAY, LUMPS AND ANY DEBRIS. ALL OF THE FILL FOR THIS PROJECT WILL BE IN ACCORDANCE WITH ASTM–D–1557.

THE DESIGN SOIL BEARING PRESSURE IS ASSUMED TO BE 2500 PSF. OWNER SHOULD CONTRACT WITH GEOTECHNICAL ENGINEERING FORM TO VERIFY ACTUAL BEARING PRESSURE.

CAST IN PLACE CONCRETE FOOTINGS FOUNDATIONS AND FLOOR SLABS

ALL CONCRETE SHALL DEVELOP A MINIMUM COMPRESSIVE STRENGTH OF 3000 PSI IN 28 DAYS UNLESS OTHERWISE NOTED. ALL CONCRETE SHALL BE PLACED IN ACCORDANCE WITH ACI 318

MIXING AND PLACING OF CONCRETE SHALL BE PROVIDED WITH CONSIDERATION TO WEATHER CONDITIONS AT THE TIME OF CONSTRUCTION. FOR COLD WEATHER IN ACCORDANCE WITH ACI 306, FOR HOT WEATHER IN ACCORDANCE WITH ACI 305

CURING METHODS SHALL BE SELECTED BY CONTRACTOR AND APPROVED BY THE DESIGN TEAM – ENGINEER APPROVED TO SUIT WEATHER CONDITIONS AT TIME OF CONSTRUCTION

WEATHER CONDITIONS SHALL NOT BE ACCEPTED AS A VALID REASON FOR INCORRECT OR OTHERWISE POOR QUALITY OF CONCRETE OR CONCRETE SURFACES

CONCRETE FINISHES SHALL BE SELECTED TO ACCOMMODATE FLOOR COVERINGS. SCRATCHED FINISHES FOR SURFACES INTENDED TO RECEIVE BOND APPLIED CEMENTIOUS APPLICATIONS. TROWELD FINISH FOR EXPOSED INTERIOR SURFACES, NONSTOP, LIGHT BROOM FINISH FOR EXTERIOR EXPOSED SURFACES.

ALL FINISHED SHALL BE A MINIMUM CLASS B TOLERANCES EXCEPT FOR EXPOSED CONCRETE SURFACES WHICH SHALL MEET CLASS A REQUIREMENTS IN ACCORDANCE WITH ACI 305.

GENERAL CONTRACTOR SHALL INVESTIGATE ACTUAL LOCATIONS OF UNDERGROUND LINES AND UTILITIES BEFORE EXCAVATING. ALL EXCAVATIONS NEAR THESE LINES SHALL BE CARRIED OUT WITH EXTREME CAUTION.

UNLESS OTHERWISE NOTED ALL REINFORCING STEEL SHALL BE DEFORMED BARS CONFORMING TO ASTM A 615 GRADE 60.

UNLESS OTHERWISE NOTED. ALL DETAILING, FABRICATION AND PLACING OF REINFORCING STEEL SHALL CONFORM TO THE MANUAL OF STANDARD PRACTICE FOR DETAILING REINFORCED CONCRETE STRUCTURES ACI SP–66, LATEST EDITION.

ALL BAR SPLICES SHALL BE CLASS C TENSION LAP SPLICES, UNLESS OTHERWISE SHOWN. PROVIDE STANDARD CORNER BARS AT ALL CORNERS.

PROVIDE MINIMUM OF 3" OF CONCRETE COVER FOR REINFORCING STEEL WHEN THE CONCRETE IS PLACED DIRECTLY AGAINST THE GROUND.

WELDED WIRE FABRIC SHALL CONFIRM TO ASTM A185.

WELDED WIRE FABRIC REINFORCEMENT MUST LAP ONE FULL MESH SIDE AND END AND MUST BE WIRED TOGETHER.

ALL SLAB AND FOUNDATION REINFORCEMENT SHALL BE TIED IN PLACE PRIOR TO PLACING CONCRETE.

HOLD UP REINFORCING WITH TYPICAL STANDARD CHAIRS.

REINFORCEMENT SHOWN SHALL BE USED AS DETAILING GUIDE. PROVIDE REINFORCEMENT BARS AS REQUIRED TO SUIT SPECIAL CONDITIONS.

CONTRACTOR SHALL COORDINATE EXACT ANCHOR BOLT LOCATIONS AND LAYOUT WITH BUILDING CODE REQUIREMENTS AND THIS DRAWING SET.

FLOOR JOINTS SHALL BE LOCATED AS INDICATED ON PLANS CONSTRUCTION JOINTS SHALL BE LOCATED AS REQUIRED FOR WORK SEQUENCE.

WALL FLOOR ROOF FRAMING GENERAL NOTES

COORDINATE LAYOUT OF FRAMING MEMBERS WITH ALL TRADES TO INSURE THAT JOISTS RAFTERS AND PLATES ARE NOT EXTENSIVELY NOTCHED CUT OR BOARD REFER TO IRC 206 CODE SSTD 10–99 AND AITC MANUAL FOR ALLOWABLE CUTTING NOTHING AND BORING OF FRAMING MEMBERS TRUSSES SHALL NOT BE CUT NOTCHED OR BOARD WITHOUT ENGINEERS WRITTEN APPROVAL.

THE ENGINEERING OF FRAMING MEMBERS SI BASED ON #2 SPRUCE OR #2 SOUTHERN YELLOW PINE FB=1200 PSI E=1,200,000 PSI SUBSTITUTION MUST BE APPROVED BY THE ENGINEER BEFORE USING

ALL CONNECTION STEEL ANGLES PLATES AND BOLTS AT MASONRY WALLS SHALL BE HOT DIPPED GALVANIZED IN ACCORDANCE WITH ASTM A–153.

ALL LUMBER IN CONTACT WITH CONCRETE MASONRY GROUND OR OTHERWISE NOTED ON THE DRAWING SET WILL BE PRESSURE TREATED IN ACCORDANCE WITH AWPI STANDARD LP–2.

ALL PLYWOOD SHEATHING WILL BEAR THE TRADEMARK OF THE AMERICAN PLYWOOD ASSOCIATION AND WILL MEET THE REQUIREMENTS OF PS1–83 OR APA PRP–108 WILL BE CLASSIFIED AS "EXTERIOR" APPLICATION WILL BE IN ACCORDANCE WITH RECOMMENDATIONS FORM PLYWOOD ASSOCIATION. ALL OSG BOARD SHEATHING WILL BE "EXTERIOR GRADE" EXCEPT ON INTERIOR WALLS.

WALL AND ROOF SHEATHING WILL BE NAILED WITH 8D NAILS (TWISTED SHANK) 3" O/C AROUND EDGES AND 6" O/C IN FIELD SEE DIAGRAM

GLAZED OPENINGS GENERAL NOTES

WINDOWS GLASS DOORS AND SKYLIGHTS SHALL BE APPROVED AND INSTALLED TO COMPLY WITH BOTH NEGATIVE AND POSITIVE PRESSURE AS REQUIRED BY SSTD 10–99 DOCUMENTATION OF COMPLIANCE SHALL BE AVAILABLE ON SITE FOR EACH WINDOW DOOR SKYLIGHT AT THE FRAMING INSPECTION.

ALL GLAZING IN DOORS WINDOWS SKYLIGHTS SHALL BE TESTED FOR LARGE MISSILE IMPACT RESISTANCE AS NOTED BELOW. OPTION FOR TWO STORY OR LESS WOOD FRAME STRUCTURE, WOOD STRUCTURAL PANELS FOR EACH WINDOW MAY BE PROVIDED. PANELS WILL HAVE A MINIMUM THICKNESS OF 7/16" AND A MAXIMUM SPAN OF 8'–0". PANELS MUST BE PRECUT TO SIZE AND ATTACHMENT HARDWARE PROVIDED. 3" LONG 1/4" DIAMETER SIMPSON SCREWS AT 12" O.C. AT PERIMETER OF PANEL EACH PANEL SHALL NE NUMBERED OR MARKED TO INDICATE WHICH WINDOW IT SHALL BE INSTALLED OVER (IBC 301.2.1.2 AND SSTD 1099.604

TEST REQUIREMENT NOTES:
WINDOWS ARE TESTED IN ACCORDANCE WITH AAMA 101/I.S.2.97 SPECIFICATIONS
TESTED LARGE MISSILE IMPACT RESISTANCE TO ASTM E1886/E1996
TESTED FORCED ENTRY RESISTANCE TO AAMA

TOWN OF THUNDERBOLT
PLANNING & ZONING APPLICATION
RESIDENTIAL OR COMMERCIAL

Date Filed 5/24/22 Application # _____ Residential: _____ Commercial: X

Application Fees: $100.00 – Residential $200.00 – Commercial
Fee must be paid at the time of submitting the application and is non-refundable, even if Applicant decides to redraw their application before or after the application process.

The original plus nine copies of this application shall be submitted. The building permit application and nine copies of the plot plan and development plans of the site, if required for the building permit application, shall accompany this application.

DESCRIPTION OF PROPERTY

Applicant's Name: Laurie deVegter + Anley Williams Phone # 912.220.0957

Applicant's Address: 322 e. Factors Walk Savannah GA 31401

2618 Mechanics Ave. 31404 30009 02006 + 30009 02006A
Property Address Parcel Number

Owner's Name & Address Pytouska Trimmer

Zoning District Victory Drive Current Use of Property vacant

Proposed Use of Property mixed use, professional use down + residential (2nd + 3rd up floor)

REASONS FOR APPLICATION

1. ( ) A decision of the Zoning Administrator which the applicant believes to be contrary to the meaning of the Zoning Ordinance.

2. ( ) An application to establish a use which must be approved by the Planning Board (See "Use Schedule – List of Uses #).

3. (X) A request for a variance ( ) a yard requirement; ( ) a lot width requirement; 50' setback from Victory is difficult to work with ( ) a lot area requirement. Note: Variances are heard and approved on a case by case basis; when resulting in practical difficulty or unnecessary hardship. Code of Ordinances 16.6c

4. ( ) A request for extension of non-conforming use.

5. ( ) Rezoning request from _____ classification to a _____ classification

6. (X) Other Hardship w/ regards to lot size + shape

Describe those things which you feel justify the action requested. List when necessary the specific Sections of the Zoning Ordinance which have a bearing on your request.
(Use back of this sheet if necessary.)

OTHER INFORMATION REQUIRED

Refer to Article XV, Zoning Ordinance

Attach, hereto, a scaled or dimensioned map, plat, or sketch of tract, of property in question and all other adjoining lots or properties under the same ownership. Said map, plat, or sketch shall indicate the approximate location of all the properties in question with respect to the nearby public roads in common use.

Date Received: _____ Zoning Administrator: _____

Name and Address of Contractor(s) Omega Construction

The following is a list of the names and addresses of all adjacent property owners within approximately a two-hundred (200) foot radius of the property:

Please see attached

(Please list additional names on a separate sheet)

I hereby certify that the above stated facts are True to the best of my knowledge and belief And that I am the owner or authorized agent for the owner of the subject property.

Owner or Authorized Agent's Signature

Sworn to and subscribed before me on this 25 day of May 2022.

Notary Public

BEATRE N. DENION NOTARY PUBLIC CHATHAM COUNTY, GA My Comm Exp. Nov. 26, 2022

Fee received and paid: 200.00

STATUS

Notice of hearing sent: _____ _____
Date

Sign Posted: _____ _____
Date Address

Published Advertisement: _____
Date

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BERKSHIRE HATHAWAY HomeServices
Bay Street Realty Group
Cora Bett Thomas Realty

LAND PURCHASE AND SALE AGREEMENT

Offer Date: March 19, 2022

Georgia REALTORS®

2022 Printing

A. KEY TERMS AND CONDITIONS

1. **Purchase and Sale.** The undersigned buyer(s) ("Buyer") agree to buy and the undersigned seller(s) ("Seller") agree to sell the real property described below including all fixtures, improvements and landscaping therein ("Property") on the terms and conditions set forth in this Agreement.
   a. **Property Identification:** Address: 2618 Mechanics Ave
   City Savannah, County Chatham County, Georgia, Zip Code 31404
   MLS Number: 265542 Tax Parcel I.D. Number: 3-0004-02-006 & 3-004-02-006A
   b. **Legal Description:** The legal description of the Property is *[select one of the following below]:*
   [X] (1) attached as an exhibit hereto;
   [ ] (2) the same as described in Deed Book _____, Page _____, et. seq., of the land records of the above county; **OR**
   [ ] (3) Land Lot(s) _____ of the _____ District, _____ Section/ GMD, Lot _____, Block _____, Unit _____, Phase/Section _____ of LOT AT THUNDERBOLT & VICTORY DRIVE NORTH OF CHURCH Subdivision/Development, according to the plat recorded in Plat Book _____, Page _____, et. seq., of the land records of the above county.

2. **Acreage.** A Controlling Survey of the Property will be obtained by [X] Buyer **OR** [ ] Seller and paid for by [ ] Buyer **OR** [ ] Seller.

3. **Purchase Price of Property to be Paid by Buyer.**
   $ 215,000.00 **OR**
   $ _____ per acre. If price is per acre, Seller's estimate of acreage is .33 acres.

4. **Closing Costs.**
   Seller's Contribution at Closing:
   $ N/A

5. **Closing Date and Possession.**
   Closing Date shall be May 25, 2022 with possession of the Property transferred to Buyer at [X] Closing **OR** [ ] _____ days after Closing at _____ o'clock [ ] AM [ ] PM (attach F219 Temporary Occupancy Agreement).

6. **Closing Law Firm.**
   Tom McNamara
   Phone Number: (912)355-1109

7. **Holder of Earnest Money ("Holder").** (If Holder is Closing Attorney, F510 must be attached as an exhibit hereto, and F511 must be signed by Closing Attorney.)
   Tom McNamara

8. **Earnest Money.** Earnest Money shall be paid by [X] check [ ] ACH [ ] cash or [ ] wire transfer of immediately available funds as follows:
   [ ] a. $ _____ as of the Offer Date.
   [X] b. $ 2,200.00 within 5 days from the Binding Agreement Date.
   [ ] c. _____.

9. **Inspection and Due Diligence.**
   a. **Due Diligence Period:** Property is being sold subject to a Due Diligence Period of 30 days from the Binding Agreement Date.
   b. **Option Payment for Due Diligence Period:** In consideration of Seller granting Buyer the option to terminate this Agreement, Buyer:
   (1) has paid Seller $10.00 in nonrefundable option money, the receipt and sufficiency of which is hereby acknowledged; plus
   (2) shall pay directly to Seller additional option money of $ N/A by [ ] check [ ] ACH or [ ] wire transfer of immediately available funds either [ ] as of the Offer Date; **OR** [ ] within ____ days from the Binding Agreement Date. Any additional option money paid by Buyer to Seller [ ] shall (subject to lender approval) or [ ] shall not be applied toward the purchase price at closing and shall not be refundable to Buyer unless the closing fails to occur due to the default of the Seller.

10. Property is currently zoned R 1 under the applicable zoning ordinances of Savannah, Thunderbolt City/County

11. **Assignment.** Buyer [ ] shall **OR** [ ] shall not have the right to assign this Agreement; **OR** [X] shall have the right to Assign this Agreement only to a legal entity in which Buyer owns at least a 25% interest .

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12. Brokerage Relationships in this Transaction.

a. Buyer's Broker is BHHS Cora Bett Thomas Realty **and is:**
- (1) ☐ representing Buyer as a client.
- (2) ☒ working with Buyer as a customer.
- (3) ☐ acting as a dual agent representing Buyer and Seller.
- (4) ☐ acting as a designated agent where:

_____ has been assigned to exclusively represent Buyer.

b. Seller's Broker is BHHS Cora Bett Thomas Realty **and is:**
- (1) ☒ representing Seller as a client.
- (2) ☐ working with Seller as a customer.
- (3) ☐ acting as a dual agent representing Buyer and Seller.
- (4) ☐ acting as a designated agent where:

_____ has been assigned to exclusively represent Seller.

c. Material Relationship Disclosure: The material relationships required to be disclosed by either Broker are as follows:
N/A

13. Time Limit of Offer. The Offer set forth herein expires at 5 o'clock p .m. on the date **March 20, 2022** .

Buyer(s) Initials JM 03-19-2022 Seller(s) Initials _____

B. FURTHER EXPLANATIONS TO CORRESPONDING PARAGRAPHS IN SECTION A.

1. **Purchase and Sale.**
   - a. **Warranty:** Seller warrants that at the time of closing Seller will convey good and marketable title to said Property by limited warranty deed subject only to: (1) zoning; (2) general utility, sewer, and drainage easements of record as of the Binding Agreement Date and upon which the improvements do not encroach; (3) declarations of condominium and declarations of covenants, conditions and restrictions of record on the Binding Agreement Date; and (4) leases and other encumbrances specified in this Agreement. Buyer agrees to assume Seller's responsibilities in any leases specified in this Agreement.
   - b. **Examination:** Buyer may examine title and/or obtain a survey of the Property and furnish Seller with a written statement of title objections at or prior to the closing. If Seller fails or is unable to satisfy valid title objections at or prior to the closing or any unilateral extension thereof, which would prevent the Seller from conveying good and marketable title to the Property, then Buyer, among its other remedies, may terminate the Agreement without penalty upon written notice to Seller. Good and marketable title as used herein shall mean title which a title insurance company licensed to do business in Georgia will insure at its regular rates, subject only to standard exceptions.
   - c. **Title Insurance:** Buyer hereby directs any mortgage lender involved in this transaction to quote the cost of title insurance based upon the presumption that Buyer will be obtaining an enhanced title insurance policy since such a policy affords Buyer greater coverage

2. **Acreage.** Buyer or Seller can terminate this Agreement if the Seller's estimate of the total acreage to be sold to Buyer is at least 15% more or less than the estimate.

3. **Purchase Price to be Paid by Buyer.** The Purchase Price shall be paid in U.S. Dollars at closing by wire transfer of immediately available funds, or such other form of payment acceptable to the closing attorney. If the Purchase Price is stated as a price per acre, the acreage shall be determined by a survey obtained in the accordance with the procedure below ("Controlling Survey"). The total purchase price shall be determined by multiplying the total number of acres, to the nearest one one-thousandth of an acre as determined by a survey prepared by a registered Georgia surveyor. In the event the Seller is in possession of a survey, to which Buyer agrees in writing shall constitute the Controlling Survey, then said survey be controlling as the exact amount of the acreage being purchased and sold herein. If no survey exists or the existing survey is not acceptable, then a new survey shall be prepared. If there are no objections to the new survey, then the new survey shall be the Controlling Survey to determine the acreage being purchased and sold herein. If there is a dispute by either party regarding the new survey, the dispute shall be resolved in accordance with the Survey Resolution Exhibit attached hereto.

   Buyer warrants that Buyer will have sufficient cash at closing, will allow Buyer to complete the purchase of Property. Buyer does not need to sell or lease other real property in order to complete the purchase of Property.

4. **Closing Costs and Prorations.**
   - a. **Seller's Contribution at Closing:** At closing, Seller shall make the referenced Seller's Monetary Contribution which Buyer may use to pay any cost or expense of Buyer related to this transaction. Buyer acknowledges that Buyer's mortgage lender(s) may not allow the Seller's Monetary Contribution, or the full amount thereof, to be used for some costs or expenses. In such event, any unused portion of the Seller's Monetary Contribution shall remain the property of the Seller. The Seller shall pay the fees and costs of the closing attorney: (1) to prepare and record title curative documents and (2) for Seller not attending the closing in person.
   - b. **Items Paid by Buyer:** At closing, Buyer shall pay: (1) Georgia property transfer tax; (2) the cost to search title and tax records and prepare the limited warranty deed; and (3) all other costs, fees and charges to close this transaction, except as otherwise provided herein.

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c. **Prorations:** Ad valorem property taxes, community association fees, solid waste and governmental fees and utility bills for which service cannot be terminated as of the date of closing shall be prorated as of the date of closing. Notwithstanding any provision to the contrary, in the event ad valorem property taxes are based upon an estimated tax bill or tax bill under appeal, Buyer and Seller shall, upon the issuance of the actual tax bill or the appeal being resolved, promptly make such financial adjustments between themselves as are necessary to correctly prorate the tax bill. In the event there are tax savings resulting from a tax appeal, third party professional costs to handle the appeal may be deducted from the savings for that tax year before re-prorating. Any pending tax appeal for the year in which the Property is sold shall be deemed assigned to Buyer at closing. The liability to the county and if applicable, city, in which the Property is located for ad valorem real property taxes for the year in which the Property is sold shall be assumed by Buyer upon the Closing of the Property. Buyer agrees to indemnify Seller against any and all claims of the county and if applicable, city, for unpaid ad valorem real property taxes for the year in which the Property is sold. In addition, if Buyer's change in the ownership or use of the Property will result in rollback taxes being owed (because preferential tax treatment of the Property for agricultural purposes can no longer be received) then Seller shall be solely responsible for the payment of all rollback taxes at Closing. Notwithstanding the above, in the event Buyer warrants to Seller herein that Buyer's use or ownership of the Property will qualify for a continuation of the preferential tax treatment of the Property as agricultural property, and Buyer is found to no longer qualify for the same, Buyer shall indemnify and hold Seller harmless from and against all liability for rollback taxes.

5. **Closing Date and Possession.**
   a. **Right to Extend the Closing Date:** Buyer or Seller may unilaterally extend the closing date for eight (8) days upon notice to the other party given prior to or on the date of closing if: (1) Seller cannot satisfy valid title objections (excluding title objections that: (a) can be satisfied through the payment of money or by bonding off the same; and (b) do not prevent Seller from conveying good and marketable title, as that term is defined herein, to the Property); (2) Buyer's mortgage lender (even in "all cash" transactions) or the closing attorney is delayed and cannot fulfill their respective obligations by the date of closing, provided that the delay is not caused by Buyer; or (3) Buyer has not received required estimates or disclosures and Buyer is prohibited from closing under federal regulations. The party unilaterally extending the closing date shall state the basis for the delay in the notice of extension. If the right to unilaterally extend the closing date is exercised once by either the Buyer or Seller, the right shall thereafter terminate.
   b. **Keys and Openers:** At Closing, Seller shall provide Buyer with all keys, door openers, codes and other similar equipment pertaining to the Property.

6. **Closing Law Firm.** Buyer shall have the right to select the closing attorney to close this transaction, and hereby selects the closing attorney referenced herein. In all cases where an individual closing attorney is named in this Agreement but the closing attorney is employed by or an owner, shareholder, or member in a law firm, the law firm shall be deemed to be the closing attorney. If Buyer's mortgage lender refuses to allow that closing attorney to close this transaction, Buyer shall select a different closing attorney acceptable to the mortgage lender. The closing attorney shall represent the mortgage lender in any transaction in which the Buyer obtains mortgage financing (including transactions where the method of payment referenced herein is "all cash"). In transactions where the Buyer does not obtain mortgage financing, the closing attorney shall represent the Buyer.

7. **Holder of Earnest Money.** The earnest money shall be deposited into Holder's escrow/trust account (with Holder being permitted to retain the interest if the account is interest bearing) not later than: (a) five (5) banking days after the Binding Agreement Date hereunder or (b) five (5) banking days after the date it is actually received if it is received after the Binding Agreement Date. If Buyer writes a check or pays with an ACH for earnest money and the same is deposited into Holder's escrow/trust account, Holder shall not return the earnest money until the check or ACH has cleared the account on which the check was written or from which the ACH was sent. In the event any earnest money check is dishonored by the bank upon which it is drawn, or earnest money is not timely paid, Holder shall promptly give notice of the same to Buyer and Seller. Buyer shall have three (3) banking days from the date of receiving the notice to cure the default and if Buyer does not do so, Seller may within seven (7) days thereafter terminate this Agreement upon notice to Buyer. If Seller fails to terminate the Agreement timely, Seller's right to terminate based on the default shall be waived.

8. **Earnest Money.**
   a. **Entitlement to Earnest Money:** Subject to the paragraph below, Buyer shall be entitled to the earnest money upon the: (1) failure of the parties to enter into a binding agreement; (2) failure of any unexpired contingency or condition to which this Agreement is subject; (3) termination of this Agreement due to the default of Seller; or (4) termination of this Agreement in accordance with a specific right to terminate set forth in the Agreement. Otherwise, the earnest money shall be applied towards the purchase price of the Property at closing or if other funds are used to pay the purchase price then the earnest money shall be returned to Buyer.
   b. **Disbursement of Earnest Money:** Holder shall disburse the earnest money upon: (1) the closing of Property; (2) a subsequent written agreement of Buyer and Seller; (3) an order of a court or arbitrator having jurisdiction over any dispute involving the earnest money; or (4) the failure of the parties to enter into a binding agreement (where there is no dispute over the formation or enforceability of the Agreement). In addition, Holder may disburse the earnest money upon a reasonable interpretation of the Agreement, provided that Holder first gives all parties at least ten (10) days notice stating to whom and why the disbursement will be made. Any party may object to the proposed disbursement by giving written notice of the same to Holder within the ten (10) day notice period. Objections not timely made in writing shall be deemed waived. If Holder receives an objection and, after considering it, decides to disburse the earnest money as originally proposed, Holder may do so and send notice to the parties of Holder's action. If Holder decides to modify its proposed disbursement, Holder shall first send a new ten (10) day notice to the parties stating the rationale for the modification and to whom the disbursement will now be made. Holder shall disburse the earnest money to Seller by check in the event Holder: (1) makes a reasonable interpretation of the Agreement that the Agreement has been terminated due to Buyer's default; and (2) sends the required ten (10) day notice of the proposed disbursement to Buyer and Seller. The above-referenced check shall constitute liquidated damages in full settlement of all claims of Seller against Buyer and the Brokers in this transaction. Holder may require Seller to sign a W-9 before issuing a check to Seller for liquidated damages of $600 or more. Such liquidated damages are a reasonable pre-estimate of Seller's actual damages, which damages the parties agree are difficult to ascertain and are not a penalty.

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c. **Interpleader:** If an earnest money dispute cannot be resolved after a reasonable time, Holder may interplead the earnest money into a court of competent jurisdiction if Holder is unsure who is entitled to the earnest money. Holder shall be reimbursed for and may deduct its costs, expenses and reasonable attorney's fees from any funds interpleaded. The prevailing defendant in the interpleader lawsuit shall be entitled to collect its attorney's fees, court costs and the amount deducted by Holder to cover Holder's costs and expenses from the non-prevailing defendant.

d. **Hold Harmless:** All parties hereby covenant and agree to: (1) indemnify and hold Holder harmless from and against all claims, injuries, suits and damages arising out of the performance by Holder of its duties; (2) not to sue Holder for any decision of Holder to disburse earnest money in accordance with this Agreement.

9. **Inspection and Due Diligence.**

a. **Right to Inspect Property:** Upon prior notice to Seller, Buyer and/or Buyer's representatives shall have the right to enter the Property at Buyer's expense and at reasonable times (including immediately prior to closing) to inspect, examine, test, appraise and survey Property. This right to enter shall include the time period after the end of any Due Diligence Period to, among other things, and without limitation, meet contractors and vendors, measure for renovations and confirm that any agreed upon repairs have been made and the Property otherwise remains in the same condition. Seller shall cause all utilities, systems and equipment to be on so that Buyer may complete all inspections. Buyer agrees to hold Seller and all Brokers harmless from all claims, injuries and damages relating to the exercise of these rights and shall promptly restore any portion of the Property damaged or disturbed from testing or other evaluations to a condition equal to or better than the condition it was in prior to such testing or evaluation. If Buyer is concerned that the Property may have been used as a laboratory for the production of methamphetamine, or as a dumpsite for the same, Buyer should review the National Clandestine Laboratory Register - Georgia at www.dea.gov.

b. **Duty to Inspect Neighborhood:** In every neighborhood there are conditions which different buyers may find objectionable. Buyer shall have the sole duty to become familiar with neighborhood conditions that could affect the Property such as landfills, quarries, power lines, airports, cemeteries, prisons, stadiums, odor and noise producing activities, crime and school, land use, government and transportation maps and plans. It shall be Buyer's sole duty to become familiar with neighborhood conditions of concern to Buyer. **If Buyer is concerned about the possibility of a registered sex offender residing in a neighborhood in which Buyer is interested, Buyer should review the Georgia Violent Sex Offender Registry available on the Georgia Bureau of Investigation Website at www.gbi.georgia.gov.**

c. **Warranties Transfer:** Seller agrees to transfer to Buyer, at closing, subject to Buyer's acceptance thereof (and at Buyer's expense, if there is any cost associated with said transfer), Seller's interest in any existing manufacturer's warranties, service contracts, termite treatment and/or repair guarantee and/or other similar warranties which, by their terms, may be transferable to Buyer.

d. **Property Sold "As-Is" Unless this Agreement is Subject to Due Diligence Period:**

(1) **General:** Unless the Property is being sold subject to a Due Diligence Period referenced herein, the Property shall be sold "as-is" with all faults. Even if the Property is sold "as-is" Seller is required under Georgia law to disclose to the Buyer latent or hidden defects in the Property which Seller is aware and which could not have been discovered by the Buyer upon a reasonable inspection of the property. The inclusion of a Due Diligence Period herein shall: (a) during its term make this Agreement an option contract in which Buyer may decide to proceed or not proceed with the purchase of the Property for any or no reason; and (b) be an acknowledgement by Seller that Buyer has paid separate valuable consideration of $10 for the granting of the option.

(2) **Purpose of Due Diligence Period:** During the Due Diligence Period, Buyer shall determine whether or not to exercise Buyer's option to proceed or not proceed with the purchase of the Property. If Buyer has concerns with the Property, Buyer may during the Due Diligence Period seek to negotiate an amendment to this Agreement to address such concerns.

(3) **Notice of Decision Not To Proceed:** Buyer shall have elected to exercise Buyer's option to purchase the Property unless prior to the end of any Due Diligence Period, Buyer notifies Seller of Buyer's decision not to proceed by delivering to Seller a notice of termination of this Agreement. In the event Buyer does not terminate this Agreement prior to the end of the Due Diligence Period, then: (a) Buyer shall have accepted the Property "as-is" subject to the terms of this Agreement; and (b) Buyer shall no longer have any right to terminate this Agreement based upon the Due Diligence Period.

e. **Repairs:** All agreed upon repairs and replacements shall be performed in a good and workmanlike manner prior to closing.

f. **Due Diligence Materials:** Seller shall provide to the Buyer within five (5) days from the Binding Agreement Date, the items below, if available, pertaining to the Property (hereinafter collectively referred to as "Due Diligence Materials").

(1) **Tax and Title:**

i. Most recent Property tax assessments and tax bills.
ii. The most recent title insurance policy insuring the Property, including complete and legible copies of all documents (whether or not recorded) which are referenced as title exceptions.
iii. The most recent ALTA (American Land Title Association) survey of the Property, or if such a survey is not available, the most recent survey of the Property prepared by a licensed Georgia surveyor.
iv. A list of special assessment districts in which the Property is located and the schedule of unpaid or pending assessments — if any.
v. A schedule of impact fees paid or owed on the Property, if any.

(2) **Environmental and Assessments:**

i. All soil reports covering the Property or any portion thereof.
ii. All cruise reports of existing timber on the Property.
iii. All environment (hazardous substances), engineering, physical inspection, marketing and feasibility studies, assessments and reports, including wetlands reports.

(3) **Leases:**

An executed copy of every lease of or affecting the Property or any portion thereof.

(4) **Miscellaneous:**

i. A schedule of management fees due in connection with any agreements pertaining to the Property.
ii. All municipal, county, state or federal permits, licenses and authorizations affecting the use, operation, and maintenance of the Property."

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10. **Sellers Warranties and Representations.** Except to the extent provided in Exhibit ___ to this Agreement, Seller warrants as follows:
    a. **Authority.** Seller has the right, power and authority to enter into this Agreement and to convey Property in accordance with the terms and conditions of this Agreement; and the persons executing this Agreement on behalf of Seller have been duly and validly authorized by Seller to execute and deliver this Agreement and have the right, power and authority to enter into this Agreement and bind Seller.
    b. **Bankruptcy.** Seller represents and warrants that Seller is solvent and has not made a general assignment for the benefit of creditors or been adjudicated as bankrupt or insolvent, nor has a receiver, liquidator or trustee of Seller or any of its respective properties (including Property) been appointed or a petition filed by or against Seller for bankruptcy, reorganization or arrangement pursuant to the Federal Bankruptcy Act or any similar federal or state statute, or any proceeding instituted for the dissolution or liquidation of Seller.
    c. **Condemnation.** Seller has not been notified that any condemnation or other taking by eminent domain of Property or any portion thereof has been instituted and, to the best of Seller's knowledge, there are no pending or threatened condemnation or eminent domain proceedings (or proceedings in the nature or in lieu thereof) affecting Property or any portion thereof or its use.
    d. **Hazardous Substances.** To the best of Seller's knowledge, (1) no "hazardous substances", as that term is defined in the Comprehensive Environmental Response, Compensation, and Liability Act, and the rules and regulations promulgated pursuant thereto, or any other pollutants, toxic materials, or contaminants have been or shall prior to closing be discharged, disbursed, released, stored, treated, generated, disposed of, or allowed to escape on Property in violation of applicable law; (2) no underground storage tanks are located on the Property or were located on the Property and subsequently removed or filled; (3) Property has not previously been used as a gas station, cemetery, landfill, or as a dump for garbage or refuse; and (4) Property has not previously been and is not currently listed on the Georgia Environmental Protection Division Hazardous Site. Seller has not received any notice or demand from any governmental or regulatory agency or authority requiring Seller to remove any hazardous substances or contaminants or toxic materials from Property.
    e. **Leases.** Other than those leases provided by Seller to Buyer as part of the Due Diligence Materials, there are no other leases of or affecting the Property or any portion thereof and Seller will not enter into any new leases without the written permission of Buyer.
    f. **No Litigation.** There are no actions, suits, or proceedings pending or, to the best of Seller's knowledge, threatened by any organization, person, individual, or governmental agency against Seller with respect to Property or against Property, or with respect thereto, nor does Seller know of any basis for such action. Seller also has no knowledge of any currently pending application for changes in the zoning applicable to Property or any portion thereof.
    g. **Pre-Existing Right to Acquire.** No person or entity has any right or option to acquire Property or any portion thereof, which will have any force of effect after execution hereof, other than Buyer.
    h. **Proceedings Affecting Access.** Seller has not been notified that there are any pending proceedings that could have the effect of impairing or restricting access between Property and adjacent public roads and, to the best of Seller's knowledge, no such proceedings are pending or threatened.
    i. **Violations.** To the best of Seller's knowledge, there are no violations of laws, municipal or county ordinances or other legal requirements with respect to Property (excluding any improvements constructed thereon).

11. **Assignment.** In the event Buyer has the right to assign this Agreement, the assignment shall not release Buyer of any of its obligations or liabilities hereunder. Notice of such assignment shall be provided to Seller at least five (5) days prior to Closing.

12. **Brokerage Relationships in this Transaction.**
    a. **Agency Disclosure:** No Broker in this transaction shall owe any duty to Buyer or Seller greater than what is set forth in their brokerage engagements and the Brokerage Relationships in Real Estate Transactions Act, O.C.G.A. § 10-6A-1 et. seq.;
        (1) **No Agency Relationship:** Buyer and Seller acknowledge that, if they are not represented by Brokers in a client relationship, they are each solely responsible for protecting their own interests, and that Broker's role is limited to performing ministerial acts for that party.
        (2) **Consent to Dual Agency:** If Broker is acting as dual agent in this transaction, Buyer and Seller consent to the same and acknowledge having been advised of the following:
            i. **Dual Agency Disclosure:** *[Applicable only if Broker is acting as a dual agent in this transaction.]*
                (a) As a dual agent, Broker is representing two clients whose interests are or at times could be different or even adverse;
                (b) Broker will disclose all adverse material facts relevant to the transaction and actually known to the dual agent to all parties in the transaction except for information made confidential by request or instructions from each client which is not otherwise required to be disclosed by law;
                (c) Buyer and Seller do not have to consent to dual agency and the consent of Buyer and Seller to dual agency has been given voluntarily and the parties have read and understand their brokerage engagement agreements.
                (d) Notwithstanding any provision to the contrary contained herein Buyer and Seller each hereby direct Broker while acting as a dual agent to keep confidential and not reveal to the other party any information which could materially and adversely affect their negotiating position.
            ii. **Designated Agency Disclosure:** If Broker in this transaction is acting as a designated agent, Buyer and Seller consent to the same and acknowledge that each designated agent shall exclusively represent the party to whom each has been assigned as a client and shall not represent in this transaction the client assigned to the other designated agent.
    b. **Brokerage:** Seller has agreed to pay Seller's Broker(s) a commission pursuant to a separate brokerage engagement agreement entered into between the parties and incorporated herein by reference ("Seller Brokerage Engagement Agreement"). The Seller's Broker has agreed to share that commission with the Buyer's Broker. The closing attorney is hereby authorized and directed to pay the Broker(s) at closing, their respective portions of the commissions out of the proceeds of the sale. If the sale proceeds are insufficient to pay the full commission, the party owing the commission shall pay any shortfall at closing. The acceptance by the Broker(s) of a partial real estate commission at the closing shall not relieve the party owing the same from paying the remainder after the closing (unless the Broker(s) have expressly and in writing agreed to accept the amount paid in full satisfaction of the Broker(s) claim to a commission). The Brokers herein are signing this Agreement to reflect their role in this transaction and consent to act as Holder if either of them is named as such. This Agreement and any amendment thereto shall be enforceable even without the signature of any Broker referenced herein. The broker(s) are express third-party beneficiaries to this Agreement.

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c. **Disclaimer:** Buyer and Seller have not relied upon any advice or representations of Brokers other than what is included in this Agreement. Brokers shall have no duty to inspect the Property or to advise Buyer or Seller on any matter relating to the Property which could have been revealed through a survey, appraisal, title search, Official Georgia Wood Infestation Report, utility bill review, septic system inspection, well water test, tests for radon, asbestos, mold, methamphetamine, and lead-based paint; moisture test of stucco or synthetic stucco, inspection of the Property by a professional, construction expert, structural engineer or environmental engineer; review of this Agreement and transaction by an attorney, financial planner, mortgage consultant or tax consultant; and consulting appropriate governmental officials to determine, among other things and without limitation, the zoning of Property, the propensity of the Property to flood, flood zone certifications, whether any condemnation action is pending or has been filed or other nearby governmental improvements are planned. Buyer and Seller acknowledge that Broker does not perform or have expertise in any of the above tests, inspections, and reviews or in any of the matters handled by the professionals referenced above. Buyer and Seller should seek independent expert advice regarding any matter of concern to them relative to the Property and this Agreement. Buyer and Seller acknowledge that Broker shall not be responsible to monitor, supervise, or inspect any construction or repairs to Property and such tasks clearly fall outside the scope of real estate brokerage services. If Broker has written any special stipulations herein, the party for whom such special stipulations were written: a) confirms that each such stipulation reflects the party's complete understanding as to the substance and form of the special stipulations; b) hereby adopts each special stipulation as the original work of the party; and c) hereby agrees to indemnify and hold Broker who prepared the stipulation harmless from any and all claims, causes of action, suits, and damages arising out of or relating to such special stipulation. Buyer acknowledges that when and if Broker answers a question of Buyer or otherwise describes some aspect of the Property or the transaction, Broker is doing so based upon information provided by Seller rather than the independent knowledge of Broker (unless Broker makes an independent written disclosure to the contrary).

13. **Time Limit of Offer.** The Time Limit of the Offer shall be the date and time referenced herein when the Offer expires unless prior to that date and time both of the following have occurred: (a) the Offer has been accepted by the party to whom the Offer was made; and (b) notice of acceptance of the Offer has been delivered to the party who made the Offer.

C. OTHER TERMS AND CONDITIONS

1. **Notices.**
   a. **Generally:** All notices given hereunder shall be in writing, legible and signed by the party giving the notice. In the event of a dispute regarding notice, the burden shall be on the party giving notice to prove delivery. The requirements of this notice paragraph shall apply even prior to this Agreement becoming binding. Notices shall only be delivered: (1) in person; (2) by courier, overnight delivery service or by certified or registered U.S. mail (hereinafter collectively "Delivery Service"); or (3) by e-mail or facsimile. The person delivering or sending the written notice signed by a party may be someone other than that party.
   b. **Delivery of Notice:** A notice to a party shall be deemed to have been delivered and received upon the earliest of the following to occur: (1) the actual receipt of the written notice by a party; (2) in the case of delivery by a Delivery Service, when the written notice is delivered to an address of a party set forth herein (or subsequently provided by the party following the notice provisions herein), provided that a record of the delivery is created; (3) in the case of delivery electronically, on the date and time the written notice is electronically sent to an e-mail address or facsimile number of a party herein (or subsequently provided by the party following the notice provisions herein) even if it is not opened by the recipient. Notice to a party shall not be effective unless the written notice is sent to an address, facsimile number or e-mail address of the party set forth herein (or subsequently provided by the party following the notice provisions herein).
   c. **When Broker Is Authorized to Accept Notice for Client:** Except where the Broker is acting in a dual agency capacity, the Broker and any affiliated licensee of the Broker representing a party in a client relationship shall be authorized agents of the party for the limited purpose of receiving notice and such notice to any of them shall for all purposes herein be deemed to be notice to the party. Notice to an authorized agent shall not be effective unless the written notice is sent to an address, facsimile number or e-mail address of the authorized agent set forth herein (or subsequently provided by the authorized agent following the notice provisions herein) even if it is not opened by the recipient. Except as provided for herein, the Broker's staff at a physical address set forth herein of the Broker or the Broker's affiliated licensees are authorized to receive notices delivered by a Delivery Service. The Broker, the Broker's staff and the affiliated licensees of the Broker shall not be authorized to receive notice on behalf of a party in any transaction in which a brokerage engagement has not been entered into with the party or in which the Broker is acting in a dual agency capacity. In the event the Broker is practicing designated agency, only the designated agent of a client shall be an authorized agent of the client for the purposes of receiving notice.

2. **Default.**
   a. **Remedies of Seller:** In the event this Agreement fails to close due to the default of Buyer, Seller's sole remedy shall be to retain the earnest money as full liquidated damages. Seller expressly waives any right to assert a claim for specific performance. The parties expressly agree that the earnest money is a reasonable pre-estimate of Seller's actual damages, which damages the parties agree are difficult to ascertain. The parties expressly intend for the earnest money to serve as liquidated damages and not as a penalty.
   b. **Remedies of Buyer:** In the event this Agreement fails to close due to the default of Seller, Buyer may either seek the specific performance of this Agreement or terminate this Agreement upon notice to Seller and Holder, in which case all earnest money deposits and other payments Buyer has paid towards the purchase of the Property shall be returned to Buyer following the procedures set forth elsewhere herein.
   c. **Rights of Broker:** In the event this Agreement is terminated or fails to close due to the default of a party hereto, the defaulting party shall pay as liquidated damages to every broker involved in this Agreement the commission the broker would have received had the transaction closed. For purposes of determining the amount of liquidated damages to be paid by the defaulting party, all written agreements establishing the amount of commission to be paid to any broker involved in this transaction are incorporated herein by reference. The liquidated damages referenced above are a reasonable pre-estimate of the Broker(s) actual damages and are not a penalty.

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d. **Attorney's Fees:** In any litigation or arbitration arising out of this Agreement, including but not limited to breach of contract claims between Buyer and Seller and commission claims brought by a broker, the non-prevailing party shall be liable to the prevailing party for its reasonable attorney's fees and expenses.

3. **Risk of Damage to Property.** Seller warrants that at the time of closing the Property and all items remaining with the Property, if any, will be in substantially the same condition (including conditions disclosed in the Seller's Property Disclosure Statement or Seller's Disclosure of Latent Defects and Fixtures Checklist) as of the Offer Date, except for changes made to the condition of Property pursuant to the written agreement of Buyer and Seller. At time of possession, Seller shall deliver Property clean and free of trash, debris, and personal property of Seller not identified as remaining with the Property. Notwithstanding the above, if the Property is destroyed or substantially destroyed prior to closing, Seller shall promptly give notice to Buyer of the same and provide Buyer with whatever information Seller has regarding the availability of insurance and the disposition of any insurance claim. Buyer or Seller may terminate this Agreement without penalty not later than fourteen (14) days from receipt of the above notice. If Buyer or Seller do not terminate this Agreement, Seller shall assign at closing all of its rights to receive the proceeds from all insurance policies affording coverage for the claim. If the insurance proceeds are paid prior to Closing, the amount of such proceeds shall be credited against the purchase price of the Property.

4. **Other Provisions.**
   a. **Condemnation:** Seller shall: (1) immediately notify Buyer if the Property becomes subject to a condemnation proceeding; and (2) provide Buyer with the details of the same. Upon receipt of such notice, Buyer shall have the right, but not the obligation for 7 days thereafter, to terminate this Agreement upon notice to Seller in which event Buyer shall be entitled to a refund of all earnest money and other monies paid by Buyer toward the Property without deduction or penalty. If Buyer does not terminate the Agreement within this time frame, Buyer agrees to accept the Property less any portion taken by the condemnation and if Buyer closes, Buyer shall be entitled to receive any condemnation award or negotiated payment for all or a portion of the Property transferred or conveyed in lieu of condemnation.
   b. **Consent to Share Non-Public Information:** Buyer and Seller hereby consent to the closing attorney preparing and distributing an American Land Title Association ("ALTA") Estimated Settlement Statement-Combined or other combined settlement statement to Buyer, Seller, Brokers and Brokers' affiliated licensees working on the transaction reflected in this Agreement for their various uses.
   c. **Duty to Cooperate:** All parties agree to do all things reasonably necessary to timely and in good faith fulfill the terms of this Agreement. Buyer and Seller shall execute and deliver such certifications, affidavits, and statements required by law or reasonably requested by the closing attorney, mortgage lender and/or the title insurance company to meet their respective requirements.
   d. **Electronic Signatures:** For all purposes herein, an electronic or facsimile signature shall be deemed the same as an original signature; provided, however, that all parties agree to promptly re-execute a conformed copy of this Agreement with original signatures if requested to do so by, the buyer's mortgage lender or the other party.
   e. **Entire Agreement and Modification:** This Agreement constitutes the sole and entire agreement between all of the parties, supersedes all of their prior written and verbal agreements and shall be binding upon the parties and their successors, heirs and permitted assigns. No representation, promise or inducement not included in this Agreement shall be binding upon any party hereto. This Agreement may not be amended or waived except upon the written agreement of Buyer and Seller. Any agreement to terminate this Agreement or any other subsequent agreement of the parties relating to the Property must be in writing and signed by the parties.
   f. **Extension of Deadlines:** No time deadline under this Agreement shall be extended by virtue of it falling on a Saturday, Sunday or federal holiday except for the date of closing.
   g. **GAR Forms:** The Georgia Association of REALTORS®, Inc. ("GAR") issues certain standard real estate forms. These GAR forms are frequently provided to the parties in real estate transactions. No party is required to use any GAR form. Since these forms are generic and written with the interests of multiple parties in mind, they may need to be modified to meet the specific needs of the parties using them. If any party has any questions about his or her rights and obligations under any GAR form, he or she should consult an attorney. Provisions in the GAR Forms are subject to differing interpretations by our courts other than what the parties may have intended. At times, our courts may strike down or not enforce provisions in our GAR Forms, as written. No representation is made that the GAR Forms will protect the interests of any particular party or will be fit for any specific purpose. The parties hereto agree that the GAR forms may only be used in accordance with the licensing agreement of GAR. While GAR forms may be modified by the parties, no GAR form may be reproduced with sections removed, altered or modified unless the changes are visible on the form itself or in a stipulation, addendum, exhibit or amendment thereto.
   h. **Governing Law and Interpretation:** This Agreement may be signed in multiple counterparts each of which shall be deemed to be an original and shall be interpreted in accordance with the laws of Georgia. No provision herein, by virtue of the party who drafted it, shall be interpreted less favorably against one party than another. All references to time shall mean the time in Georgia. If any provision herein is held to be unenforceable, it shall be severed from this Agreement while the remainder of the Agreement shall, to the fullest extent permitted by law, continue to have full force and effect as a binding contract.
   i. **No Authority to Bind:** No Broker or affiliated licensee of Broker, by virtue of this status, shall have any authority to bind any party hereto to any contract, provisions therein, amendments thereto, termination thereof or to notices signed by Broker but not the party. However, if authorized in this Agreement, Broker shall have the right to accept notices on behalf of a party (but not send notices from Broker on behalf of a party unless they are signed by the party). Additionally, any Broker or real estate licensee involved in this transaction may perform the ministerial act of filling in the Binding Agreement Date. In the event of a dispute over the Binding Agreement Date, it shall be resolved by a court arbitrator having jurisdiction over the dispute, by the written agreement of the Buyer and Seller, or by the Holder but only in making a reasonable interpretation of the Agreement in disbursing earnest money.
   j. **Notice of Binding Agreement Date:** The Binding Agreement Date shall be the date when a party to this transaction who has accepted an offer or counteroffer to buy or sell real property delivers notice of that acceptance to the party who made the offer or counteroffer in accordance with the Notices section of the Agreement. Notice of the Binding Agreement Date may be delivered by either party (or the Broker working with or representing such party) to the other party. If notice of accurate Binding Agreement Date is delivered, the party receiving notice shall sign the same and immediately return it to the other party. Notwithstanding any other provision to the contrary contained in this Agreement, it is the express intent of this section that (1) a broker or licensee involved in the real estate transaction may perform the ministerial task of filling in the Binding Agreement Date and (2) sending a fully signed purchase and sale agreement with a specific Binding Agreement Date included, that one of the parties has agreed to, constitutes notice of the Binding Agreement Date to the other party.

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k. **Objection to Binding Agreement Date:** If the Buyer or Seller objects to the date entered as the Binding Agreement Date, then within one (1) day from receiving notice of Binding Agreement Date, the party objecting shall send notice of the objection to the other party. The objection shall be resolved by the written amendment between the Buyer and Seller by executing a binding agreement date confirmation (F733). The absence of an agreement on the Binding Agreement Date shall not render this Agreement unenforceable. The failure of a party to timely object will result in the parties accepting the Binding Agreement Date as entered.

l. **Rules for Interpreting This Agreement:** In the event of internal conflicts or inconsistencies in this Agreement, the following rules for how those conflicts or inconsistencies shall be resolved will apply:
   (1) Handwritten changes shall control over pre-printed or typed provisions;
   (2) Exhibits shall control over the main body of the Agreement;
   (3) Special Stipulations shall control over both exhibits and the main body of the Agreement;
   (4) Notwithstanding the above, any amendatory clause in an FHA or VA exhibit shall control over inconsistent or conflicting provisions contained in a special stipulation, another exhibit or the main body of the Agreement.

m. **Statute of Limitations:** All claims of any nature whatsoever against Broker(s) and/or their affiliated licensees, whether asserted in litigation or arbitration sounding in breach of contract and/or tort, must be brought within two (2) years from the date any claim or cause of action arises. Such actions shall thereafter be time-barred.

n. **Survival of Agreement:** The following shall survive the closing of this Agreement: (1) the obligation of a party to pay a real estate commission; (2) any warranty of title; (3) all written representations of Seller in this Agreement regarding the Property or neighborhood in which the Property is located; (4) the section on condemnation; (5) the section on attorney's fees; (6) the obligations of the parties regarding ad valorem real property taxes; and (7) any obligations which the parties herein agree shall survive the closing or may be performed or fulfilled after the Closing.

o. **Terminology:** As the context may require in this Agreement: (1) the singular shall mean the plural and vice versa; and (2) all pronouns shall mean and include the person, entity, firm, or corporation to which they relate. The letters "N.A." or "N/A", if used in this Agreement, shall mean "Not Applicable", except where the context would indicate otherwise.

p. **Time of Essence:** Time is of the essence of this Agreement.

5. **Definitions.**

a. **Banking Day**: A "Banking Day" shall mean a day on which a bank is open to the public for carrying out substantially all of its banking functions. For purposes herein, a "Banking Day" shall mean Monday through Friday excluding federal holidays.

b. **Binding Agreement Date**: The "Binding Agreement Date" shall be the date when a party to this transaction who has accepted an offer or counteroffer to buy or sell real property delivers notice of that acceptance to the party who made the offer or counteroffer in accordance with the Notices section of the Agreement. Once that occurs, this Agreement shall be deemed a Binding Agreement.

c. **Broker**: In this Agreement, the term "Broker" shall mean a licensed Georgia real estate broker or brokerage firm and its affiliated licensees unless the context would indicate otherwise.

d. **Business Day**: A "Business Day" shall mean a day on which substantially all businesses are open for business. For all purposes herein, a "Business Day" shall mean Monday through Friday excluding federal holidays.

e. **Day**: For the purposes of this Agreement, the term "Day" shall mean a full calendar day ending at 11:59 p.m., except as may be provided for elsewhere herein. For the purposes of counting days for determining deadlines, the specific date referenced as either the Binding Agreement Date or the date from which the deadline shall be counted will be day zero.

f. **Material Relationship**: A material relationship shall mean any actually known personal, familial, social, or business relationship between the broker or the broker's affiliated licensees and any other party to this transaction which could impair the ability of the broker or affiliated licensees to exercise fair and independent judgment relative to their client.

6. **Property Not Being Sold for Value of Any Improvements on Land.** Buyer acknowledges that the Property may contain certain incidental improvements such as existing homes, barns, fences, outbuildings and wells. Buyer acknowledges that the Property is being purchased for the value of the land rather than the value of any improvements presently located thereon. All improvements are being sold in "as-is" condition. Buyer acknowledges that the improvements on the Property, if any, may be in need of significant repair, may contain defective conditions and may not have been constructed or used in accordance with all applicable laws. Since the condition of any existing improvements is immaterial to Buyer's decision to purchase the Property, Seller shall have no responsibility to make any disclosures or repairs relative to the same. Buyer covenants not to sue Seller with respect to any matter relating to the condition of said improvements and agrees to indemnify and hold Seller harmless with respect to the same. Buyer expressly waives: (1) any and all rights to inspect and test for lead-based paint and/or lead-based paint hazards for not less than ten (10) days from the Binding Agreement Date; and (2) the right not to be contractually obligated under this Agreement until the above time period has lapsed.

7. **WARNING TO BUYERS AND SELLERS: BEWARE OF CYBER-FRAUD.** Fraudulent e-mails attempting to get the buyer and/or seller to wire money to criminal computer hackers are increasingly common in real estate transactions. Specifically, criminals are impersonating the online identity of the actual mortgage lender, closing attorney, real estate broker or other person or companies involved in the real estate transaction. In that role, the criminals send fake wiring instructions attempting to trick buyers and/or sellers into wiring them money related to the real estate transaction, including, for example, the buyer's earnest money, the cash needed for the buyer to close, and/or the seller's proceeds from the closing. These instructions, if followed, will result in the money being wired to the criminals. In many cases, the fraudulent email is believable because it is sent from what appears to be the email address/domain of the legitimate company or person responsible for sending the buyer or seller wiring instructions. The buyer and/or seller should verify wiring instructions sent by email by independently looking up and calling the telephone number of the company or person purporting to have sent them. Buyers and sellers should never call the telephone number provided with wiring instructions sent by email since they may end up receiving a fake verification from the criminals. Buyer and sellers should be on special alert for: 1) emails directing the buyer and/or seller to wire money to a bank or bank account in a state other than Georgia; and 2) emails from a person or company involved in the real estate transaction that are slightly different (often by one letter, number, or character) from the actual email address of the person or company.

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8. **LIMITATION OF LIABILITY. BUYER AND SELLER ACKNOWLEDGE THAT BROKER(S):**
   a. **SHALL, UNDER NO CIRCUMSTANCES, HAVE ANY LIABILITY GREATER THAN THE AMOUNT OF THE REAL ESTATE COMMISSION PAID HEREUNDER TO BROKER (EXCLUDING ANY COMMISSION AMOUNT PAID TO A COOPERATING REAL ESTATE BROKER, IF ANY) OR, IF NO REAL ESTATE COMMISSION IS PAID TO BROKER, THAN A SUM NOT TO EXCEED $100; AND**
   b. **NOTWITHSTANDING THE ABOVE, SHALL HAVE NO LIABILITY IN EXCESS OF $100 FOR ANY LOSS OF FUNDS AS THE RESULT OF WIRE OR CYBER FRAUD.**

9. **Exhibits and Addenda**. All exhibits and/or addenda attached hereto, listed below, or referenced herein are made a part of this Agreement.
   - ☐ Back-up Agreement Contingency Exhibit (F604) "_____"
   - ☒ Closing Attorney Acting as Holder of Earnest Money Exhibit (F510) "A"
   - ☐ Community Association Disclosure Exhibit (F322) "_____"
   - ☒ Legal Description Exhibit (F807 or other) "B"
   - ☐ Seller's Property Disclosure Statement Exhibit (F302, F307) "_____"
   - ☐ Special Title Exceptions Pertaining to Property as Exhibit "_____"
   - ☐ Special Warranties and Representations of Seller as Exhibit "_____"
   - ☐ Survey of Property as Exhibit "_____"
   - ☐ Temporary Occupancy Agreement for Seller after Closing Exhibit (F219) "_____"
   - ☒ Other **Agreement of Closing Attorney to Act as Holder of Earnest Money**
   - ☐ Other _____
   - ☐ Other _____
   - ☐ Other _____

SPECIAL STIPULATIONS: The following Special Stipulations are made a part of this Agreement.
All parties acknowledge and agree:

1.) Contingent on Town Council approval of plan for residential structure
2.) Closing date will be 2 weeks after Town approves plan.

☐ **Additional Special Stipulations (F246) are attached.**

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By signing this Agreement, Buyer and Seller acknowledge that they have each read and understood this Agreement and agree to its terms.

Buyer Acceptance and Contact Information

1 **Buyer's Signature** Laurie Herrin DeVegter

Laurie Herrin DeVegter 03-19-2022 1:06 PM EDT
Print or Type Name Date

Buyer's Address for Receiving Notice

Buyer's Phone Number: ☐ Cell ☐ Home ☐ Work

Buyer's E-mail Address

2 **Buyer's Signature**

Print or Type Name Date

Buyer's Address for Receiving Notice

Buyer's Phone Number: ☐ Cell ☐ Home ☐ Work

Buyer's E-mail Address

☐ **Additional Signature Page (F267) is attached.**

Seller Acceptance and Contact Information

1 **Seller's Signature**

Grazyna Pytowska
Print or Type Name Date

Seller's Address for Receiving Notice

Seller's Phone Number: ☐ Cell ☐ Home ☐ Work

Seller's E-mail Address

2 **Seller's Signature**

Print or Type Name Date

Seller's Address for Receiving Notice

Seller's Phone Number: ☐ Cell ☐ Home ☐ Work

Seller's E-mail Address

☐ **Additional Signature Page (F267) is attached.**

Buyer's Broker/Affiliated Licensee Contact Information

BHHS Cora Bett Thomas Realty
Buyer Brokerage Firm

Liza DiMarco 03-19-2022 12:49 PM EDT
Broker/Affiliated Licensee Signature Date

Liza DiMarco **364345**
Print or Type Name GA Real Estate License #

Licensee's Phone Number Fax Number

Licensee's E-mail Address

SAR
REALTOR® Membership

5 E Perry St, Savannah GA
Broker's Address
Savannah, GA 31401

(912)233-6000
Broker's Phone Number Fax Number

2711 **H-77215**
MLS Office Code Brokerage Firm License Number

Seller's Broker/Affiliated Licensee Contact Information

BHHS Cora Bett Thomas Realty
Seller Brokerage Firm

Broker/Affiliated Licensee Signature Date

Liza DiMarco **364345**
Print or Type Name GA Real Estate License #

(805)450-3795
Licensee's Phone Number Fax Number

ldimarco@baystreetrealtygroup.com
Licensee's E-mail Address

SAR
REALTOR® Membership

5 E Perry St
Broker's Address
Savannah, GA 31401-3916

(912)233-6000 **(912)233-2447**
Broker's Phone Number Fax Number

2711 **H-77215**
MLS Office Code Brokerage Firm License Number

Binding Agreement Date: The Binding Agreement Date in this transaction is the date of _____ and has been filled in by _____.

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BERKSHIRE HATHAWAY HomeServices
Bay Street Realty Group
Cora Bett Thomas Realty

CLOSING ATTORNEY ACTING AS HOLDER OF EARNEST MONEY EXHIBIT " B "

[Closing Attorney must still consent to serve as Holder using F511]

Georgia REALTORS®

2022 Printing

This Exhibit is part of the Agreement with an Offer Date of **03/19/2022** for the purchase and sale of that certain property known as: **2618 Mechanics Ave** **Savannah**, Georgia **31404** ("Agreement").

1. **Closing Attorney Shall Act as Holder.** The Closing Attorney named in this Agreement shall be the Holder of the earnest money and other trust funds referenced in this Agreement subject to the Closing Attorney timely: a) agreeing to serve; b) signing the appropriate documents; and c) timely delivering the same to Buyer and Seller as more particularly described below.
2. **Buyer Must Timely Deliver Certain Documents to Closing Attorney Acting as Holder of Earnest Money.** When the Closing Attorney has been named as Holder in the Agreement, Buyer must deliver to Closing Attorney within two (2) business days from the Binding Agreement Date: a) the fully-signed and executed Agreement in its entirety ("Entire Contract"); and b) a copy or copies of the Escrow Agreement (F511) for the Closing Attorney to sign agreeing to become the Holder. Buyer must similarly deliver to Holder all amendments to the Entire Contract within two (2) business days of the date that the Amendment becomes binding.
3. **Closing Attorney Must Agree to Become Holder Within Three (3) Business Days of Receiving Entire Contract.** The Closing Attorney named as Holder shall not become the Holder unless within three (3) business days from the date that the Closing Attorney receives the Entire Contract, the Closing Attorney has: a) countersigned the Agreement of Closing Attorney to serve as Holder (GAR Form F511, and sometimes referred to as "Escrow Agreement") without change or modification so except for filling in the blanks contained therein; and b) delivered the same to Buyer and Seller. When this occurs, Closing Attorney's rights and duties as Holder and the timeframe for completing the same shall commence.
4. **Rights and Duties of Closing Attorney Acting as Holder.** Notwithstanding any provision to the contrary contained in the Agreement, Closing Attorney acting as Holder shall have all of the pre-printed rights and duties of Holder set forth in the GAR Purchase and Sale Agreement (a copy of which is incorporated herein by reference), regardless of whether such rights and duties are set forth in this Agreement. In the event of a conflict between this Agreement and the pre-printed right and duties of Holder set forth in the GAR Purchase and Sale Agreement, the latter shall control unless otherwise agreed to in writing by Buyer, Seller, and Holder.
5. **Earnest Money Must Be Paid to Closing Attorney Acting as Holder by Wire Transfer.** Buyer shall be responsible for paying all earnest money and other Buyer trust funds to the Closing Attorney acting as Holder by wire transfer of immediately available funds or by such other method deemed acceptable and/or required by Closing Attorney, as the case may be.
6. **Failure of Closing Attorney to Become Holder.** If the Closing Attorney named as Holder has not become Holder because the Closing Attorney rejects being the Holder or fails to timely become Holder, then: a) the Alternate Holder named below, who must be a broker in this transaction, shall automatically become the Holder instead of the Closing Attorney; b) all parties consent to the earnest money being paid or transferred to the Alternate Holder; and c) all parties shall cooperate with one another to sign any documents required to accomplish the same. The signature of the Alternate Holder to the Agreement at the time it is first signed shall be deemed consent of the Alternate Holder to serve as Holder. The Alternate Holder's duties and the timeline for performing those duties shall commence when the Alternate Holder becomes the Holder.
7. **Alternate Holder.** The Buyer must immediately notify all parties if the Closing Attorney fails to become Holder. The Alternate Holder, who must be a broker in this transaction, shall be **N/A**. In the event an Alternate Holder is not named, the Alternate Holder shall be the Buyer's Broker.
8. **Closing Attorney Holding Earnest Money in All-Cash Transaction.** In an all-cash transaction where the Closing Attorney is representing the Buyer or Seller, the Closing Attorney can hold the earnest money (and other trust funds), but in the event of a dispute between the parties regarding the disbursement of the funds, the Closing Attorney shall not disburse the funds based upon a reasonable interpretation of the Agreement. Instead and notwithstanding any provision to the contrary contained in this agreement, in the event of a dispute regarding the earnest money in an all-cash transaction where the Closing Attorney is representing the Buyer or Seller, the only remedy available to the Closing Attorney to resolve the dispute regarding the disbursement of earnest money shall be to interplead the funds into a court of competent jurisdiction.
9. **Notices To and From Holder.** The notice procedures in the Agreement shall control with regard to all notices to and from Holder. Holder's contact information is set forth in signature pages to this Agreement.
10. **Closing Attorney's Contact Information.** The Closing Attorney named below shall be the Holder in this transaction.

Closing Attorney: **Tom McNamara**
Address: **7370 Hodgsons Memorial Dr, Savannah, GA 31406**
Phone Number: **(912)355-1109**
Fax Number:
Email:

Buyer's Initials: 03-19-2022 1:06 PM EDT Seller's Initials:

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BERKSHIRE HATHAWAY HomeServices
Bay Street Realty Group
Cora Bett Thomas Realty

AGREEMENT OF CLOSING ATTORNEY TO SERVE AS HOLDER OF EARNEST MONEY ("ESCROW AGREEMENT")

GeorgiaREALTORS®

[Should only be used when F510 Closing Attorney Acting as Holder of Earnest Money Exhibit has been made part of the Purchase and Sale Agreement]

2022 Printing

For and in consideration of Ten Dollars ($10.00) and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the following closing attorney or law firm: **McNamara/Adams** ("Closing Attorney") having being named as Holder in the Purchase and Sale Agreement by and between **Laurie Herrin DeVegter** ("Buyer") and **Grazyna Pytowska** ("Seller") with an offer date of **March 19th**, **2022** for real property located at: **2618 Mechanics Ave, Savannah, GA 31404** ("Agreement") does hereby agree to serve as Holder in such Agreement, subject to the terms herein.

1. **TERMS OF CLOSING ATTORNEY ACTING AS HOLDER.**

   a. This Escrow Agreement is hereby incorporated into the Agreement and together they shall bind Closing Attorney acting as Holder. The provisions in the Agreement (including the Escrow Agreement) relating directly or indirectly to earnest money and trust funds may be enforced by Holder as a third-party beneficiary to the Agreement. Holder shall have all of the pre-printed rights and duties of Holder and shall follow the procedures binding Holder set forth in the Agreement, unless other agreed to in writing by Buyer, Seller, and Holder. Closing Attorney shall have all of the preprinted rights and duties of Holder set forth in the Agreement without amendment or modification;
   b. Upon the Closing Attorney becoming Holder, the timeframe for Closing Attorney to begin to perform the duties of Holder shall not commence until Holder receives the signed and executed Agreement in its entirety ("Entire Contract"). With regards to amendments to the Entire Contract, the rights and duties of Holder under the amendment shall not commence until Holder receives the amendment.
   c. This Escrow Agreement shall be interpreted in accordance with the laws of the State of Georgia;
   d. Time is of the essence; and
   e. This Agreement (including the Escrow Agreement) and any amendment thereto shall constitute the entire agreement of the parties relative to the Closing Attorney acting as Holder.

2. **CLOSING ATTORNEY MUST AGREE TO BECOME HOLDER WITHIN THREE (3) BUSINESS DAYS.** The Closing Attorney shall not become the Holder unless the Closing Attorney has within three (3) business days from the date the Closing Attorney receives the Entire Contract the Closing Attorney has: a) signed this Escrow Agreement without modification (except for filling in the blanks contained herein); and b) delivered the same to Buyer and Seller.

3. **FAILURE OF CLOSING ATTORNEY TO TIMELY AGREE TO BECOME HOLDER.** If the Closing Attorney named as Holder herein has not become Holder within three (3) business days from the date the Closing Attorney receives the Entire Contract in which the Closing Attorney has been appointed as the Holder, then: a) the Alternate Holder referenced in the Closing Attorney Acting as Holder of Earnest Money Exhibit (F510) shall automatically become the Holder instead of the Closing Attorney; b) all parties consent to the earnest money being paid or transferred to the Alternate Holder; and c) all parties shall cooperate with one another to sign any documents required to accomplish the same.

4. **CONTACT INFORMATION**

Buyer's Name: **Laurie Herrin DeVegter**	Seller's Name: **Grazyna Pytowska**
Address:	Address:
Phone Number:	Phone Number:
Fax Number:	Fax Number:
Email:	Email:
Buyer's Name:	Seller's Name:
Address:	Address:
Phone Number:	Phone Number:
Fax Number:	Fax Number:
Email:	Email:

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Buyer Licensee's Name: **Liza DiMarco**
Buyer's Broker
Address: **5 E Perry St, Savannah GA, Savannah, GA 31401**

Phone Number:
Fax Number:
Email:

Seller Licensee's Name: **Liza DiMarco**
Seller's Broker **Will Thurman**
Address: **5 E Perry St, Savannah, GA 31401-3916**

Phone Number: **(805)450-3795**
Fax Number: **(912)233-2447**
Email: **ldimarco@baystreetrealtygroup.com**

McNamara/Adams
Closing Attorney

Date

By:
Signature of Its Authorized Representative

Print or Type Name

7370 Hodgsons Memorial Drive
Closing Attorney's Address

Savannah, GA 31406

E-mail Address of Holder

(912)355-1109
Telephone Number of Holder

Facsimile Number of Holder

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BERKSHIRE HATHAWAY HomeServices
Bay Street Realty Group
Cora Bett Thomas Realty

ALL CASH SALE
(NO FINANCING CONTINGENCY)
EXHIBIT " A "

Georgia REALTORS®
2022 Printing

This Exhibit is part of the Agreement with an Offer Date of **March 19, 2022** for the purchase and sale of that certain Property known as: **2618 Mechanics Ave**, **Savannah**, Georgia **31404**.

1. **All Cash Sale.** While Buyer has sufficient liquid assets to purchase the Property in this transaction for "all cash", Buyer:
   - **A.** ☐ reserves the right to pay all or a portion of the purchase price by obtaining an institutional first mortgage secured by a deed to secure debt on the Property; AND/OR
     ☒ reserves the right to pay all or a portion of the purchase price by obtaining a non-institutional first mortgage or other loan. (including a private "hard-money" loan).

   OR

   - **B.** ☐ shall not have the right to obtain a mortgage financing to pay for all or a portion of the purchase price of the Property. The Buyer is not obtaining a loan; therefore, the Buyer has no right to unilaterally extend the closing date for eight (8) days for reasons of mortgage lender delay.

2. **Verification of Funds.** Within **5** days from the Binding Agreement Date Buyer shall be obligated to provide or cause to be provided to Seller information describing in specific detail all of the sources of Buyer's funds to purchase the Property ("Required Information"). The Required Information shall consist of at least one of the following:
   - **A.** A letter or letters from a trust, stock brokerage firm and/or financial institution holding funds, stocks, bonds and/or other assets (hereinafter collectively referred to as "Assets") of or on behalf of Buyer and dated subsequent to the Binding Agreement Date stating that Buyer has funds of at least an amount specified in the letter and/or Assets on deposit with the institution of a value specified in the letter, that are sufficient to allow Buyer to complete the purchase of the Property;
   - **B.** An account statement or statements from the trust, stock brokerage firm and/or financial institution(s) holding funds and/or Assets confirming a specific amount of funds and/or Assets on deposit with the institution. Such account statement must be for the regular time period that such statements are issued immediately preceding the Binding Agreement Date.

3. **Authorization and Security.** Buyer does hereby authorize Seller and Listing Broker to communicate with any person providing information regarding Buyer's source of funds to purchase the Property to verify such information and to answer any questions Seller or Listing Broker may have regarding the source of Buyer's funds to purchase the Property. In providing any account statement to Seller, Buyer shall be entitled to delete or otherwise shield account numbers, social security numbers, telephone numbers and other information the release of which could jeopardize the security of the account or put the Buyer at greater risk of identity theft.

4. **Seller's Right to Terminate.** In the event Buyer fails to provide Seller with the Required Information within the timeframe set forth above, Seller shall notify Buyer of the default and give Buyer three (3) days from the date of the delivery of the notice to cure the same. If Buyer does not timely cure the default, Seller may terminate this Agreement within seven (7) days thereafter due to Buyer's default upon notice to Buyer. In the event Seller does not terminate this Agreement within that timeframe, the right to terminate on this basis shall be waived.

5. **Appraisal Contingency.** In addition to the other rights of Buyer set forth herein, this Agreement ☒ shall or ☐ shall not be subject to the Property appraising for at least the purchase price. Buyer shall have the rights set forth in this exhibit in the event the Property does not appraise for at least the purchase price in accordance with the terms and conditions set forth below:
   - **A. Type of Appraisal:** The appraisal shall be a "certified appraisal" of the Property (as that term is defined in O.C.G.A. § 43-39A-2) performed or signed off by a licensed or certified appraiser (as those terms are defined in the rules and regulations of the Georgia Real Estate Appraiser's Board) and include a statement that the appraiser performed an "independent appraisal assignment" (as that term is defined in O.C.G.A. § 43-39A-2(24)) with respect to the Property.
   - **B. Selection of Appraiser:** The appraiser shall be selected by *[Select one. The sections not selected shall not be a part of this Agreement.]:* ☒ Buyer, ☐ Seller, OR ☐ Other (_____); and all parties agree that this appraiser shall only perform a single certified appraisal of the Property.

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BHHS Cora Bett Thomas Realty, 5 E Perry St Savannah GA 31401 Phone: 8054053795 Fax: 9122332447 2618 Mechanics
Liza DiMarco
Produced with Lone Wolf Transactions (zipForm Edition) 717 N Harwood St, Suite 2200, Dallas, TX 75201 www.lwolf.com

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C. **Rights of Buyer If Property Does Not Appraise:** If any appraisal performed pursuant to and in accordance with this exhibit is for less than the purchase price of the Property, the Buyer shall have the right to request within N/A days from the Binding Agreement Date that Seller reduce the sales price of the Property to a price not less than the appraisal price by submitting an Amendment to Sales Price ("ATSP") to Seller along with a complete copy of the appraisal which is for less than the purchase price. In the event that Buyer does not submit an ATSP within the time frame referenced above, Buyer shall be deemed to have waived Buyer's right to request a reduction in the sales price and this Agreement shall no longer be subject to an appraisal contingency. The time limit of the offer for the Seller to accept or reject the ATSP shall run through the earlier of: (1) three (3) days from the date that the ATSP is delivered to Seller; or (2) the time of closing (excluding any extensions of the closing resulting from the unilateral extension of the closing date).

If Seller does not accept the ATSP, Buyer shall have the right, but not the obligation, to terminate this Agreement without penalty upon notice to Seller, provided that such notice is given within three (3) days of the earlier of: (a) the date that Buyer receives notice that Seller has not accepted the ATSP; or (b) the last date Seller could have accepted the ATSP. In neither circumstance shall the Buyer's right to terminate extend beyond the time of closing.

D. **Buyer Not Obligated to Seek Price Reduction:** Nothing herein shall require Buyer to seek any reduction in the sales price of the Property. If Buyer does not seek a reduction in the sales price, Buyer shall be obligated to purchase the Property for the price agreed to by the parties in the Agreement.

Buyer's Initials: LHL 03-19-2022 1:06 PM EDT Seller's Initials: _____

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Produced with Lone Wolf Transactions (zipForm Edition) 717 N Harwood St, Suite 2200, Dallas, TX 75201 www.lwolf.com 2618 Mechanics

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Legal Descriptions

All that certain lot, tract or parcel of land, lying and being in the Town of Thunderbolt, Chatham County, Georgia, shown upon the map or plat thereof made by the State Highway Department on June 18, 1952 and recorded in the Clerk's Office of the Superior Court of Chatham County, Georgia, in Plat Record Book "E", folio 157, and being more particularly described as follows: BEGINNING at the northeast corner of the intersection of Mechanics Avenue and U.S. Highway 80 (Victory Drive, Extended) and running thence North 33° 55' East a distance of 25 feet, more or less, to a point, which is the point of beginning; and continuing thence North 33° 55' East along the eastern side of Mechanics Avenue a distance of 80 feet to a point; thence South 47° East a distance of 186 feet, more or less, to a point; thence South 35° West to the northern right-of-way line of said U.S. Highway 80 to a point on the boundary line between lot hereby described and conveyed and the portion of a lot now or formerly owned by F.A. Teeple; thence North 47° West along said boundary line a distance of 45 feet, more or less, to the eastern side of Mechanics Avenue and the point of beginning.

SUBJECT HOWEVER, to all valid restrictions, easements and rights-of-way of record.

2618 Mechanics Avenue, Savannah, Georgia 31404
PIN 3-0004-02-006

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LIMITED WARRANTY DEED

THIS INDENTURE, made and entered into as of 19th day of October, 2021, by and between

Vicki H. Coolidge, Executor of the Estate of Charles A. J. Teeple, Jr.
(Hereinafter referred to as the "Grantor"), and

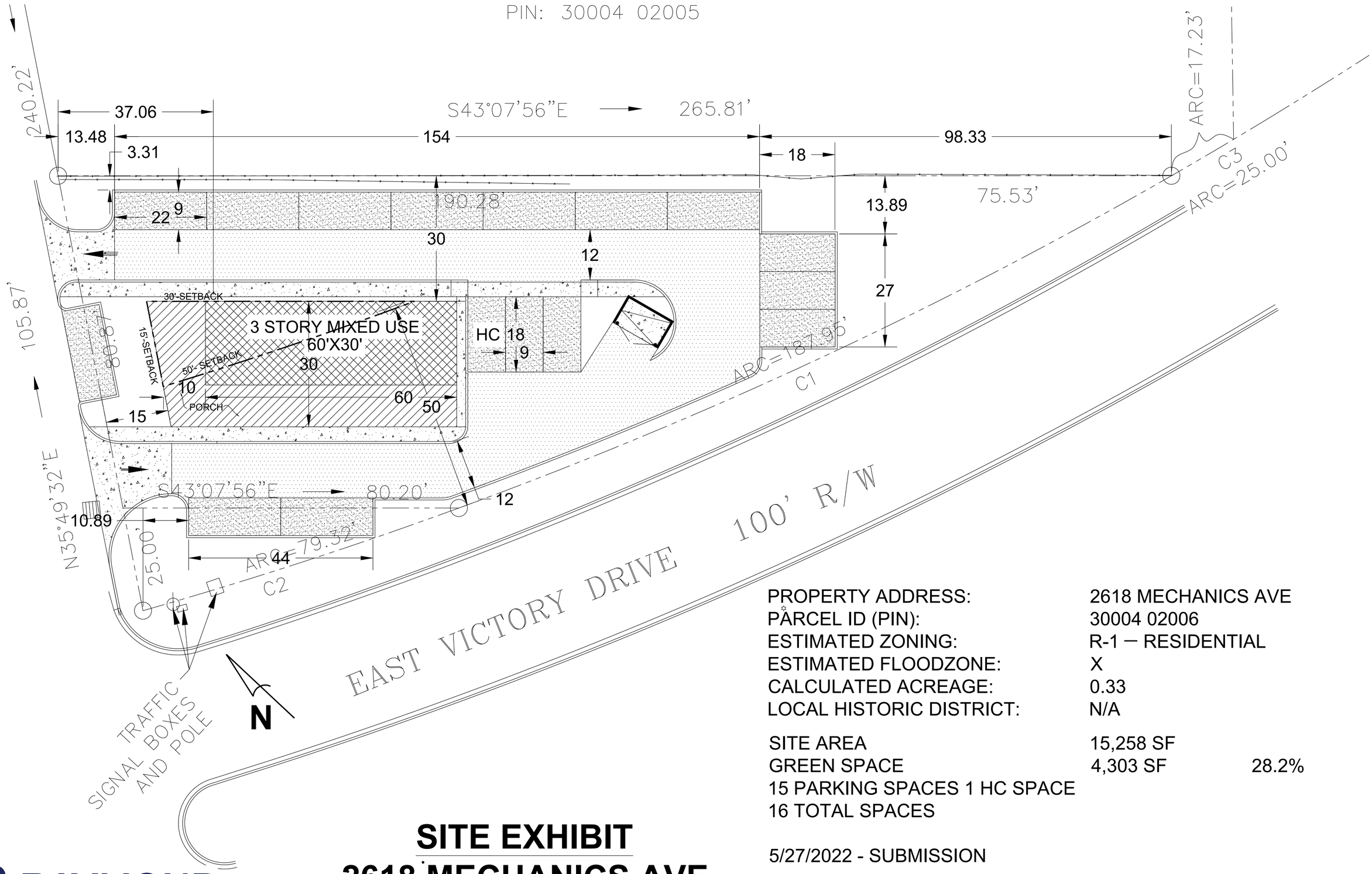
Grazyna Pytowska
(hereinafter referred to as "Grantee")

WITNESSETH, THAT:

GRANTOR, for and in consideration of the sum of TEN AND NO/100 DOLLARS ($10.00) and other good and valuable consideration, in hand paid at and before the sealing and delivery of these presents, the receipt whereof is hereby acknowledged, has granted, bargained, sold and conveyed by these presents does grant, bargain, sell, and convey and confirm unto said Grantee:

All that certain lot, tract or parcel of land situate, lying and being in the Town of Thunderbolt, Chatham County, Georgia, known as a triangular lot at the Northeast corner of Mechanics Avenue and Victory Drive. Said triangular lot has frontage of twenty-five (25) feet on the Southeast side of Mechanics Avenue and a frontage of thirty-five (35) feet on the Northeast side of Victory Drive with a width across its rear of forty-five (45) feet. Said triangular lot is bounded as follows: on the Northwest by Mechanics Avenue; on the Southwest by Victory Drive; on the Northeast by lands now or formerly of Mrs. Hattie W. Cornell. This is the same property conveyed to Charles A. J. Teeple by Executor's Deed dated June 27, 1984, recorded in Deed Book 124-B, Page 141, in the aforesaid Clerk's office. Said map and deed are incorporated herein by reference.

Mechanics Avenue, Savannah, Georgia 31404
PIN 3-0004-02-006A



PROPERTY ADDRESS:	2618 MECHANICS AVE
PARCEL ID (PIN):	30004 02006
ESTIMATED ZONING:	R-1 – RESIDENTIAL
ESTIMATED FLOODZONE:	X
CALCULATED ACREAGE:	0.33
LOCAL HISTORIC DISTRICT:	N/A

SITE AREA	15,258 SF	
GREEN SPACE	4,303 SF	28.2%
15 PARKING SPACES 1 HC SPACE		
16 TOTAL SPACES		

5/27/2022 - SUBMISSION

RAYMOND

SITE EXHIBIT
2618 MECHANICS AVE

TOWN OF THUNDERBOLT
PERMIT APPLICATION FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

APPLICANT NAME: Joseph S Higgins

BUSINESS NAME: American legion Post 184

ADDRESS: 3003 Rowland Ave Thunderbolt GA. 31404

TELEPHONE: 912-354-5515

ACTIVITY EVENT PURPOSE: Kickball Tournament / Membership drive

DATE OR DATES OF EVENT: 6/25/22 Saturday

SPECIFY: DAY OR DAYS: 1 day

TIME OF EVENT: BEGINS 0800 ENDS 2100

PLEASE CHECK AND NOTE NUMBER(S) THE FOLLOWING IF APPLICABLE:

APPLICANT WILL HAVE THE FOLLOWING PRESENT AT THE ABOVE EVENT:

____ FOOD- **SPECIAL/TEMPORARY FOOD PERMIT IS REQUIRED BY THE CHATHAM COUNTY HEALTH DEPT FOR PUBLIC EVENTS**

If the applicant or business has a current Food Permit from the Chatham County Health Dept. Please provide the following information on this permit:

Permit No. _____ **Date**_____ **Expires**_____

____ ALCOHOLIC BEVERAGES – **A SPECIAL/TEMPORARY PERMIT IS REQUIRED FROM THE TOWN OF THUNDERBOLT AND ALSO THE GEORGIA DEPT OF REVENUE.**

If applicant or business has a current Alcohol Permit or License from the Georgia Depart of Revenue. Please provide the following information:

Permit/License no. _____ **Date:**_____ **Expires:**_____

____ PORTABLE TOILET/S

____ FIREWORKS

____ TENTS, STAGES, ETC.

____ BOOTH/S

____ VENDORS

__X__ AMUSEMENT TYPE EQUIPMENT

__X__ BANDS, MUSIC, INSTRUMENTS, ETC.

***Temporary/Special Licenses or Permits requirements by Georgia Department of Revenue & Chatham County Health Dept. must be obtained prior to the event.**

APPLICANT, OWNER OR INDIVIDUAL SHALL SUBMIT THIS APPLICATION 30 DAYS PRIOR TO EVENT OR EVENTS AND MUST APPEAR BEFORE THE MAYOR AND TOWN COUNCIL AT THE TOWN MEETING WHEN APPLICATION APPEARS ON THE TOWN MEETING AGENDA.

THIS APPLICATION AND PERMIT FEES SHALL BE APPROVED FOR NOT MORE THAN ONE YEAR AT A TIME. APPLICANT MUST APPLY AND PAY ALL PERMIT FEES EACH CALENDAR YEAR.

INDEMNIFICATION AGREEMENT AND ACCEPTANCE TO ADHERE TO APPLICATION REQUIREMENTS

I, individually and as the Agent representing the Event Organization, do hereby agree to indemnify and hold harmless the Town of Thunderbolt, Georgia, its officers, agents, employees, officials, and contractors from and against any and all loss, damage, claim, demand, liability or expense by reason of any damage or injury to property or person which may be claimed to have arisen as a result of or in connection with the occupancy or use of listed event premises during the time period of said event.

Such obligation to indemnify and hold harmless shall continue notwithstanding any negligence or comparative negligence on the part of the Town of Thunderbolt relating to such loss or damage, except for loss or damage arising from the sole negligence or willful misconduct or gross negligence of the Town, and shall include all costs, expenses and liabilities incurred by the Town in connection with any such claim, suit, action or cause of action, including the investigation thereof and the defense of any action or proceeding brought thereon and any other judgment or decree which may be entered in any such action or proceeding or as a result thereof. These provisions shall survive the expiration or earlier termination of the use of premises. Nothing in this Agreement shall be construed to affect in any way the Town's rights, privileges, and immunities as set forth in Georgia Statues and/or the Constitution of the State of Georgia.

Representative Signature; JM S Hgz Date: 6/16/22

PERMIT FEES:

ONE DAY EVENT: $ 50.00 – Resident/Business $150.00- Non Resident/Non Business
*SPECIAL ONE DAY EVENT - $500.00 (require closing of streets, additional preparation of the Town's police officers, firefighters, employees, agents or contractors; additional fees may be assessed to cover the Town's costs for assistance or services)

TWO DAY EVENT: $ 100.00 – Resident/Business $200.00 – Non Resident/Non Business

THREE OR MORE
DAY EVENT: $ 150.00 – Resident/Business $ 450.00 – Non Resident/Non Business

Note: Request of Waiver of Fee(s) requires the completion of a Waiver of Fee Form to be attached to the permit application and must be approval of Mayor and Council.

If applicant is renting or leasing the facility where the event is to take place then the applicant shall receive an affidavit from the legal property owner of their approval to have an event stating their complete application request including the dispensing or selling of alcoholic beverages. The affidavit must be signed and notarized and must be attached to the applicant's application prior the review and approval of Town Council.

****** PERMIT FEE MUST BE PAID AT THE TIME OF APPLICATION******
FAILURE TO SUBMIT PAYMENT ALONG WITH APPLICATION SHALL RESULT IN THE APPLICATION NOT BEING CONSIDERED FOR APPROVAL BY THE TOWN OF THUNDERBOLT.

PERMIT FEE REFUND:

THE TOWN OF THUNDERBOLT WILL REFUND THE PERMIT FEE IF THE TOWN IS NOTIFIED WITHIN AT LEAST 5 DAYS PRIOR TO THE EVENT BEING CANCELLED AND/OR 5 DAYS AFTER REQUESTED DAY OF THE EVENT, IF CANCELLED: SEE THE FOLLOWING:
ONE DAY EVENT: FULL REFUND, IF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
TWO DAY OR MORE EVENTS: ONE –THIRD OF THE PERMIT FEE REFUNDED, IF ONE OR MORE DAYS OF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.

NO PARTIAL OR FULL PERMIT FEE WILL BE REFUNDED UPON PERMIT BEING REVOKED AS A RESULT OF APPLICANT, OWNER OR INDIVIDUAL BEING IN VIOLATION OF TOWN OF THUNDERBOLT ORDINANCES OR RULES AND REGULATIONS.

TOWN OF THUNDERBOLT ORDINANCES
RULES & REGULATIONS
FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

The following Town of Thunderbolt Ordinances, Rules and Regulations do hereby apply and are the sole responsibility of the Applicant, Owner or Individual to comply with:

1. Applicant, Owner, or Individual shall engage the services of an Off-Duty Police Officer or Officers be present at all times during the course of the Outdoor Activity Event, when alcoholic beverages are sold or distributed. Services of a Security Guard or Security Guard Service is not acceptable. IF APPLICANT, OWNER OR INDIVIDUAL REFUSES OR DOES NOT ENGAGE THE SERVICES OF AN OFF-DUTY POLICE OFFICER OR OFFICERS THE OUTDOOR ACTIVITY EVENT PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

2. Applicant, Owner or Individual shall be responsible for removing Portable Toilets within 3 days following the event or shall be fined in the amount of $100.00 per day per unit until Portable Toilet or Toilets are removed.

   In the event, Applicant. Owner or Individual requires future use of Portable Toilet or Toilets, they shall be responsible for the cleaning, disinfecting, maintenance, and securing the Portable Toilet or Toilets.

3. Applicant, Owner or Individual will be responsible to remove all Tents, Stages, etc within 3 days following the Outdoor Activity Event or shall be fined in the amount of $100.00 per day until Tents, Stages, etc., have been removed.

4. Applicant, Owner or Individual will be responsible for removing all booths within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Booth until Booth or Booths have been removed.

5. Applicant, Owner or Individual will be responsible for removing all Amusement Type Equipment within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Amusement Type Equipment until Equipment has been removed.

6. Applicant, Owner or Individual shall be held responsible for Bands, Instruments, Music, etc., to abide by the Town of Thunderbolt Noise Ordinance. NO BANDS, INSTRUMENTS, MUSIC, ETC. SHALL BE ALLOWED TO CONTINUE PLAYING AFTER 10:00 PM. IF APPLICANT, OWNER, OR INDIVIDUAL VIOLATES THIS ORDINANCE, THE OUTDOOR ACTIVITY PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

7. Applicant, Owner or Individual shall be responsible for cleaning grounds and disposing of all trash, debris, etc. as a result of the Outdoor Activity Event no later than 24 hours following the Event. If Applicant, Owner or Individual has not cleaned and disposed of trash, debris etc, within 24 hours following the Event they will be fined in the amount of $25.00 per day until all trash, debris, etc. is disposed and grounds are cleaned.

By Signing below, I the Applicant, Owner or Individual applying for this Outdoor Activity Event(s) Permit have read and will comply with the above and all other Town of Thunderbolt Ordinances, if applicable pertaining to Outdoor Activities and Events. A copy of Applicant, Owner or Individual Driver's License is also attached.

Applicant, Owner or Individual

Witness

American legion Post 184

Business

Notary Public

Date 6/16/22

April 28, 2025

Notary Public Stamp & Seal

NANCY L TIPTON NOTARY PUBLIC CHATHAM COUNTY, GEORGIA COMMISSION EXPIRES APRIL 28, 2025

RECEIVED BY: _____

Town Official and Title

THE ATTACHED APPLICATION FOR AN OUTDOOR ACTIVITY EVENT PERMIT HAS BEEN APPROVED THIS _____ DAY OF _____, 20___.
BY THE TOWN OF THUNDERBOLT MAYOR AND TOWN COUNCIL WHOSE NAMES AND SIGNATURES ARE LISTED BELOW OR BY THE TOWN ADMINISTRATOR WHOSE SIGNATURE IS LISTED BELOW.

Mayor

Town Administrator

Councilmember

Councilmember

Councilmember

Councilmember

Councilmember

Councilmember

TOWN OF THUNDERBOLT
REQUEST FOR WAIVER FEE FOR
PERMIT APPLICATION FOR EVENT

APPLICANT NAME: Joseph S. Higgins

ORGANIZATION/ENTITY: American Legion Post 184

DATE OF EVENT: 6/25/2022

PURPOSE OF EVENT: Entertainment / Membership Drive

REASON FOR WAIVER
REQUEST: Non-profit Organization

In consideration of being permitted to engage in the above activity, I hereby and on behalf of the organization/entity named above assume the risk of personal injury or death and I, for my heirs, executors, representatives and administrators, hereby agree to release, hold harmless, and forever discharge the Town of Thunderbolt and its police officers, firefighters, employees, agents, officials, and contractors from any and all liability, claims, demands, damages, expenses, fees, suits, proceedings, causes of action, cost of actions, including attorney's fees, for trial and appeal, which I or the organization/entity named above may have against them arising out of or in any way connected with my participation or the organization/entity in the activity listed above. I understand that this release and waiver includes any claims based on negligence, gross negligence, misconduct, actions or inactions of the Town of Thunderbolt, Georgia, it's employees, police officers, firefighters, officials, agents, representatives or contractors.

I HAVE READ THIS CONTRACT BEFORE SIGNING.

Joseph S. Higgins — APPLICANT'S NAME (PRINT)

6/16/22 — DATE

SIGNATURE OF APPLICANT

SWORN BEFORE ME THIS 16 DAY OF June, 2022

NANCY L TIPTON NOTARY PUBLIC CHATHAM COUNTY, GEORGIA MY COMMISSION EXPIRES APRIL 28, 2025

NOTARY PUBLIC

April 28 2025 — MY COMMISSION EXPIRES & SEAL

WAIVER FEE WAS APPROVED BY MAYOR AND COUNCIL ON _____

WAIVER FEE WAS DENIED BY MAYOR AND COUNCIL ON _____

STATE OF GEORGIA)
COUNTY OF CHATHAM)

INTERGOVERNMENTAL AGREEMENT FOR THE USE AND DISTRIBUTION OF PROCEEDS FROM THE 2022 TRANSPORTATION SPECIAL PURPOSE LOCAL OPTION SALES TAX FOR CAPITAL TRANSPORTATION PROJECTS

THIS AGREEMENT (this "Agreement") is made and entered this the ___ day of _____, 2022, by and between Chatham County, a political subdivision of the State of Georgia (the County), and the Mayor and Council of the town of Thunderbolt, a municipal corporation, the Mayor and Council of Bloomingdale, a municipal corporation, the Mayor and Council of Garden City, a municipal corporation, the Mayor and Council of Port Wentworth, a municipal corporation, the Mayor and Aldermen of Savannah, a municipal corporation, the Mayor and Council of Tybee Island, a municipal corporation, the Mayor and Aldermen of Vernonburg, a municipal corporation, the Mayor and Council of Pooler, a municipal corporation, and all political subdivisions of the State of Georgia (hereinafter the "Municipalities" or "Cities") and herein collectively referred to as the "Governing Authorities". acting pursuant to validly adopted resolutions by their respective governing bodies. The County and the Municipalities do hereby agree as follows:

WITNESSETH:

WHEREAS, Article 5A of Chapter 8 of Title 48 of the Official Code of Georgia Annotated, as amended (the "Act"), authorizes the imposition of a single county Transportation Special Purpose Local Option Sales and Use Tax (the "TSPLOST") to fund authorized transportation purposes for the use and benefit of the County and qualified municipalities within the County; and

WHEREAS, the governing authorities of the County and the Municipalities met together on 16 June, 2022 to discuss possible projects and purposes for inclusion in the TSPLOST referendum in substantial conformity with the requirements of Section 48-8-262(a)(2) of the Act; and

WHEREAS, the County and Cities have negotiated a division of the **TSPLOST** to be collected in the event a majority of the votes cast in the election are in favor of imposing the TSPLOST; and

WHEREAS, the County may enter into agreements with the other municipalities in the County providing for the distribution of a portion of TSPLOST proceeds to such other municipalities to fund allowable capital outlay projects as authorized by the referendum to be held on November 8th, 2022, if passed; and

WHEREAS, the County, and the Municipalities, and all citizens of the County will derive substantial benefits from the proposed projects to be funded by TSPLOST proceeds distributed pursuant to this Agreement; and

WHEREAS, the County and the Municipalities desire to execute an intergovernmental agreement memorializing their agreement on the levy of the TSPLOST and the rate of such tax; and

NOW THEREFORE, in consideration of the premises and undertakings hereinafter set forth, it is agreed by and between the County and the Municipalities as follows:

All recitals above are incorporated by reference into the body of this agreement.

Section 1. **Representation of the Parties**. Each party hereto makes the following representations and warranties which are specifically relied upon by all other parties as a basis for entering into this Agreement:

(a) The County agrees that it will take all actions necessary to call an election, to be held in all the voting precincts in the County on the 8th of November, 2022, for the purpose of submitting to the qualified voters of the County for their approval, the question of whether or not a TSPLOST of one percent shall be imposed on all sales and uses subject to the sales and use tax in the special district of Chatham County, as authorized by the Act for up to five years (20 calendar quarters) commencing on the 1st of April, 2023 for the purpose of funding specified Projects (hereinafter more fully referred to and defined), and whether or not the County shall be authorized to issue general obligation debt in the principal amount of $50,000,000 to finance certain of the Projects. The amount of money to be raised by the TSPLOST is estimated to be $420,000,000 (Four Hundred and Twenty Million Dollars). (and add any city that wants to have a bond)

(b) The Municipalities are legally chartered municipal corporations as defined by law and judicial interpretation and are each a "qualified municipality" as such term is defined in the Act. During a public meeting of its governing board, each conducted in compliance with the Open Meetings Act, O.C.G.A. § 50-14-1, et seq., each of the Municipalities validly approved the execution of this Agreement.

(c) The County is a political subdivision of the State of Georgia created and existing under the Constitution and laws of the State. During a public meeting conducted in compliance with the Open Meetings Act, O.C.G.A. § 50-14-1, et seq., the County approved the execution of this Agreement.

(d) It is the intention of the County and the Municipalities to comply in all respects with O.C.G.A. § 48-8-260 et seq., and all provisions of this Agreement shall be construed in light of O.C.G.A. § 48-8-260, et seq.

(e) This Agreement is a valid, binding, and enforceable obligation of the County and the Municipalities; and

(f) The Cities are located entirely or partially within the geographic boundaries of the special tax district created in the County.

Section 2. **Conditions Precedent**. The obligations of all parties under this Agreement are conditioned upon the following prior events:

(a) The adoption of a resolution by the Board of Commissioners of Chatham County authorizing the imposition of the TSPLOST and calling the necessary election in accordance with the provisions of Section 48-8-262(d) of the Act.

(b) The approval of the TSPLOST by a majority of the voters in the County voting in the election (for those purposes) to be held in accordance with the provisions of Section 48-8-263 of the Act.

(c) This Agreement is further conditioned upon the collection of TSPLOST revenues by the State of Georgia Department of Revenue and its transfer of the same to the County for appropriate distribution to the Municipalities.

Section 3. Rate of Tax; Estimated Amount; Effective Date and Term of the Tax. The TSPLOST, subject to approval in an election to be held on the 8th of November, 2022, shall be imposed at the rate of one percent (1%). The total estimated dollar amount is $420,000,000 (before deduction of collection fees by the State of Georgia Department of Revenue and management expenses by Chatham County). The maximum period of time for which the tax may be imposed is five years, beginning on the 1st of April, 2023.

Section 4. Effective Date and Term of This Agreement. This Agreement shall commence upon the date of its execution and shall terminate upon the latter of:

(a) The official declaration by the Board of Elections and Registration of Chatham County of the failure of the election described in this Agreement; or

(b) The expenditure by the County and the Municipalities of the last dollar of money collected from the TSPLOST even if such expenditure is made after the expiration of the TSPLOST collection period.

Section 5. Restrictions as to Use of Tax Funds

A. The Cities and the County shall comply with all requirements of Georgia law pertaining to all TSPLOST funds each receives, including but not limited to the following:

(i) All TSPLOST funds and interest received may only be used for projects described in Exhibit A which is attached hereto and made part of this Agreement.

a. If circumstances arise which dictate that a project which initially seemed feasible is no longer so, then the governing body to which the TSPLOST funds for such project was allocated under this Agreement may use its lawful discretion to make adjustments in its plan of capital projects.
b. In the event that the cost to complete a project is less than the amount allocated to that project (the "Projects"), under this Agreement, then the governing body to which the TSPLOST funds for such project were allocated may use its lawful discretion to make adjustments in its plan of capital projects to utilize the funds for other projects provided for in this Agreement.
c. The lack of funds to complete a project contained on Exhibit A by any governing authority is not grounds to deem the project infeasible.

(ii) All TSPLOST funds received shall be accounted for in a separate fund as more fully described herein and not commingled with other monies prior to expenditure for allowable uses.

(iii) Interest earned from the investment of TSPLOST funds prior to their disbursement for

allowable expenditures shall be considered TSPLOST funds and used under the same restriction for TSPLOST funds as set forth in subparagraph (i) above.

(iv) No TSPLOST funds received may be used for general operating expenses. TSPLOST funds may be used to repay loans made to temporarily fund TSPLOST capital projects in anticipation of receipt of TSPLOST funds.

B. The County and Cities agree to proceed with the acquisition, construction, design, permitting, equipping and installation of the projects specified in Exhibit A of this Agreement, subject to the availability of funds.

C. The County and Cities agree to maintain thorough and accurate records concerning receipt of TSPLOST proceeds and expenditures for each project undertaken as required to fulfill the terms of this Agreement.

D. If after 5 years the collection of TSPLOST fund net proceeds falls short of the $420,000,000 anticipated, the County and the Cities agree to only receive their pro rata share of the income based on the division percentages in Section 8 (c).

E. If after 5 years or after reaching the $420,000,000 of the collection of TSPLOST funds net proceeds are greater than the $420,000,000 anticipated, the County and the Cities agree to divide the excess funds as to their pro rata share of the income based on the division percentages in Section 8(c).

Section 6. Purposes and Projects, Priority and Order of Funding.

(a) In recognition of the need for transportation improvements across the County and the Municipalities, the parties agree that the total net proceeds ($420,000,000) shall be utilized for the following transportation purposes (the "Purposes"): roads, trails, roundabouts, sidewalks, traffic signals, Chatham Area Transit, One Chatham, drainage, resurfacing, and all accompanying infrastructure and services necessary to provide access to these transportation facilities.

(b) The transportation projects to be funded in whole or in part from TSPLOST proceeds (the "Projects"), are listed in Exhibit A which is attached hereto and made part of this Agreement.

(c) All Projects and Purposes described herein shall be funded from TSPLOST proceeds as provided in this Agreement, and as specified in Exhibit A. No party shall be obligated to fund any Project or Purpose from revenues other than TSPLOST collections. Each party shall have the sole discretion to reduce the scope of a Project in the event of a funding shortfall.

Section 7. TSPLOST Funds; Separate Accounts; No Commingling.

(a) A special fund or account shall be created by the County and designated as the 2022 Chatham County Transportation Special Purpose Local Option Sales Tax Fund (the "County TSPLOST Fund"). The County shall select a local bank which shall act as a depository and custodian of the County TSPLOST Fund upon such terms and conditions as may be acceptable to the County.

(b) Each Municipality shall create a special fund to be designated as the 2022 [*Municipality name*] Transportation Special Purpose Local Option Sales Tax Fund (each a "Municipal TSPLOST Fund"). Each Municipality shall select a local bank which shall act as a depository and custodian of the TSPLOST proceeds received by each Municipality upon such terms and conditions as may be acceptable to the Municipality.

(c) All TSPLOST proceeds shall be maintained by the County and each Municipality in the separate accounts or funds established pursuant to this Section. TSPLOST proceeds shall not be commingled with other funds of the County or the Municipalities and shall be used exclusively for the purposes detailed in this Agreement. No funds other than TSPLOST proceeds shall be placed in such accounts.

Section 8. Procedure for Disbursement of TSPLOST Proceeds.

(a) Upon receipt by the County of TSPLOST proceeds collected by the Georgia Department of Revenue, the County shall promptly deposit said proceeds in the County TSPLOST Fund. The monies in the County TSPLOST Fund shall be held and applied to the cost of acquiring, constructing, and installing the Transportation Projects for the County listed in Exhibit A or, where applicable, disbursed to the Municipalities as provided in subsections (b) and (c).

(b) All funds received by the County from the Georgia Department of Revenue from the imposition of the TSPLOST shall be apportioned by the County according to the figures provided herein. The figures set forth herein are binding and not subject to change or modification except upon written agreement by all parties. The County, following the deposit of the TSPLOST proceeds in the County TSPLOST Fund, shall, within 60 business days, disburse the TSPLOST proceeds due to each Municipality according to subsection (c). The proceeds shall be promptly deposited in the separate funds established by each Municipality in accordance with Section 7 of this Agreement. The monies in each Municipality's TSPLOST Fund shall be held and applied to the cost of acquiring, constructing, and installing the Municipal Transportation Projects listed for that Municipality in Exhibit A.

(c) The parties will divide the monthly actual proceeds as follows:

1. Chatham County – 45.3100%
2. City of Savannah – 34.6007%
3. Pooler – 7.6565%
4. Garden City – 4.3891%
5. Port Wentworth – 4.6417%
6. Tybee Island – 1.3824%
7. Bloomingdale – 0.8426%
8. Thunderbolt – 1.1028%
9. Vernonburg – 0.0742%

Section 9. Project Monitoring, Record-Keeping and Reporting, Audits.

(a) All parties to this Agreement shall promptly move forward with the acquisition, construction, equipage and installation of the Projects in an efficient and economical manner and at a reasonable cost in conformity with all applicable laws, ordinances, rules and regulations of any governmental authority having jurisdiction over the Projects.

(b) The governing authority of the County and the governing authority of each of the Municipalities shall comply with the requirements of O.C.G.A. § 48-8-269.5(a)(2), which requires that certain information be included in the annual audit of the County or each of the Municipalities. During the term of this Agreement, the distribution and use of all TSPLOST proceeds deposited in the County TSPLOST Fund and each Municipal TSPLOST Fund shall be audited annually by an independent certified public accounting firm. The County and the Municipalities agree to cooperate with the independent certified public accounting firm in any audit by providing all necessary information. Each Municipality shall provide the County a copy of its annual audit.

(c) The governing authority of the County and the governing authority of each of the Municipalities shall comply with the requirements of O.C.G.A. § 48-8-269.6, which requires the publication of annual reports concerning expenditures for the Projects.

(d) The County and Municipalities agree to maintain thorough and accurate records concerning receipt of TSPLOST proceeds and expenditures for each Project undertaken by the County or respective Municipality as required to fulfill the terms of this Agreement.

Section 10. Completion of Projects.

(a) The County and the Municipalities acknowledge that the costs shown for each Project described in Exhibit A are estimated amounts.

(b) If a County Project has been satisfactorily completed at a cost less than the estimated cost listed for that Project in Exhibit A, the County may apply the remaining unexpended funds to any other County Project in Exhibit A.

(c) If a Municipal Project has been satisfactorily completed at a cost less than the estimated cost listed for that Project in Exhibit A, the Municipality may apply the remaining unexpended funds to any other Project included for that Municipality in Exhibit A.

(d) The County and the Municipalities agree that each approved TSPLOST Project associated with this Agreement shall be substantially completed or started within five years after the termination of the TSPLOST collection period. Any TSPLOST proceeds held by a County or Municipality at the end of the five-year period which is not already designated to be spent on a project in Exhibit A, be measured from the date of termination of the TSPLOST agreement shall, for the purposes of this Agreement, be deemed excess funds and disposed of according to O.C.G.A. § 48-8-269.5(f)(2).

Section 11. Certificate of Completion and Termination. Within thirty (30) days after the acquisition, construction or installation of a Municipal Project listed on Exhibit A is completed, the Municipality owning the Project shall file with the County a certificate of completion signed by the mayor or other chief elected official of the respective Municipality, setting forth the date on which the Project was completed and the final cost of the Project. The County shall file a completion certificate of County projects with the Chatham County Board of Commissioners.

Section 12. The County Debt.

(a) The TSPLOST election ballot shall contain language required by the Act for the authorization of general obligation debt of the County in the principal amount of up to $50,000,000.00.

The County may use the proceeds of its debt for the purpose of funding County Projects, paying capitalized interest (if any), and paying the cost of issuing its debt. The County acknowledges that it is solely responsible for the payment of its debt, including any and all costs, interest, and fees associated therewith. Ballot language:

"Shall a special one percent (1%) sales and use tax be imposed in the special district consisting of Chatham County for a period of time not to exceed five years and for the raising of an estimated amount of $420,000,000 for transportation purposes? If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of Chatham County in the principal amount of $50,000,000 for the above purposes. If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of the City of _____ in the principal amount of $_____for the above purposes. If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of the City of _____ in the principal amount of $_____for the above purposes."

(b) The County's debt shall be paid first from the proceeds of its portion of the TSPLOST. In the event that there are insufficient TSPLOST collections to pay the debt from its portion of the proceeds, the County shall pay any shortfall attributable to the debt from its general fund (the "Debt Service Payments"). The County covenants that, in order to make the Debt Service Payments when due from its general funds to the extent required, it will exercise its power of taxation to the extent necessary to timely pay any amounts required to be paid hereunder and it will make available and use for such payments all taxes levied and collected for that purpose together with funds from any other source. The County further covenants and agrees that in order to make funds available for such purpose, it will, in its general revenue, appropriation, and budgetary measures whereby its tax funds or revenues and the allocation thereof are controlled or provided for, include sums sufficient to timely satisfy such Debt Service Payments that may be required to be made from the general funds, whether or not any other sums are included in such measure, until all payments so required to be made shall have been made in full. The obligation of the County to make any payments that may be required to be made from its general funds shall constitute a general obligation of the County and a pledge of full faith and credit of the County to provide the funds required to timely fulfill any such obligation.

(c) The County will be responsible for all facets of the debt issuance and repayment process. The County will select the underwriter, bond counsel, local counsel, etc. The County will endeavor in good faith to be fiscally responsible in minimizing to the extent possible the costs and fees with the debt issuance process.

Section 13. <u>The Cities Debt</u>.

(a) If one or more of the Cities determines general obligation debt of such City is necessary, such City will notify the County of their intentions prior to July 15, 2022, so that language can be included in the TSPOLST election ballot for such purpose. The ballot language for such general obligation debt shall be written as provided in Section 12(a) herein. The Cities will take all actions necessary to call an election to be held in all voting precincts in the Cities, for the purpose of submitting to the voters of the Cities for their approval, the question of whether or not a general obligation debt ("bond") shall be imposed for funding the projects specified in Exhibit A attached hereto.

(b) The Cities may use the proceeds of its debt for the purpose of funding City Projects, paying capitalized interest (if any), and paying the cost of issuing its debt. The Cities acknowledge that it is solely responsible for the payment of its debt, including any and all costs, interest, and fees associated therewith.

(c) The Cities debt shall be paid first from the proceeds of its portion of the TSPLOST. In the event that there are insufficient TSPLOST collections to pay the debt from its portion of the proceeds, the City shall pay any shortfall attributable to the debt from its general fund (the "Debt Service Payments"). The Cities covenants that, in order to make the Debt Service Payments when due from its general funds to the extent required, it will exercise its power of taxation to the extent necessary to timely pay any amounts required to be paid hereunder and it will make available and use for such payments all taxes levied and collected for that purpose together with funds from any other source. The Cities further covenants and agrees that in order to make funds available for such purpose, it will, in its general revenue, appropriation, and budgetary measures whereby its tax funds or revenues and the allocation thereof are controlled or provided for, include sums sufficient to timely satisfy such Debt Service Payments that may be required to be made from the general funds, whether or not any other sums are included in such measure, until all payments so required to be made shall have been made in full. The obligation of the Cities to make any payments that may be required to be made from its general funds shall constitute a general obligation of the Cities and a pledge of full faith and credit of the Cities to provide the funds required to timely fulfill any such obligation.

(d) The Cities will be responsible for all facets of the debt issuance and repayment process. The City will select the underwriter, bond counsel, local counsel, etc. The City will endeavor in good faith to be fiscally responsible in minimizing to the extent possible the costs and fees with the debt issuance process.

Section 14. Expenses. The County shall administer the County TSPLOST Fund to effectuate the terms of this Agreement. Furthermore, the County and the Municipalities shall be jointly responsible on a pro rata basis for the cost of holding the TSPLOST election. The County shall be reimbursed for the Municipalities' share of such costs.

Section 15. Default. The failure of any party to perform its obligations under this Agreement shall constitute an event of default.

Section 16. Liability for Noncompliance. The County and the Municipalities shall comply with all applicable local, State, and Federal statutes, ordinances, rules and regulations. In the event that any Municipality fails to comply with the requirements of the Act (O.C.G.A. § 48-8-260 et seq.), the County shall not be held liable for such noncompliance. No consent or waiver, express or implied, by any party to this Agreement, to any breach of any covenant, condition or duty of another party shall be construed as a consent to, or waiver of, any future breach of the same.

Section 17. Counterparts. This Agreement may be executed in several counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

Section 18. Governing Law. This Agreement and all transactions contemplated hereby shall be governed by and construed and enforced in accordance with the laws of the State of Georgia.

Section 19. Severability. Should any provision of this Agreement or application thereof to any person or circumstance be held invalid or unenforceable, the remainder of this Agreement or the application of

such provision to any person or circumstance, other than those to which it is held invalid or unenforceable, shall not be affected thereby, and each provision of this Agreement shall be valid and enforceable to the full extent permitted by law.

Section 20. Entire Agreement. This Agreement embodies and sets forth all the provisions and understandings between the parties relative to the Projects. There are no provisions, agreements, understandings, representations, or inducements, either oral or written, between the parties other than those hereinabove set forth. Any and all prior provisions, agreements, contracts or understandings, either oral or written, between the parties relative to the Projects are hereby rescinded and superseded by this Agreement.

Section 21. Amendments. This Agreement shall not be amended or modified except by agreement in writing executed by the governing authorities of the County and the Municipalities.

Section 22. Notices. All notices, demands or requests required or permitted to be given pursuant to this Agreement shall be in writing and shall be deemed to have been properly given or served and shall be effective on being deposited or placed in the United States mail, postage prepaid and registered or certified with return receipt requested to the addresses appearing below, or when delivered by hand to the addresses indicated below:

Section 23. Retention of Records

The parties agree to retain all records pertaining to the TSPLOST funds for a period of at least four years subsequent to the expiration of the TSPLOST and to make such records reasonably available to each other upon request.

Section 24. Agreement Effective When Executed by the City and County

This Agreement shall be effective when executed by Cities and the County. The County may enter into separate agreements with other Municipalities that are not signatories to this Agreement and other organizations upon such terms as appropriate to insure that funds will be used for TSPLOST eligible projects and meet the requirements of the law. If there is an inconsistency between such agreements and this Agreement regarding the distribution and allocation terms, this Agreement shall govern.

Section 25. Audits

A. During the term of this Agreement, the distribution and use of all TSPLOST proceeds shall be audited annually by an independent certified public accounting firm in accordance with Georgia Law. The County and Cities receiving TSPLOST proceeds shall be responsible for the cost of their respective audits. The County and Cities agree to cooperate with the independent certified public accounting firm in any audit by providing all necessary information.

B. The Cities shall annually provide County its comprehensive annual financial report showing the receipt and use of TSPLOST funds including a Schedule of Projects Funded with Special Sales Tax Proceeds.

Section 26. Notices

All notices, consents, waivers, directions, requests or other instruments or communications provided for under this Agreement shall be deemed properly given when delivered personally or sent by registered or certified United States mail, postage prepaid, as follows:

If to County:
Lee Smith,
County Manager
Chatham County
P.O. Box 8161
Savannah, GA
31412

If to Thunderbolt:
Beth E. Goette
Mayor
Thunderbolt
2821 River Drive
Thunderbolt, GA 31404

If to Savannah
Van Johnson
Mayor
Savannah City Hall, 2nd Floor
2 East Bay Street
Savannah, GA, 31401

If to Pooler
Rebecca Benton
Mayor
City of Pooler
100 SW US HWY 80
Pooler, GA 31322

If to Port Wentworth
Gary Norton
Mayor
7224 GA Highway 21
Port Wentworth, GA 31407

If to Garden City
Don Bethune
Mayor
100 Central Avenue
Garden City, GA 31405

If to Bloomingdale
Ben Rozier
Mayor
8 West Hwy 80
Bloomingdale, GA 31302

If to Tybee Island
Shirley Sessions
Mayor

403 Butler Avenue
Tybee Island, GA 31328

If to Vernonburg

James R. Hungerpiller
Mayor
P.O. Box 61512
Savannah, GA 31420

Section 27. No Consent to Breach

No consent or waiver, express or implied, by any party to this Agreement, to any breach of any covenant, condition or duty of another party shall be construed as a consent to or waiver of any future breach of the same.

Section 28. Mediation

The County and Cities agree to submit any controversy arising under this Agreement to mediation for a resolution. The parties to the mediation shall mutually select a neutral party to serve as mediator. Costs of mediation shall be shared equally among the parties to the mediation.

(Signatures on the following page)

IN WITNESS WHEREOF, the County and the Cities acting through their duly authorized agents have caused this Agreement to be signed, sealed and delivered for final execution by the County as of the date set forth above.

CHATHAM COUNTY, GEORGIA

By: _____
Chester A. Ellis, Chairman

Attest:_____
Janice Bocook, Clerk of Commission

(Seal)

MAYOR AND COUNCIL OF THE TOWN OF THUNDERBOLT, GEORGIA

By:_____
Dana Williams, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND ALDERMEN OF THE CITY OF SAVANNAH, GEORGIA

By:_____
Van R. Johnson II, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF POOLER, GEORGIA

By:_____
Rebecca Benton, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE GARDEN CITY, GEORGIA

By:_____
Don Bethune, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF PORT WENTWORTH, GEORGIA

By:_____
Gary Norton, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF TYBEE ISLAND, GEORGIA

By:_____
Shirley Sessions, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF BLOOMINGDALE, GEORGIA

By:_____
Ben Rozier, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND ALDERMEN OF THE CITY OF VERNONBURG, GEORGIA

By:_____
James R. Hungerpiller, Mayor

Attest:_____
Clerk of Council

(Seal)

DANA WILLIAMS
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

LAWRENCE WARD

BROOKS BARBAREE

JAMES LAVIN

BETHANY SKIPPER-GREER

Memorandum of Understanding Between the Town of Thunderbolt & Senior Center Inc.

The Memorandum of Understanding (MOU) is opening and modifying the previously agreed contract between the Town of Thunderbolt (Town) and Senior Center Inc. (SCI) that became effective January 1st, 2022.

After successful award of the Chatham County "Blueprint" grant, the Town of Thunderbolt will not be responsible for payments to SCI up to $2,000 monthly for the duration of the Chatham County "Blueprint Grant" award. This funding is for the period of July 2022 thru July of 2023. The parties hereby agree that the Town will not be responsible for any monetary funding of the Senior Center or its activities from July 2022 through July 2023. The Town will continue to make that portion of the Senior Center presently used by Senior Center activities available at no charge which will include utilities at no charge.

It is accepted that SCI will maintain the conditions of the grant, and if grant funding is lost due to SCI reporting failures etc.…, the Town will not be required to supplement the lack of the grant funding during the referenced period.

Concurrently, Thunderbolt will assist with working to continue to seek the same funding annually, as long as the funding is provided in an amount of $24,000 or greater, the Thunderbolt will have no financial obligation to SCI for services performed.

Dated this _____ of _____, 2022.

Representative SCI – Name _____ Signature _____

Thunderbolt Mayor – Name _____ Signature _____

Town Administrator – Name _____ Signature _____

2821 River Drive - Thunderbolt, Georgia 31404

Town Hall Phone No. 912-354-5533

FILM PRODUCTION APPLICATION/AGREEMENT

The Town of Thunderbolt recognizes that productions have an economic impact and can contribute to the vitality of the community. By keeping the public's best interest in mind, persons/firms/companies wishing to engage in commercial film production activity upon public or private property, which seek permission to conduct certain activities prohibited under local law, which requires state or federal permitting or approval, require city services, street closure and / or require public parking must first be granted approval from the Town Administrator or the Mayor and Town Council as set forth below:

1. Consideration for Approval by the Town Administrator:

Productions taking place for one (1) to five (5) days which will have:

a. No activity within the State's Water Protection Jurisdictional Area;
b. No more than two (2) street closures with traffic control and;
c. Application shall be completed and submitted in its entirety **at least five (5) business days prior to** beginning of activity for consideration by the Town Administrator.

2. Consideration for Approval by the Mayor and City Council:

a. Productions taking place for six (6) or more days or productions that require activity which includes more than two (2) street closures, traffic control, limit access to the sidewalks and/or access on the water shall complete and submit the application **at least thirty (30) days prior to** a regularly scheduled Town Council meeting.

NOTE: Monthly Town Council meetings are held on the second Wednesday of each month.

Applications are considered on a first come, first served basis and shall not conflict with annual events or activities already approved. No more than one production in the same location, at the same time will be permitted due to limited infrastructure and Town resources.

Type of Production	**Base Permit Fee**	**Number of Days for Production Activity** *(Productions with activity beyond one day are to pay $50 per day above the base fee.)*	**Total Permit Fee**
Still Photography /Documentary (no city services)	$100		
Commercial	$250		
Corporate Video	$250		
Music Video	$275		
Television Show	$350		
Feature Film	$500		
Student Permit (w/School Proof of Insurance)	$25		
Drone Fee Per Location	$125		
On Site City Staff Fee Per Hour – 4 hour minimum	$40-$100		
Police Staff Fee Per Hour Per Officer with vehicle	$60		
Police Staff Fee Per Hour Per Supervisor with vehicle	$80		
Fire Staff Fee Per Hour Per Firefighter with vehicle	$125		
Fire Staff Fee Per Hour Per Supervisor with vehicle	$150		
City Vehicle Per Hour other than public safety as available	$60		
Fire Marshall Per Hour (4-hour min)	$50		
City Facility Rental Per Day	$1,500		
(City Hall, Community Center, Fire Dept, Parks, Etc.)			
Parking Fee Per Vehicle	$5		
Rush Fees			
Rush Fee Per Location Within 72 Hours of Production	$200		
Rush Fee Per Location Within 48 Hours of Production	$300		
Rush Fee Per Location Within 24 Hours of Production	$500		
Overweight/Extended Length Truck Per Vehicle Roundtrip	$250		
(Residential Streets - with Signed Damage Repair Agreement)			

Today's Date:_____ Application Fee Submitted (per type indicated above):_____

The production company is responsible to pay an additional non-refundable $500 to have a Special Called Council Meeting arranged in order to expedite consideration of the application. Please confirm by checking one of the following options:

□ REQUESTING □ NOT REQUESTING

- The Film Production Application fee, as noted above, is due at the time of application submittal and is non-refundable.
- The application will be reconsidered for approval if substantial changes are made or additional needs are requested. Proposed activity may be delayed and additional fees may apply.

GENERAL INFORMATION:

1. Name of Production: _____
2. Production Company: _____
3. Production Representative (Local Contact Person): _____

The individual listed above must be on site during production activity and readily available at all times to address concerns.

4. Local Address: _____ City: _____ State: _____ Zip: _____
5. Contact Phone: _____ Email: _____
6. Phone Number and / or Website for Public information: _____

PRODUCTION DETAILS:

1. Date(s) and time(s) of production activity: _____
   a. Beginning of Setup: Date/Time period _____
   b. Completion of Teardown: Date/Time period _____

2. Location(s): _____
   a. A detailed site plan of the area(s) requested for production with all structures depicted is required at time of application submittal.

3. Estimated number of people involved in production:
   Personnel _____ Crew _____ Extras _____

4. Will activities require closure of public streets? □ Yes (provide explanation below) □ No
   a. Describe activity: _____
   b. List requested streets: _____
   c. Estimated dates for street closure: _____

5. Will commercial trucks be utilized during activity? □ Yes (provide explanation below) □ No
   a. Describe activity: _____
   b. List locations for parking: _____

6. Describe any use of amplified sound, location, and effective times: _____

7. Check all that apply during production activity (additional permits may be required):

□ Animals on site	□ Fireworks	□ Temporary dumpster
□ Use of generators	□ Amusement rides	□ Building changes
□ Stunt work	□ Simulated weapon use	□ Removal / trimming of vegetation
□ Smoke / fire / pyrotechnic effects	□ Falling / jumping from height	□ Other: _____
	□ Temporary structures	

Provide Details:

CITY SERVICES REQUESTED:

□ Department of Public Works Request(s):

Equipment	Quantity	Exact Location	Days & Hours Requested
Traffic Cones			
Barricades			
Traffic Barrels			
Hydrant Meter			
Reschedule Routine Services			

□ Parking requests (include a map indicating locations as described below):

Type of Parking Area	Exact Location(s)	Use for Parking (i.e. working, crew, production/staging, base camp, extras…)	Days & Hours Requested	Quantity
Private				
Commercial				
Town Lot/Spaces				
Other				

□ Police Detail requests:

a. Please describe: _____

b. Will additional security be hired? □ Yes (provide details below) □ No

Provide details: _____

_____

□ Fire Detail requests:

a. Please describe: _____

_____

_____

INFORMATION/PRODUCTION GUIDELINES:

This section provides information and standard requirements during production activity and serves as a guide for all companies desiring to obtain a commercial film production permit in Thunderbolt. The Town assumes no liability arising or resulting from the determinations of respective minimum staffing levels or the requirements for any production. The Town of Thunderbolt reserves the right to require additional Town services and/or monetary deposits that may not be noted, but determined necessary. Production activity taking place in Thunderbolt, inclusive of filming, parking, set dressing, load-in and load-out within Town limits require a production permit or shall be cited as a violation for the production company.

The Town Administrator or Mayor and Town Council reserve the right to restrict production activity based on the anticipated impact to the community and demand on resources.

Production Scouting

Once the Town of Thunderbolt is on the list of locations for production, the Town shall be contacted in order to discuss Town policies, ordinances and parking regulations.

Process of Application Consideration

1. All town department heads affected by said activity must review and confirm acceptance of the application prior to the application being approved by the Town Administrator or the Mayor and Town Council.
2. A commercial film production permit may be withheld when the department heads of Town departments, in good faith, believe that the proposed activities will endanger the public health, safety, welfare, and / or damage property.
3. After reviewing the comments of all affected departments of the city, based on the specifics of the production activities, approval or rejection to proceed with the application process will be granted.
4. Requests for filming on holidays are reviewed on a case-by-case basis. Locations for production activity are reserved on a first-come, first-serve basis, regardless of the size or scope of the production.

Consideration of Application

1. In order for the application review process to be completed, the production representative will first meet with the Town Administrator and applicable Town department personnel to review the application so that all concerns and details are addressed and agreed upon. Following these meetings, the application will be submitted for Mayor and Town Council or Town Administrator consideration.
2. The Town Administrator may at her / his discretion approve production activity as outlined on page 1 of this application.
3. The Town Administrator, in consultation with directors of affected departments, may also impose any necessary restrictions or conditions to be observed in accordance with public safety, environmental and administrative considerations involved in the application.

Facility Reservation Office

1. Approval of reservation applications for use of Town owned facilities are required through the Town Administrator and Department Head of the facility being requested.
2. The production representative granted a permit shall comply with all applicable laws, ordinances and policies pertaining to approved facility application.
3. The production representative granted a permit shall be responsible for its contractors and subcontractors adhering to all applicable laws, ordinances, and policies pertaining to approved facility applications.

Fire Department

1. In the interest of public safety, the Town of Thunderbolt Fire Department must review and approve aspects of the production activity that may include, but not limited to, fireworks or pyrotechnics, emergency vehicle access, and use of open flame in accordance with city ordinances and all permit requirements. The Fire Chief will determine whether or not department personnel are needed and the production company shall pay directly for said services.
2. The Fire Chief must approve requested participation by the Fire Department directly.
3. Water activities and/or stunts will require the presence of Fire Department personnel.
4. The production company shall be solely responsible for coordinating with the Fire Chief, the hiring and compensating of necessary personnel in association with the use Fire Department personnel.
5. Fees will be assessed and invoiced for use of department vehicles in association with production activity.

Parking

All production vehicles must park in legally designated parking spaces and/or lots. Vehicles parked in unauthorized areas (i.e. handicapped spaces, loading zones, fire lanes, lanes of traffic, unlicensed lots, residential zones, right-of-ways etc.) without official authorization will be fined and/or removed.

1. The production company shall effectively demonstrate that they have maximized the use of private commercial parking prior to requesting use of public parking.
2. In most cases, the Town may provide public parking spaces only for essential unit vehicles.
3. The production company may be required to use a remote parking location and arrange for suitable shuttle service for locations where off-street parking is not available (i.e. residential locations). At all times parking shall be organized to minimize the disruption to the area.
4. Request for use of parking lots or spaces must be submitted in detail for approval with the application.

5. Requests for production vehicles parking shall be included in the application request for consideration.
6. Requests for public parking spaces that have a direct impact on a business or resident(s) may be required to be accompanied by a notification letter confirming communication with the affected business/property owner/ manager prior to the request for parking being approved.

Street Closures

If roads are to be blocked or traffic disrupted in any manner, the production representative must directly coordinate with the Town Administrator and the Thunderbolt Police Department during regular business hours.

1. Public streets shall not be closed unless:
    a. Adequate alternate routes are available,
    b. Adequate access to adjacent businesses is assured,
    c. Transit can be maintained on the portion of the street to be closed, or can be maintained on adjacent streets.
    d. When traffic cannot be effectively diverted onto other streets, traffic shall be stopped only intermittently and for no longer than five (5) continuous minutes during each fifteen (15) minute period.
    e. Occupants of properties within a street closure or within any area a film company is filming are to be informed of the activity by the production company. In a residential area, residents in any block where filming is occurring or which is occupied by production vehicles shall be advised of the proposed activity.
    f. Adequate access to the area shall remain open at all times for emergency service personnel and emergency vehicles to ensure safety.

Police Department

1. Any person or organization shall comply with security and safety guidelines set by the Thunderbolt Police Department.
2. The Chief of Police must approve requested participation by the Police Department directly.
3. Traffic Control:
    a. All productions that require any amount of pedestrian and / or vehicle traffic control must include detailed information within the application for consideration. The off-duty officer in accordance with the permit shall directly coordinate all traffic interruption on-site.
4. The production company shall be solely responsible for coordinating, with the Chief of Police, the hiring and compensating of necessary personnel in association with activity.
5. Fees will be assessed and invoiced for use of department vehicles in association with production activity.

Public Works Department

1. The site of the production activity must be restored to its original condition.
2. Please note that any production that is found illegally dumping debris/trash will be fined. In addition, any production leaving debris/trash behind at any production location will be billed for the time, labor and equipment used by the Public Works Department to clean up the area.
3. Upon completion of work, all materials and debris shall be entirely removed and the right-of-way left in a condition satisfactory to the Director of Public Works. Any costs for cleanup by the Town will be charged to the permit holder.
4. It is the responsibility of the production company to provide adequate toilet facilities during activity as appropriate. Location(s) of said stations shall be indicated on provided site plan.
5. Electrical needs are the sole responsibility of the production company. Generators shall not run after 10 pm, nor disrupt the peace and quiet in non-commercial areas.
6. The production company shall be solely responsible for coordinating, with the Director of Public Works, the hiring and compensating of necessary personnel in association with activity.
7. Fees will be assessed and invoiced for requested services/equipment and use of department vehicles in association with production activity.

Additional Agencies

1. Georgia Department of Natural Resources:
   An issued Letter of Permission (LOP) from Georgia Department of Natural Resources is required for any activity within the Water Protection Jurisdictional Area, fifteen (15) business days prior to activity. The production is subject to cancellation if the LOP is not received by the Town prior to the noted deadline. Requests may be submitted at http://coastalgadnr.org/sendemail.
   In the case of duplicate permits (i.e. application approval from the city and/or an issued LOP), the more restrictive provisions of any permit will control.
   The Town will notify DNR Enforcement when activity taking place conflicts with the issued LOP.
2. Georgia Department of Transportation:
   The Georgia Department of Transportation shall be contacted when production activity impacts their jurisdiction. Contact information is available at http://www.dot.ga.gov/AboutGDOT/Districts.
3. Chatham County:
   Chatham County shall be contacted when production activity impacts their jurisdiction. Contact information is available at http://www.chathamcounty.org/Home/Department-Contacts.

Residential / Commercial Areas

1. Production representative must provide written documentation confirming notification provided to merchants and / or residents prior to the Commercial Film Production Application being submitted for consideration of approval. Documentation shall include signatures of merchants notified when possible.
2. It is the responsibility of the production representative to negotiate compensation with residents and / or businesses when they are impacted directly by the activity.
3. Cast/crew may not trespass onto private property without consent. All personnel must remain within the boundaries of the property that has been permitted for filming.
4. Residents / Merchants shall never be prevented from access (street, driveway, and sidewalk) to their home / business as a result of film production, except for brief periods when scenes are being shot.
5. Productions may not impede normal residential services such as garbage collection.
6. Move-ins, move-outs and any related noisy activities of a production company shall occur only during the following periods: 7am – 10 pm.

Signage

1. Signage to direct cast/crew or any other production elements is permitted only by specific production company's permitted use and must be removed immediately upon completion of permitted activity. An invoice for costs incurred by the Town for any removal of left signage will be forwarded to the production representative and must be satisfied before issuance of any further permits.
2. When filming occurs in a commercial area with limited passage on the right-of-way, the production company must provide proper wayfinding signage indicating businesses are open and provide an alternate route that will not negatively impact business activity.
3. When filming occurs where pedestrians who are not associated with the production will be present, the production company must provide proper wayfinding signage and off-duty officers shall be stationed throughout the set in order to direct pedestrians politely and safely through or around set.

Amusement Rides

1. Separate from the insurance required by the Town of Thunderbolt, proof of insurance from the company providing amusement rides in conjunction with the production activity is required at the time of application.

Enforcement

1. A commercial film production permit may be revoked immediately by the Town Administrator when activities are believed to be endangering the public health, safety, welfare, and / or damaging property.
2. A commercial film production permit may be revoked within 24-hours by written notice from the Town Administrator noting a violation of activity not permitted.
3. A violation of the permitted activity, in accordance with this application, shall be considered a violation of the Town code, enforceable as provided herein. Persons engaged in a production without approval, or otherwise in violation of the guidelines herein, shall be subject to enforcement by Town Police Officers or Code Enforcement Officer.

Revisions

The Mayor and Town Council may adopt revisions to the Commercial Film Production Application. The Town Administrator may authorize amendments to the Commercial Film Production Application proposed by staff, and shall present such amendments to the Mayor and City Council for approval.

Indemnification / Insurance

1. The production representative must sign this Agreement at time of submitting application, which provides for certain indemnification and other legal requirements. Prior to the issuance of the production permit, the production company shall maintain, at its sole expense, public liability insurance covering all production activity taking place on / off Town properties and resultant use thereof, naming the Town of Thunderbolt as an additional insured, in the amount of $1 million. The Certificate of Insurance is required to be provided prior to the production beginning. Failure to provide insurance will result in the cancellation of production activity.
2. The company is responsible for obtaining necessary insurance as deemed appropriate by the property owner when private property is being utilized.
3. The production representative shall deliver to the Town Administrator a certificate or certificates of insurance, as specified above, evidencing the existence of public liability insurance in the minimum amounts described above. Each certificate shall provide that the Town receive not less than thirty (30) days written notice of cancellation prior to such cancellation. In the event that such insurance is cancelled, expired or terminated, the production representative shall be required to obtain insurance immediately and furnish proof to the Town Administrator. If such valid insurance is not obtained within twenty-four (24) hours after cancellation or termination, the permit shall be revoked for the production and all associated activity shall cease. The production representative shall be responsible for submitting all certificates of insurance of its contractors and subcontractors.

ACCEPTANCE AND AGREEMENT

I, as the production representative of the commercial production company, do hereby agree to indemnify and hold harmless the Town of Thunderbolt, Georgia, its elected officials, officers, agents, employees and contractors from and against any and all loss, damage, claim, demand, liability or expense by reason of any damage or injury to property or person which may be claimed to have arisen as a result of or in connection with any production activity of the production representative, directors, officers, agents, servants, contractors, and subcontractors, including the occupancy or use of listed activity locations during the time period of said production.

By providing my signature directly below, I agree to the above information and agree to comply with the information and guidelines specified in this document to ensure that public health and safety is not compromised during production activity, shall such be granted. In addition, I consent to the jurisdiction of the State and Superior Courts for Chatham County, the Municipal Court of the Town of Thunderbolt, and I agree that all disputes shall be resolved in one of these courts, and waive any objections to jurisdiction and venue.

Please print:

I,_____(Production Representative), individually, and as authorized representative of

_____(Production Company), do hereby agree to the above terms by signing below.

Production Representative's Signature:_____

Date:_____

Production Producer's Signature:_____

Date: _____

FOR OFFICE USE ONLY

Staff signatures for town departments listed below indicate the Commercial Film Production Application has been reviewed and department needs are accepted as requested. All signatures are required prior to application being submitted for Town Council consideration.

DEPARTMENT	SIGNATURE	DATE
Town Administrator		
Finance		
Fire		
Police		
Public Works		

COMMENTS: _____

_____

_____

ADMINISTRATIVE/MAYOR AND COUNCIL APPROVAL:

Town Administrator: _____ Date: _____

Mayor: _____ Date: _____

APPLICATION REVIEW VERIFICATION	DATE
RECEIVED	
REVIEW DATE WITH TOWN DEPARTMENTS	
FOLLOW UP REVIEW MEETING(S) WITH PRODUCTION REPRESENTATIVE	
COUNCIL MEETING DATE FOR MAYOR & TOWN COUNCIL CONSIDERATION OF APPROVAL (AS APPLICABLE)	
DETERMINATION: APPROVAL ☐ DENIAL ☐	

STATE OF GEORGIA)

COUNTY OF CHATHAM)

RESURFACING PROGRAM

INTERGOVERNMENTAL AGREEMENT FOR RESURFACING TOWN STREETS

THIS AGREEMENT made and entered into this _ day of MONTH, YEAR between the **MAYOR AND COUNCIL OF THE TOWN OF THUNDERBOLT,** a municipal corporation organized and existing under the laws of the State of Georgia (herein after referred to as the **"Town"),** and **THE CHAIRMAN AND COMMISSION OF CHATHAM COUNTY,** a political subdivision of the State of Georgia, (hereinafter referred to as the **"County").**

WITNESSETH

WHEREAS, the **County** proposes to resurface several miles of various County roads;

WHEREAS, the **Town** proposes to resurface one or two small roads;

WHEREAS, the **Town** requested that the **County** include the resurfacing of **Town** roads in the **County** resurfacing construction contract;

WHEREAS, the **Town** will reimburse the **County** for the resurfacing accomplished within the **Town;**

WHEREAS, the **County** will provide inspection and project management for the resurfacing;

NOW THEREFORE, in consideration of the mutual benefits to the parties, **Town** and **County** agree as follows:

The above recital is incorporated by reference into the numbered paragraphs of this agreement.

1. The **Town** agrees to pay for all construction costs related to the resurfacing of roads in the **Town.** Reimbursement will be paid after all construction is complete. An estimate of the costs will be provided to the **Town** prior to obtaining bids for construction. A revised estimate will be provided after bids are received.

2. All construction engineering and contract supervision shall be the responsibility of the **County** Department of Engineering and the **County** will be responsible to ensure that all work is accomplished in accordance with contract documents. A copy of the bid documents will be provided to the **Town** for their review prior to obtaining construction bids.

3. The **Town** shall have the right to visit and inspect the work at any time and advise the **County** Engineer of any observed discrepancies or potential problems. The **County** will invite the **Town** staff to the final inspection of the work within the **Town.**

4. In the event it becomes necessary to add pay items that are not provided in the contract, the **County** shall negotiate prices with the contractor and enter into a change order to the contract for completion of the additional work. The **Town** agrees to pay for the additional cost as required to complete the work, provided, however, the County will advise the Town of any proposed change order in advance of obligating the Town for such additional cost and if the cost of the change order is more than $_3,500_____ the Town may reject the change order and will not be responsible for the additional costs.

5. In the event the dollar amount of the bid for the portion of the road paving in **Town** is more than ten percent above the approved cost estimate the **Town** may advise the **County** not to accept the bids or request that the **County** negotiate with the low bidder to remove the **Town's** portion of the paving. The **Town** will then have no further obligations under this agreement.

IN WITNESS WHEREOF, the **Town and County** have caused this agreement to be duly executed by their proper officers and so attested with their corporate seals affixed hereto set forth in multiple originals as of the date written above.

CHATHAM COUNTY, GEORGIA

Goodwyn Mills Cawood

7 East Congress Street
Suite 504
Savannah, GA 31401

T (912) 226-1667

www.gmcnetwork.com

June 10, 2022

Robert Milie, Town Administrator
Town of Thunderbolt
2821 River Drive
Thunderbolt, GA 31404

Re: Proposal to Assist with NPDES Phase I MS4 Stormwater Management Plan Update

Dear Bob:

Per your request, Goodwyn Mills and Cawood, LLC. (GMC) is very pleased to provide the Town of Thunderbolt with a proposal to update the Town's Stormwater Management Plan as required by the National Pollutant Discharge Elimination System (NPDES) Phase I Municipal Separate Storm Sewer System (MS4) Permit that was issued to the Town on April 12, 2022. This permit requires that the Town revise the existing SWMP by or before October 9, 2022 to meet new permit requirements and submit it to the Georgia Environmental Protection Division (EPD) for review and approval.

GMC has extensive knowledge of the Town's stormwater system and stormwater programs and has assisted the Town with their stormwater management program in various capacities over the last 10 years. This has included assistance with the following:

- Preparation of the 2017-2022 SWMP and ancillary plans such as the Town's Illicit Discharge Detection and Elimination (IDDE) Plan, Enforcement Response Plan (ERP) and Green Infrastructure/Low Impact Development (GI/LID) Plan. These plans were reviewed and approved by the EPD.
- Regulatory assistance with a stormwater compliance inspection conducted by the EPD in September 2021 in which the EPD determined the Town was successfully administering its stormwater program and met all permit requirements.
- Assisted with the annual implementation of the SWMP and submission of the required Annual Reports to the EPD for the 2017-2022, 5-year permit cycle .

The following scope of work will ensure that the Town remains compliant in a most cost-effective manner through the upcoming permit cycle of 2022-2027.

SCOPE OF WORK

Task 1: Project Management

GMC will work on behalf of the Town as the liaison to the EPD as it relates to compliance with the NPDES tasks and program responsibilities addressed within this proposal. This may include conference calls and emails with EPD during the plan revision process. The task will also include general project management and up to (2) meetings with the Town, an initial meeting to discuss the scope of the revisions and a follow-up meeting. GMC will also coordinate with the Town throughout the plan revision process to discuss proposed revisions and solicit feedback on municipal procedures and ordinances.

Task 2: SWMP Update

The EPD issued a new Phase I MS4 Medium Permit to the Town on April 12, 2022 that will remain in effect until April 11, 2027. The permit requires the Town to update the Stormwater Management Plan (SWMP) to meet the new permit requirements and submit it to EPD for review within 180 days (on or before **October 9, 2022).**

GMC will prepare a draft SWMP that incorporates new and/or modified Best Management Practices (BMPs) as required by the new permit. This will include a description of each activity, a measurable goal, how it will be measured and tracked, and a listing of documentation to be submitted to EPD with the Annual Report. GMC will also update the SWMP to include a description of how each program element required by the Permit will be implemented.

GMC will prepare a draft SWMP for review by the Town and will update it based on comments provided. GMC will prepare a final draft for submittal to EPD and will provide the Town with one hard copy and one electronic copy of the submittal. This will also include the submittal of Geographic Information System (GIS)-based maps and inventories, relevant Town ordinances, and inspection checklists as required by the permit, including the following:

- *GIS-Based MS4 Structure Inventory and Map* (Section 3.3.1 of the Permit): GMC will provide an updated map and an inventory database of MS4 structures.
- *GIS-Based MS4 Outfall Inventory and Map* (Section 3.3.2 of the Permit): GMC will provide an updated map and inventory database of MS4 outfalls.
- *Other Stormwater Inventories:* GMC will work with the Town to provide an updated database inventory of Municipal Facilities, Highly-Visible Pollutant Sources (HVPSs), and Industrial Facilities. These inventories will be provided in a table format.
- *Stormwater and Pond Inspection Checklists:* GMC will provide permit-compliant checklists that will be used to document inspections of 1) Municipal facilities 2) Industrial sites 3) Highly-Visible Pollutant sites, and 4) public ponds. The Town may also opt to use its own forms that will be submitted with the revised SWMP.
- *Capital Improvement Project (CIP) Stormwater Impact Assessment Form*

Please note that providing any GIS-based maps and databases assumes that GMC will be hosting the Town's GIS database and that the Town will provide as-builts if any new development has taken place in 2022.

This task will be considered complete upon submittal of the SWMP on or before October 9, 2022. GMC assistance with responding to future comments from EPD on the revised SWMP, submitted as part of this contract, will be handled as part of GMC's annual NPDES MS4 Compliance contract, on an hourly, as needed basis..

Task 3: IDDE Plan Update

The EPD issued Coastal IDDE Guidelines for coastal communities in 2020 that allowed a modified approach to traditional dry weather screening (DWS) of stormwater outfalls that meet certain criteria. The GMC previously worked with the Town to develop a revised IDDE Plan that incorporated the 2020 Guidelines that was approved by the EPD. There were no changes to the 2020 Coastal IDDE Guidelines in the new permit. Assuming the Town wishes to utilize the same approach without substantive changes, the GMC will submit the IDDE plan as-is to EPD with the SWMP update. Please note, responding to future comments from EPD on the IDDE Plan, submitted as part of this task, will be considered out of scope and can be completed upon request from the Town for an hourly additional fee.

Alternatively, the Town may opt to propose an alternative approach to DWS to identify and eliminate illicit charges as allowed by the new permit. This would require submittal of the modified approach to EPD for review and approval, and likely result in several submittals and rounds of comments from EPD. This would be an out of scope service that could be completed upon request from the Town for an hourly additional fee. For purposes of this proposal, GMC will assume that the Town wishes to continue utilizing the DWS approach listed in its current IDDE Plan.

Task 4: ERP Update

As required by Section 3.3.6 of the new permit, GMC will review the ERP to ensure the ERP lists all of the enforcement actions, penalties, and fees the Town has the authority to assess based on current codes and that the ERP is permit-compliant. These updates are anticipated to be minor because there were no other substantive regulatory changes to the permit. Once a final draft has been completed and approved by the Town, it will be submitted to EPD with the SWMP update. Please note, GMC assistance with responding to future comments from EPD on the revised ERP, submitted as part of this task, will be handled as part of GMC's annual NPDES MS4 Compliance contract.

Task 5: GI/LID Plan Update

As required by Section 3.3.6 of the new permit, GMC will review the GI/LID Plan to ensure it is permit compliant and update the plan, if needed, to accurately describe the status of the Town's program. This update is anticipated to be minor because most of the regulatory changes to this Plan in the new permit are not applicable because the Town does not currently have any GI/LID structures on its inventory. However, the Town must still have a Plan in place that meets permit requirements.

GMC also proposes to incorporate several revised GI/LID inspection forms that will be based on forms that were recently developed and are publicly-available. Currently, the existing GI/LID plan for the Town incorporates inspection forms for GI/LID structures from the Georgia Stormwater Management Manual (GSMM), which are acceptable forms to use but provide limited information. The University of Georgia Marine Extension and Georgia Sea Grant and the GMC recently developed visual-based inspection forms for the most common GI/LID structures in Coastal Georgia, including bioretention/bioinfiltration; permeable interlocking concrete pavement and pervious concreate/porous asphalt. (EPD has approved use of these forms for other clients' GI/LID plans). The content on these forms is based on criteria from the GSMM, but they were enhanced with photos of good examples and potential issues and maintenance needs which makes use of these forms more "user friendly" and helps ensure a thorough and consistent inspection and condition assessment. Once a final draft GI/LID Plan has been completed, it will be submitted to EPD with the SWMP update.

Please note, GMC assistance with responding to future comments from EPD on the revised GI/LID Plan, submitted as part of this task, will be handled as part of GMC's annual NPDES MS4 Compliance contract.

Schedule

The schedule for the scope of work provided herein will be as established in the Town's SWMP and as required by the NPDES Phase I MS4 Permit. A revised SWMP will be submitted to the EPD no later than **October 9, 2022**.

Proposed Fee

GMC can implement the Scope of Work outlined above for Tasks 1-5 the lump-sum budget of $12,520. GMC will invoice the Town monthly, for percentage completed in accordance with the Terms and Conditions listed in Attachment A. If hourly services are performed, they will be billed based on the Standard Rate and Fee Schedule included in Attachment B.

Proposal Acceptance
If this scope of work and fee proposal is acceptable, please sign and date below and forward one copy as our agreement and authorization to proceed. Please contact our office if you have any questions. We look forward to working with you on this most important project.

Sincerely,

GOODWYN MILLS CAWOOD, LLC



Ed DiTommaso, AICP, CFM
Environmental Department Head

_____ _____
ACCEPTED BY DATE

Attachments

ATTACHMENT A – TERMS AND CONDITIONS

The Town of Thunderbolt ("OWNER") wishes to engage Goodwyn Mills and Cawood, Inc. ("CONSULTANT") to provide professional consulting services to assist the Town with National Pollutant Discharge Elimination System (NPDES) Phase I Municipal Separate Storm Sewer System (MS4) Permit compliance through the duration of its current NPDES Permit. The following summarizes the terms and conditions:

ASSIGNMENT: Neither party to this Agreement shall assign or transfer any rights under or interest in this Agreement without the prior written consent of the other party except that CONSULTANT may retain sub-consultants as CONSULTANT deems appropriate and CONSULTANT may make a collateral assignment of this Agreement to its lenders.

DISPUTE RESOLUTION: OWNER and CONSULTANT agree that they shall first submit any and all unsettled claims, counterclaims, disputes and other matters in question between them arising out of or relating to this Agreement or breach thereof to mediation unless the parties mutually agree otherwise. Within fifteen (15) days of receipt by one party of notice of a dispute and demand for mediation from the other party, the parties shall jointly select a mediator and shall conduct mediation within (30) days of receipt by one party of notice of a dispute and demand for mediation from the other party. The cost of mediation shall be paid equally by both parties. The OWNER and the CONSULTANT further agree to require a similar mediation provision in all agreements with independent contractors and consultants, thereby providing for mediation as the primary method for dispute resolution between the parties to those agreements.

RISK ALLOCATION: In recognition of the relative risks, rewards and benefits of the project to both the OWNER and CONSULTANT, the risks have been allocated so that the OWNER agrees, to the fullest extent permitted by law, total liability of CONSULTANT to the OWNER, for any and all injuries, claims, losses, expenses, damages or claim expenses arising out of this agreement, from any cause or causes, shall not exceed the total compensation received by CONSULTANT under this Agreement or to be received during the entire term of this agreement. Such causes include, but are not limited to, negligence, errors, omissions, strict liability, and breach of contract or breach of warranty.

INDEMNIFICATION: To the fullest extent permitted by law, CONSULTANT shall indemnify and hold harmless OWNER, OWNER's elected officials, directors, partners, employees and agents from and against any and all claims, costs, losses and damages (including but not limited to all fees and charges of engineers, architects, attorneys and other professionals and all court or arbitration or other dispute resolution costs) caused solely by the negligent acts or omissions of CONSULTANT or CONSULTANT's officers, directors, partners, employees, agents and CONSULTANT's services under this Agreement. To the fullest extent permitted by law, OWNER shall indemnify and hold harmless CONSULTANT, CONSULTANT's officers, directors, partners, employees, and agents from any and all claims, costs, losses and damages (including but not limited to all fees and charges of engineers, architects, attorneys and other professionals and all court or arbitration or other dispute resolution costs) caused solely by OWNER, OWNER's officers, directors, partners, employees, agents and OWNER's consultants with respect to this Agreement or the Project. If the OWNER requests drawings furnished by electronic media, the OWNER shall sign an agreement specifically excluding CONSULTANT's liability from any use of such electronic media.

STANDARD OF CARE: The standard of care for all professional engineering and related services performed or furnished by CONSULTANT under this Agreement will be the care and skill ordinarily used by members of CONSULTANT's profession practicing under similar conditions at the same time and in

the same locality. CONSULTANT makes no warranties, express or implied, under this Agreement or otherwise, in connection with CONSULTANT's service.

This Agreement is based on applicable laws, regulations, standards, and requirements as of its Effective Date. Changes to these requirements after the Effective Date of this Agreement may be the basis for modifications to OWNER's responsibilities or to CONSULTANT's scope of services, times of performance, and compensation.

FAILURE TO PAY: If OWNER fails to make any payment due CONSULTANT for services and expenses within 30 days after receipt of CONSULTANT's invoice, then amounts due CONSULTANT will be increased at the rate of 1.5% per month (or the maximum rate of interest permitted by law, if less) from said thirtieth day; and CONSULTANT may, after giving seven days written notice to OWNER, suspend services under this Agreement until OWNER has paid in full all amounts due for services, expenses, and other related charges. OWNER waives any and all claims against CONSULTANT for any such suspension.

TERMINATION: The obligation to provide further services under this agreement may be terminated by either party upon thirty days written notice to the other party.

The OWNER agrees that the CONSULTANT is solely responsible for jobsite safety and warrants that this intent shall be made evident in the OWNER's agreement with the Contractor. The OWNER also agrees that the OWNER and the CONSULTANT shall be indemnified and shall be made additional insureds under the CONSULTANT's general liability insurance policy. The CONSULTANT and his personnel have no authority to exercise any control over any construction contractor or other entity or their employees in connection with their work or any health or safety precautions.

UNUSUAL OR CONCEALED PHYSICAL CONDITIONS: In the event CONSULTANT encounters concealed or unknown conditions of an unusual nature, differing materially from those ordinarily encountered in similar work, the OWNER agrees the CONSULTANT's scope of services, times of performance, and compensation shall be equitably adjusted.

MISCELLANEOUS PROVISIONS:

a. Notice: All notices, requests, demands, tenders and other communications required or permitted hereunder shall be made in writing and shall be deemed to be duly given if delivered in person or mailed certified mail, return receipt requested, to the addresses set forth. Either party hereto may change the address to which notices, requests, demands, tenders and other communications to such party shall be delivered or mailed by giving notice to the other party hereto in the manner herein provided.
b. Waiver: Any term or condition of this Agreement may be waived at any time by the party which is entitled to the benefit thereof, but such waiver shall only be effective if evidenced by a writing signed by such party. A waiver on one occasion shall not be deemed to be a waiver of the same or any other breach on another occasion.
c. Amendments: This Agreement may be amended or modified only by a writing signed by both of the parties hereto.
d. Governing Law: The validity and effect of this Agreement shall be governed, construed and enforced under the laws of the State of Georgia.
e. Entire Agreement: This Agreement contains all of the terms agreed upon by the parties with respect to the subject matter hereof and there are no representations or understandings between the parties except as provided herein.
f. Section Headings: Section headings contained in this Agreement are solely for convenience of reference and shall not affect the meaning or interpretation of this Agreement or of any term or provision hereof.
g. Time: Time shall be of the essence in this Agreement.
h. Counterparts: This Agreement may be executed in two or more counterparts, each of which shall be deemed an original and all of which together shall be considered one and the same agreement.

i. Construction of Agreement: No provision of this Agreement shall be construed against or interpreted to the disadvantage of any party hereto or thereto by any court or other governmental or judicial authority by reason of such party having or being deemed to have structured or dictated such provision.

j. No Third-Party Beneficiary: This Agreement shall be binding upon, inure solely to the benefit of, and be enforceable by only the parties hereto, their respective successors and permitted assigns, and nothing in the Agreement, express or implied, is intended to or shall confer upon any person, other than the parties hereto, their respective successors and permitted assigns, any rights, remedies, obligations or liabilities of any nature whatsoever.

ATTACHMENT B – FEE SCHEDULE

2022
Standard Rate and Fee Schedule

Standard Hourly Rates

Principal (Architect, Engineer, Planner, Scientist, GIS)	$ 250.00
Executive/Senior Vice President	$ 225.00
Senior Professional (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 205.00
Professional III (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 190.00
Professional II (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 175.00
Professional I (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 160.00
Senior Consultant (Architect, Engineer, Planner, Scientist, GIS)	$ 150.00
Consultant II (Architect, Engineer, Planner, Scientist, GIS)	$ 135.00
Consultant I (Architect, Engineer, Planner, Scientist, GIS)	$ 115.00
Environmental Scientist/GIS Analyst II	$ 110.00
Environmental Scientist/GIS Analyst I	$ 95.00
Technical III (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 140.00
Technical II (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 110.00
Technical I (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 80.00
Executive Administrative Assistant	$ 85.00
Administrative Assistant II	$ 75.00
Administrative Assistant I	$ 65.00
Surveying:	
Professional Land Surveyor	$ 175.00
Field Crew Supervisor	$ 155.00
Survey Crew (one-man survey crew)	$ 135.00
Survey Crew (two-man survey crew)	$ 155.00
Survey Crew (three-man crew)	$ 185.00

Reimbursable Expenses

Travel Expenses	
Vehicle Transport	$0.58 per mile (or current IRS rate)
Travel/ Meals/ Lodging	Cost plus ten percent
Sub-Consultant/ Sub-Contractors	Cost plus ten percent
Sub-Consultant/Sub-Contractors reimbursable expenses	Cost plus ten percent
Laboratory costs	Cost plus ten percent
GPS equipment	$50.00 per day
Field monitoring equipment (Horiba U-53)	$75.00 per day

Goodwyn Mills Cawood

7 East Congress Street
Suite 504
Savannah, GA 31401

T (912) 226-1667

www.gmcnetwork.com

June 10, 2022

Robert Milie, Town Administrator
Town of Thunderbolt
2821 River Drive
Thunderbolt, GA 31404

Re: Proposal to Assist with NPDES Phase I MS4 Stormwater Compliance Activities and Annual Report

Dear Bob:

Per your request, Goodwyn Mills and Cawood, LLC. (GMC) is very pleased to provide the Town of Thunderbolt with a proposal to continue to assist the Town with National Pollutant Discharge Elimination System (NPDES) Phase I Municipal Separate Storm Sewer System (MS4) Permit compliance for reporting year 2022 - 2023. The Town is currently in the 1st reporting year (2022 – 2023) of the new 5-year permit period (2022-2027). GMC has extensive knowledge of the Town's stormwater system and stormwater programs. We have assisted the Town with their stormwater management program in various capacities over the years, including implementation of the SWMP and submission of the required Annual Reports to the Georgia Environmental Protection Division (EPD) for the previous six reporting years. In addition, we assisted the Town in preparing and submitting the 2017 – 2022 Stormwater Management Plan (SWMP) and assisted the Town during the EPD's 2021 stormwater compliance inspection in which there were no findings and the Town's program was found to be in compliance with regulatory requirements.

The following scope of work will ensure that the Town remains compliant in a most cost-effective manner.

SCOPE OF WORK

Task 1: NPDES Annual Report Assistance

GMC will prepare the Town's NPDES Phase I MS4 Annual Report covering the period of April 1st to March 31st for 2022 - 2023. In January or February of 2023, GMC will provide Town staff with a compliance matrix that will list documentation that is needed for the Annual Report, after which, GMC staff will meet with Town staff to review the documentation and identify any additional best management practices (BMPs) that need to be completed prior to March 31st of each year. Using the documentation compiled, GMC will prepare the Annual Report document, as well as documentation related to any other tasks completed by GMC staff, per this contract. GMC will provide the Annual Report to the Town to review and revise it based on comments received.

GMC will prepare and mail the submittal package for EPD, on or prior to May 15th. GMC will provide the Town with an electronic copy of the Annual Report. If requested, GMC will also provide a hard copy.

Task 2: Dry Weather Screening/Illicit Discharge Monitoring

GMC will perform Dry Weather Screening in accordance with the procedures approved in the Town's 2020 Illicit Discharge Detection Elimination (IDDE) Plan, which is based on the EPD's 2020 Coastal Guidelines (this assumes the Town will submit the same plan with its 2022 – 2027 revised Stormwater Management Plan).

The Town currently has 31 outfalls listed on its inventory and should inspect all of the outfalls within one of the five zones the Town has designated for the 2022 – 2023 reporting year. GMC proposes to screen all of the outfalls within Zone 1 for the 2022-2023 reporting year, or, alternatively, approximately 20% of the outfalls (7 outfalls) if the Town opts not to have screening conducted by zones.

GMC staff will complete a Dry Weather Screening Form (Outfall Reconnaissance Inventory Form) for each MS4 Outfall. If flow is not present, the GMC field staff will note it as such, take a photograph of the outfall, and complete the necessary sections of the form – (1) background data, (2) outfall description, and (3) physical indicators for flowing and non-flowing outfalls. If flow is present, GMC field staff will visually evaluate additional physical indicators of odor, color, turbidity, and floatables. The field staff will also measure temperature, pH, salinity, turbidity, and conductivity using a Horiba U-53 probe. The field staff will calibrate the equipment in accordance with standard protocols and also perform a factory calibration once per year, in compliance with QA/QC procedures. A fecal coliform grab sample will be taken and brought to an accredited laboratory, if the field results indicate potential sewage or when there is visual evidence including milky white or gray color and floatables, a sewage odor, or other applicable evidence of potential sanitary sewer discharge. Please note that lab costs associated with any required fecal coliform monitoring are additional.

GMC field staff will gather all results and complete the Dry Weather Screening Forms. For outfalls where an illicit discharge is suspected, the field staff will provide the Town with the location of the outfall and the sampling results, such that the Town staff can initiate source tracing activities, as appropriate. If requested by the Town, the GMC staff may assist with any required source tracing activities, including GIS analysis of land uses and potential sources and additional upstream water quality monitoring. (Source tracing services can be performed, upon request, at the hourly rate plus laboratory, equipment rental, and mileage expenses.)

Task 3: Maps and Inventories for MS4 Structures and Outfalls

GMC will assist the Town with preparation of the following documents for inclusion in the Annual Report:

- MS4 Control Structure Inventory and Map (BMP 1.1 of Town's SWMP): GMC will maintain and update a map and an inventory database of MS4 structures.
- MS4 Inspection Reports (BMP 1.2 of Town's SWMP): GMC will prepare a table of MS4 inspection reports. This will not include information about maintenance activities.
- MS4 Outfall Inventory and Map (BMP 2.2 of Town's SWMP): GMC will maintain and update a map and inventory database of the Town's MS4 outfalls.
- MS4 Dry Weather Screening Sheets (BMP 2.3 of Town's SWMP): GMC will prepare dry weather screening sheets that summarize the findings of the outfall inspections and screening for inclusion in the Town's Annual Report. If GMC performs any source tracing at the Town's request, documentation of these activities will be maintained.

Please note that updating GIS-based maps and databases assumes that GMC will host the Town's GIS database and that the Town will provide as-builts for any new stormwater outfalls and/or stormwater structures (pipes, ditches, municipal ponds, stormwater vaults, and catch basins) that were added as a result of new development / redevelopment during the 2022-2027 reporting year.

Task 4: NPDES Staff Training

GMC will provide educational materials for a training session on the NPDES Phase I SWMP with Town staff, in accordance with the requirements of the NPDES Phase I MS4 permit. GMC staff will develop training materials, provide a sign-in sheet, and maintain adequate documentation for the Town's Annual Report. Training materials provided by GMC may be in the form of a video or PowerPoint presentation that the Town may provide to appropriate field and supervisory personnel during staff meetings. Alternatively, GMC may provide training opportunities for Staff to attend, such as Regional Stormwater Committee meetings.

Task 5: Educational Outreach Assistance

GMC will assist the Town by providing the following educational materials and assistance:

- Annual review of stormwater website and associated materials. GMC will provide comments to the Town regarding suggested website revisions that the Town may implement.
- Assist Town with responses to public input on the SWMP (posted on Town's website).
- Annual review of public information brochures available at Town Hall. GMC will provide electronic copies of educational materials that the Town may distribute.
- Provide Town with electronic versions of educational material related to industrial and highly visible pollutant sources (HVPS) facilities, so that this information can be distributed to facility managers during the Town's inspection of these facilities.
- Provide suggestions of stormwater-related material to include in one Town Newsletter per year.

Task 6: NPDES Program Management

GMC will work on behalf of the Town of Thunderbolt as the liaison to the EPD as it relates to compliance with the NPDES Phase I MS4 Permit and associated SWMP. This may include meetings, conference calls and emails with the Town's EPD Program Manager as well as intergovernmental coordination with other local NPDES permittees.

Task 7: Address EPD Comments

Over the course of the next year, the Town should anticipate receiving comments from EPD on the 2021-2022 Annual Report that was submitted in May 2022 and on the 2022 – 2023 Annual Report that will be submitted in May 2023. In addition, the Town may also receive comments on the SWMP, and its supporting planning documents, that will be submitted in October 2022 If needed, GMC can assist the Town with preparing a response to EPD comments & addressing any revisions that EPD may request to the Annual Reports and SWMP (if any). GMC would perform this work on an hourly, additional basis, upon request from the Town, in accordance with the rate structure included in Appendix B. GMC will not proceed with this additional task unless authorized by the Town.

Schedule

The schedule for the scope of work provided herein will be as established in the Town's SWMP and as required by the NPDES Phase I MS4 Permit. Compliance activities will be completed by March 31, 2022, and the Annual Report will be completed and submitted to EPD by May 15, 2022.

Proposed Fee

GMC can implement the Scope of Work outlined above for Tasks 1-6 for the lump-sum budget of $12,075. Assistance with Task 7, as outlined above, can be performed for an additional, hourly fee if requested by the Town. GMC will invoice the Town monthly, for percentage completed in accordance with the Scope of Work in Attachment A, and on the basis of the unit prices shown in Attachment B if hourly, additional services are provided.

Proposal Acceptance
If this scope of work and fee proposal is acceptable, please sign and date below and forward one copy as our agreement and authorization to proceed. Please contact our office if you have any questions. We appreciate your confidence in GMC and look forward to working with you on this most important project.

Sincerely,

GOODWYN MILLS CAWOOD, LLC



Ed DiTommaso, AICP, GISP
Principal

_____ _____
ACCEPTED BY DATE

Attachments

ATTACHMENT A – TERMS AND CONDITIONS

The Town of Thunderbolt ("OWNER") wishes to engage Goodwyn Mills and Cawood, Inc. ("CONSULTANT") to provide professional consulting services to assist the Town with National Pollutant Discharge Elimination System (NPDES) Phase I Municipal Separate Storm Sewer System (MS4) Permit compliance through the duration of its current NPDES Permit. The following summarizes the terms and conditions:

ASSIGNMENT: Neither party to this Agreement shall assign or transfer any rights under or interest in this Agreement without the prior written consent of the other party except that CONSULTANT may retain sub-consultants as CONSULTANT deems appropriate and CONSULTANT may make a collateral assignment of this Agreement to its lenders.

DISPUTE RESOLUTION: OWNER and CONSULTANT agree that they shall first submit any and all unsettled claims, counterclaims, disputes and other matters in question between them arising out of or relating to this Agreement or breach thereof to mediation unless the parties mutually agree otherwise. Within fifteen (15) days of receipt by one party of notice of a dispute and demand for mediation from the other party, the parties shall jointly select a mediator and shall conduct mediation within (30) days of receipt by one party of notice of a dispute and demand for mediation from the other party. The cost of mediation shall be paid equally by both parties. The OWNER and the CONSULTANT further agree to require a similar mediation provision in all agreements with independent contractors and consultants, thereby providing for mediation as the primary method for dispute resolution between the parties to those agreements.

RISK ALLOCATION: In recognition of the relative risks, rewards and benefits of the project to both the OWNER and CONSULTANT, the risks have been allocated so that the OWNER agrees, to the fullest extent permitted by law, total liability of CONSULTANT to the OWNER, for any and all injuries, claims, losses, expenses, damages or claim expenses arising out of this agreement, from any cause or causes, shall not exceed the total compensation received by CONSULTANT under this Agreement or to be received during the entire term of this agreement. Such causes include, but are not limited to, negligence, errors, omissions, strict liability, and breach of contract or breach of warranty.

INDEMNIFICATION: To the fullest extent permitted by law, CONSULTANT shall indemnify and hold harmless OWNER, OWNER's elected officials, directors, partners, employees and agents from and against any and all claims, costs, losses and damages (including but not limited to all fees and charges of engineers, architects, attorneys and other professionals and all court or arbitration or other dispute resolution costs) caused solely by the negligent acts or omissions of CONSULTANT or CONSULTANT's officers, directors, partners, employees, agents and CONSULTANT's services under this Agreement. To the fullest extent permitted by law, OWNER shall indemnify and hold harmless CONSULTANT, CONSULTANT's officers, directors, partners, employees, and agents from any and all claims, costs, losses and damages (including but not limited to all fees and charges of engineers, architects, attorneys and other professionals and all court or arbitration or other dispute resolution costs) caused solely by OWNER, OWNER's officers, directors, partners, employees, agents and OWNER's consultants with respect to this Agreement or the Project. If the OWNER requests drawings furnished by electronic media, the OWNER shall sign an agreement specifically excluding CONSULTANT's liability from any use of such electronic media.

STANDARD OF CARE: The standard of care for all professional engineering and related services performed or furnished by CONSULTANT under this Agreement will be the care and skill ordinarily used by members of CONSULTANT's profession practicing under similar conditions at the same time and in

the same locality. CONSULTANT makes no warranties, express or implied, under this Agreement or otherwise, in connection with CONSULTANT's service.

This Agreement is based on applicable laws, regulations, standards, and requirements as of its Effective Date. Changes to these requirements after the Effective Date of this Agreement may be the basis for modifications to OWNER's responsibilities or to CONSULTANT's scope of services, times of performance, and compensation.

FAILURE TO PAY: If OWNER fails to make any payment due CONSULTANT for services and expenses within 30 days after receipt of CONSULTANT's invoice, then amounts due CONSULTANT will be increased at the rate of 1.5% per month (or the maximum rate of interest permitted by law, if less) from said thirtieth day; and CONSULTANT may, after giving seven days written notice to OWNER, suspend services under this Agreement until OWNER has paid in full all amounts due for services, expenses, and other related charges. OWNER waives any and all claims against CONSULTANT for any such suspension.

TERMINATION: The obligation to provide further services under this agreement may be terminated by either party upon thirty days written notice to the other party.

The OWNER agrees that the CONSULTANT is solely responsible for jobsite safety and warrants that this intent shall be made evident in the OWNER's agreement with the Contractor. The OWNER also agrees that the OWNER and the CONSULTANT shall be indemnified and shall be made additional insureds under the CONSULTANT's general liability insurance policy. The CONSULTANT and his personnel have no authority to exercise any control over any construction contractor or other entity or their employees in connection with their work or any health or safety precautions.

UNUSUAL OR CONCEALED PHYSICAL CONDITIONS: In the event CONSULTANT encounters concealed or unknown conditions of an unusual nature, differing materially from those ordinarily encountered in similar work, the OWNER agrees the CONSULTANT's scope of services, times of performance, and compensation shall be equitably adjusted.

MISCELLANEOUS PROVISIONS:

a. Notice: All notices, requests, demands, tenders and other communications required or permitted hereunder shall be made in writing and shall be deemed to be duly given if delivered in person or mailed certified mail, return receipt requested, to the addresses set forth. Either party hereto may change the address to which notices, requests, demands, tenders and other communications to such party shall be delivered or mailed by giving notice to the other party hereto in the manner herein provided.
b. Waiver: Any term or condition of this Agreement may be waived at any time by the party which is entitled to the benefit thereof, but such waiver shall only be effective if evidenced by a writing signed by such party. A waiver on one occasion shall not be deemed to be a waiver of the same or any other breach on another occasion.
c. Amendments: This Agreement may be amended or modified only by a writing signed by both of the parties hereto.
d. Governing Law: The validity and effect of this Agreement shall be governed, construed and enforced under the laws of the State of Georgia.
e. Entire Agreement: This Agreement contains all of the terms agreed upon by the parties with respect to the subject matter hereof and there are no representations or understandings between the parties except as provided herein.
f. Section Headings: Section headings contained in this Agreement are solely for convenience of reference and shall not affect the meaning or interpretation of this Agreement or of any term or provision hereof.
g. Time: Time shall be of the essence in this Agreement.
h. Counterparts: This Agreement may be executed in two or more counterparts, each of which shall be deemed an original and all of which together shall be considered one and the same agreement.

i. Construction of Agreement: No provision of this Agreement shall be construed against or interpreted to the disadvantage of any party hereto or thereto by any court or other governmental or judicial authority by reason of such party having or being deemed to have structured or dictated such provision.

j. No Third-Party Beneficiary: This Agreement shall be binding upon, inure solely to the benefit of, and be enforceable by only the parties hereto, their respective successors and permitted assigns, and nothing in the Agreement, express or implied, is intended to or shall confer upon any person, other than the parties hereto, their respective successors and permitted assigns, any rights, remedies, obligations or liabilities of any nature whatsoever.

ATTACHMENT B – STANDARD RATE AND FEE SCHEDULE

2022
Standard Rate and Fee Schedule

Standard Hourly Rates

Principal (Architect, Engineer, Planner, Scientist, GIS)	$ 250.00
Executive/Senior Vice President	$ 225.00
Senior Professional (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 205.00
Professional III (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 190.00
Professional II (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 175.00
Professional I (Architect, Engineer, Planner, Scientist, GIS, Project Manager)	$ 160.00
Senior Consultant (Architect, Engineer, Planner, Scientist, GIS)	$ 150.00
Consultant II (Architect, Engineer, Planner, Scientist, GIS)	$ 135.00
Consultant I (Architect, Engineer, Planner, Scientist, GIS)	$ 115.00
Environmental Scientist/GIS Analyst II	$ 110.00
Environmental Scientist/GIS Analyst I	$ 95.00
Technical III (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 140.00
Technical II (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 110.00
Technical I (Contract Spec., CADD Tech., Designer, Drafting, CA, ROW Acq., Field Tech.)	$ 80.00
Executive Administrative Assistant	$ 85.00
Administrative Assistant II	$ 75.00
Administrative Assistant I	$ 65.00
Surveying:	
Professional Land Surveyor	$ 175.00
Field Crew Supervisor	$ 155.00
Survey Crew (one-man survey crew)	$ 135.00
Survey Crew (two-man survey crew)	$ 155.00
Survey Crew (three-man crew)	$ 185.00

Reimbursable Expenses

Travel Expenses	
Vehicle Transport	$0.58 per mile (or current IRS rate)
Travel/ Meals/ Lodging	Cost plus ten percent
Sub-Consultant/ Sub-Contractors	Cost plus ten percent
Sub-Consultant/Sub-Contractors reimbursable expenses	Cost plus ten percent
Laboratory costs	Cost plus ten percent
GPS equipment	$50.00 per day
Field monitoring equipment (Horiba U-53)	$75.00 per day

Town of Thunderbolt

Proposal Review Date:7/12/2022 **Reviewer** *- Bob Fischer - Robert Milie - Oscar Crosby*

Annual Disaster Debris Removal, Reduction and Disposal Services

Contractor	Custom Tree Care, Inc.	DRC Emergency Services	KDF Enterprises, LLC	CrowderGulf Disaster Recovery and Debris Management	T.F.R. Enterprises, Inc.	Ceres Environmental
PROPOSAL SUBMISSION REQUIREMENTS						
Description	**Meet (Yes or No)**	**Meet (Yes or No)**	**Meet (Yes or No)**	**Meet (Yes or No)**	**Meet (Yes or No)**	**Meet (Yes or No)**
Letter of Interest	Yes	Yes (pg1)	Yes (pg1)	Yes (pg 1)	Yes (pg 1)	Yes (pg 1)
Project Understanding and Approach	Yes	Yes (pg7)	Yes (Tab 1)	Yes (Tab 1)	Yes (Tab 2)	Yes (Tab 2)
Respondent's Qualifications and Experience						
5 Year's Experience	Yes	Yes (Tab 3)	Yes (Tab 2)	Yes (Tab 2)	Yes (Tab 3)	Yes (pg C.7-1)
List of Projects	Yes	Yes (pg 41 - 43))	Yes (Tab 2)	Yes (Tab 2)	Yes (Tab 3)	Yes (pg C.7-1)
Disaster event	All	All	All	All	All	All
Type of work performed	All	All	All	All	All	All
Size of project	Up to 216,689 CY (pg 5)	Up to 16, 205,415 CY	Up to 600,000 CY	Over 29M CY	Up to 1.6M CY	Up to 3.358 M CY
Client name	City of Waveland, MS	Hurricane Ida - Various	Harvey, Houston	Hur Laura, Sally & Zeta	Derecho, Iowa	FDOT District 3
Dates performed	2021	2021	2017	2020	2020	2019
Current Workload	No	Yes	Yes (Tab 2)	Yes (Pg 38)	Yes (pg 69)	Yes (pg C.3.1)
Background	Yes	Yes	Yes	Yes	Yes	Yes
Resondent's Liason	Yes	Yes	Yes	Yes	Yes	Yes (Ms Tia Laurie)
Subcontractor List	None Picked	Yes	Yes	Yes	Yes	Yes
Resumes Submitted	Yes	Yes	Yes (Tab 3)	Yes (Tab 3)	Yes (Tab 4)	Yes (Tab D)
Proposed Manager	Jack Cohagen (pg 55)	Yes	Yes	Yes	Yes	Yes
Primary Liason	Greg Gathers (pg 55)	Yes	Yes	Yes	Yes	Yes (Ms Tia Laurie)
Key Staff	Page 55	Yes (pg 44)	Yes	Yes	Yes	Yes
Provide 3 References	Yes (pg 30)	Yes (Tab 5)	Yes (Tab 4)	Yes (Tab 4)	Yes (Tab 5)	Yes (Tab E)
Approved to Work in State of Georgia	Yes (pg 81)	Yes (pg 5)	Yes (Tab6)	Yes (Tab 7)	Not Included	Yes - (Before Tab A)
Bonding Leter	Yes (pg 80)	Yes (pg 47)	Yes (Tab2)	Yes (Pg 58)	Yes (pg 116)	Yes (pg 116)
Bid Bond Included	No	Yes	Yes	Yes	Yes	Yes
Safety Plan Included	Yes	Yes	No	Yes (Sum pg 28)	Yes (Sum pg 5)	Yes (Sum pg B.1-19)
Proposal Forms						
Price Proposal - Exhibit "A"	Yes - Not Separate	Yes - Separate Cover	Yes - Separate Cover	Separate Cover	Yes - Not Separate	Separate Cover
Addendum Acknowledgement Form - Exhibit "B"	Stated None Received	Yes, Both 1 & 2	Yes - Addendum #1	Yes, Both 1 & 2	Yes, Both 1 & 2	Yes, Both 1 & 2
Referencces Form - Exhibit "C"	yes	Yes	Yes	Yes	Yes	Yes
Drug Free Workplace Certification - Exhibit "D"	Yes	Yes	Yes	Yes	Yes	Yes
Exceptions to the Solicitation - Exhibit "E"	No Exceptions	No Exceptions	No Exceptions	No Exceptions	No Exceptions	No Exceptions
Equal Employment Opportunity Certification - Exhibit "F"	Yes	Yes	Yes	Yes	Yes	Yes
Compliance with the Illegal Immigration Act - Exhibit "G"	Yes	Yes	Yes	Yes	Yes	Yes
Non-Collusion Oath - Exhibit "H"	Yes	Yes	Yes	Yes	Yes	Yes
Good Faith Affidavit - Exhibit "I"	Yes	Yes	Yes	Yes	Yes	Yes
Participation of SBE Firms - Exhibit "J"	Not Completed	Yes	Not Completed	Yes	Yes	Yes
Certification of Insurance - Exhibit "K"	1M/5M	5M/5M	1M/2M	3M/4M	Not Included	2M/2M
Weighted Criteria						
Compliance With Request for Proposal (Yes/No)	Yes	Yes	Yes	Yes	Yes	Yes
Firm Qualifications Evaluation (up to 30 Points)	25	27	29	30	30	30
Firm Capability Evaluation (Up to 30 Points)	25	28	29	30	28	29
Technical Evaluation (Up to 25 Points)	25	25	24	25	23	25
Price Proposal Evaluation (Up to 15 points)	See Below	See Below	See Below	See Below	See Below	See Below
Total Points	75	80	82	85	81	84
RANK - Excluding Price Proposal	**6**	**5**	**3**	**1**	**4**	**2**

CURRENT YEAR 2022 TAX DIGEST AND FIVE YEAR HISTORY OF LEVY						
	2017	**2018**	**2019**	**2020**	**2021**	**2022**
Real and Personal	101,499,605	105,270,684	108,924,386	108,985,429	114,034,656	131,425,316
Motor Vehicles	1,618,250	1,238,330	1,019,580	817,620	638,830	529,290
Mobile Homes	422,560	452,045	468,680	440,080	455,040	527,200
Timber	-	-	-	-	-	-
Heavy duty equipment	-	-	-	2,735	-	-
Gross Digest	**103,540,415**	**106,961,059**	**110,412,646**	**110,245,864**	**115,128,526**	**132,481,806**
Less: M&O Exemptions	(3,827,085)	(4,476,069)	(4,525,535)	(4,706,906)	(5,378,581)	(9,892,050)
Net M&O Digest	**99,713,330**	**102,484,990**	**105,887,111**	**105,538,958**	**109,749,945**	**122,589,756**
Gross M&O Millage	12.584	12.514	12.142	12.280	12.081	15.192
Less: Rollbacks	6.218	6.148	5.994	6.132	5.949	9.594
Net M&O Millage	**6.366**	**6.366**	**6.148**	**6.148**	**6.132**	**5.598**
Net Taxes Levied	**634,775**	**652,419**	**650,994**	**648,854**	**672,987**	**686,257**
Total Value	**97,672,520**	**100,794,615**	**104,398,851**	**104,278,523**	**108,656,075**	**121,533,266**
Total Taxes Levied	**621,783**	**619,685**	**641,844**	**639,436**	**666,279**	**680,343**
Net Taxes $ Increase	**25,449**	**(2,098)**	**22,159**	**(2,408)**	**24,133**	**13,271**
Net Taxes % Increase/(Decrease)	**4.20%**	**-0.33%**	**3.40%**	**-0.37%**	**3.72%**	**1.97%**

CURRENT YEAR 2022 TAX DIGEST AND FIVE YEAR HISTORY OF LEVY						
	2017	**2018**	**2019**	**2020**	**2021**	**2022**
Real and Personal	101,499,605	105,270,684	108,924,386	108,985,429	114,034,656	131,425,316
Motor Vehicles	1,618,250	1,238,330	1,019,580	817,620	638,830	529,290
Mobile Homes	422,560	452,045	468,680	440,080	455,040	527,200
Timber	-	-	-	-	-	-
Heavy duty equipment	-	-	-	2,735	-	-
Gross Digest	**103,540,415**	**106,961,059**	**110,412,646**	**110,245,864**	**115,128,526**	**132,481,806**
Less: M&O Exemptions	(3,827,085)	(4,476,069)	(4,525,535)	(4,706,906)	(5,378,581)	(9,892,050)
Net M&O Digest	**99,713,330**	**102,484,990**	**105,887,111**	**105,538,958**	**109,749,945**	**122,589,756**
Gross M&O Millage	12.584	12.514	12.142	12.280	12.081	15.726
Less: Rollbacks	6.218	6.148	5.994	6.132	5.949	9.594
Net M&O Millage	**6.366**	**6.366**	**6.148**	**6.148**	**6.132**	**6.132**
Net Taxes Levied	**634,775**	**652,419**	**650,994**	**648,854**	**672,987**	**751,720**
Total Value	**97,672,520**	**100,794,615**	**104,398,851**	**104,278,523**	**108,656,075**	**121,533,266**
Total Taxes Levied	**621,783**	**619,685**	**641,844**	**639,436**	**666,279**	**745,242**
Net Taxes $ Increase	**25,449**	**(2,098)**	**22,159**	**(2,408)**	**24,133**	**78,734**
Net Taxes % Increase/(Decrease)	**4.20%**	**-0.33%**	**3.40%**	**-0.37%**	**3.72%**	**11.70%**

DANA WILLIAMS
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

LAWRENCE WARD

BROOKS BARBAREE

JAMES LAVIN

BETHANY SKIPPER-GREER

To be on the agenda –

Finance & Audit Report
Blessing of the Fleet Presentation
Hurricane Workshop
TSPLOST IGA
SCI MOU
Film Production Permit
Thunderbolt & County IGA for Roadwork
Disaster Hauler Contract Award
Millage Rate Options
Department Reports

July Town Council Meeting 2022 – Monthly Administrator Report

Town Hall –

Roof – AC on Police side is out – part has been ordered and is set to be completed early August.

Around Town –

Re-paving - Working to use our 2020 Local Maintenance Improvement Grant (LMIG) to repave Rowland as the road is in need and the infrastructure is sound – This grant must be used and accounted for this fiscal year to be eligible to receive 2023 LMIG funding – Bid has been modified as we are working with the County Asst. Manager and Engineering to use economies of scale to be added on their paving cycle – IGA is now moving to be priced and scheduled

Road work – Working with DPW Director Crosby and retired City Manger (Garden City) Ron Feldner on a comprehensive Shell Road infrastructure replacement as well as phase two repaving to hopefully consolidate 2021, 2022, 2023, and 2024 LMIG funding

Grants –

- Assistance to Fire Fighter Grant Portal opens on Nov. 8th, the intent is to apply for at minimum all new personal protective equipment to replace expired or near expiration date of PPE – this has been submitted and awaiting results – expected 2nd quarter of 2022

-In process of reviewing Ga Safe Sidewalks and DOT funding grants to move on 2022 goal of increasing our ADA compliance throughout the Town – the grant period has yet to open

- We have submitted a grant to Chatham County to offset the costs to the Town of Thunderbolt for operation of the Thunderbolt Neighborhood Senior Citizen Center – Submitted for $47,000 – we made the first cut and myself and Senior Center Inc. President Patti Lyons made the pitch in front of 25 chosen County representatives for said funding – The County Manager has approved a budget with this being funded, it will go before the County Commission to be finally approved – legal is involved to adapt a MOU (Memorandum of Understanding) to augment our current contract with SCI – The MOU is with you all to move on contract modification

Process Improvement –

-Tax Commissioner meeting and will bring before Council a potential IGA for the TC to perform Thunderbolt's tax collection – increased collections – free up in house staff – more coordination with software – immediate liens and tax sales

- Exploring a Shell Rd District to allow for more commercial while recognizing water conservation as a must

-Exploring a Human Resource Consultant for liability protection and to ensure our polices are legal, up to date and provide as much protection as possible to the Town and staff

Town Departments –

Finance –

-Please see attached reports for March plus Ms. Brett assessment
-Audit Update

Code Enforcement –

- In addition to normal enforcement actions beginning to look at condemning or moving towards that on certain structures within Town Limits – legal is involved to ensure the next step in subpoena process and accountability
-

Police –

- See attached report – excellent work in most likely catching a stolen vehicle thief

Fire -

- See attached report – congrats and gratitude on the roof work – Fire Station roof – sealing of structure and mold remediation next

DPW-

- See attached report – excellent job so far in Tompson Park – SCI has began a transformation as well – Designs for Honey Park are forthcoming

Newer Town Topics

- Pump Station Security – Bids received – DPW Director has selected has been installed
- GMA Alcohol by the Glass Audit being evaluated and scheduled – currently being conducted in house – completed and receiving back payments for missed or omitted months or documenting closure due to COVID
- Service Delivery Strategy – Fire Protection Subscription – meeting was held with the residents of Jasime & Taylor and CES and COS FD so the residents may have input on their next Fire provider – County is next to move on the process
- LOST (Local Option Sales Tax) Negotiations Training and Preparation – Including State Expert – Retired COS Manager Michael Brown – this is a 10 year set percentage – slow start as expectations and ground rules come to terms
- Thunderbolt Tidy Program set to start– All departments involved to include sanitation for bulk items – this is receiving excellent feedback and next date is July 12th
- Moving on renewing contracts for primary disaster recovery and secondary disaster recovery as well as a disaster recovery monitor and public assistance – RFP's have been listed on our website, Ga Procurement Website, and GMA website – set to vote in selection of primary and secondary hauler this month
- Bannon Drive – we have moved after discussion with traffic engineering and resident feedback to a survey methodology for the residents on Bannon
- Working with a vendor to possibly reduce our Telecom billing etc… - no cost to the Town unless money is saved
- Woring with a vendor on Utility Billing for Power to save money – no cost if money is not saved
- Continuing SOLAR discussion with four vendors
- Continuing Fiber discussion with vendors
- Working with COR – composting for a trail program

INTER OFFICE CORRESPONDENCE

TO: Town Administrator, Robert Milie

FROM: Chief Sean Clayton

DATE: July 1, 2022

SUBJECT: Monthly Report for June 2022

POLICE DEPARTMENT:

During the month of June our officers took a proactive response in Field Interviewing pedestrians who were out walking past midnight to curb some of the criminal activity that we've been having. One particular night contact was made on an individual and while the officer was attempting to detain the suspect, the suspect assaulted the officer and fled on foot. He was soon captured and arrested and during a check of weapons was being conducted, methamphetamine was found on the suspects person. The officer involved was not injured.

Officer Steeley was recognized by a Thunderbolt resident for the way he handled a person who was in crises, and they bragged about how professional he was and the training that he had with handling these types of situations.

Sergeant Runyon and I are looking at getting "Lock it or Lose it" campaign signs to put in certain parts of the Town in hopes of reminding citizens to lock their vehicles and remove their valuables before leaving their vehicles. Lastly, the vehicle that was stolen in June was recovered in Chatham County's area. Evidence collected is being processed he hopes of prosecuting the person(s) involved in this crime.

DEPARTMENT MONTHLY ACTIVITY REPORT

INCIDENT REPORTS	30
ACCIDENT REPORTS	11
MISC. REPORTS	8
DOMESTIC VIOLENCE CASES	1
D.U.I. ARRESTS	2
PERSONS ARRESTED	7
TRAFFIC CITATIONS	69
WRITTEN WARNINGS	32
ANIMAL COMPLAINTS	0

2021/2022 Monthly Comparison																										
	Jan		Feb		Mar		Apr		May		Jun		Jul		Aug		Sep		Oct		Nov		Dec		Yearly	
Classification of Offenses	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	2021	2022
Homicide	0	**0**	0	0	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**
Sexual Assault	0	**0**	0	**0**	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	1	**0**	1	0
Robbery	0	**1**	0	**1**	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	2
Agg Assault	1	**0**	1	**0**	0	**1**	0	0	1	**0**	1	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	1	**0**	5	1
Simple Assault	2	**0**	0	2	2	**0**	1	1	2	2	1	**2**	4	**0**	0	**0**	1	**0**	1	**0**	3	0	2	**0**	19	7
Burglary	0	**1**	0	**0**	0	**0**	1	0	0	2	0	**0**	0	**0**	0	**0**	0	**0**	1	0	1	0	1	**0**	4	3
Larceny-Theft	2	**1**	5	**1**	11	**2**	0	9	3	9	2	**4**	1	**0**	3	**0**	3	**0**	1	0	2	1	3	**0**	36	26
Auto Theft	0	**0**	0	0	0	**0**	0	0	1	1	1	**1**	0	**0**	1	**0**	1	**0**	0	0	0	0	0	**0**	4	2
	5	3	6	**4**	**13**	**3**	2	10	7	14	5	7	5	0	4	**0**	**5**	**0**	**3**	0	6	0	8	0	69	41

MUNICIPAL COURT

The fees and fines the Court collected for the month of June were $16,178.00



MAYOR AND COUNCIL REPORT

June Report

Mission Statement

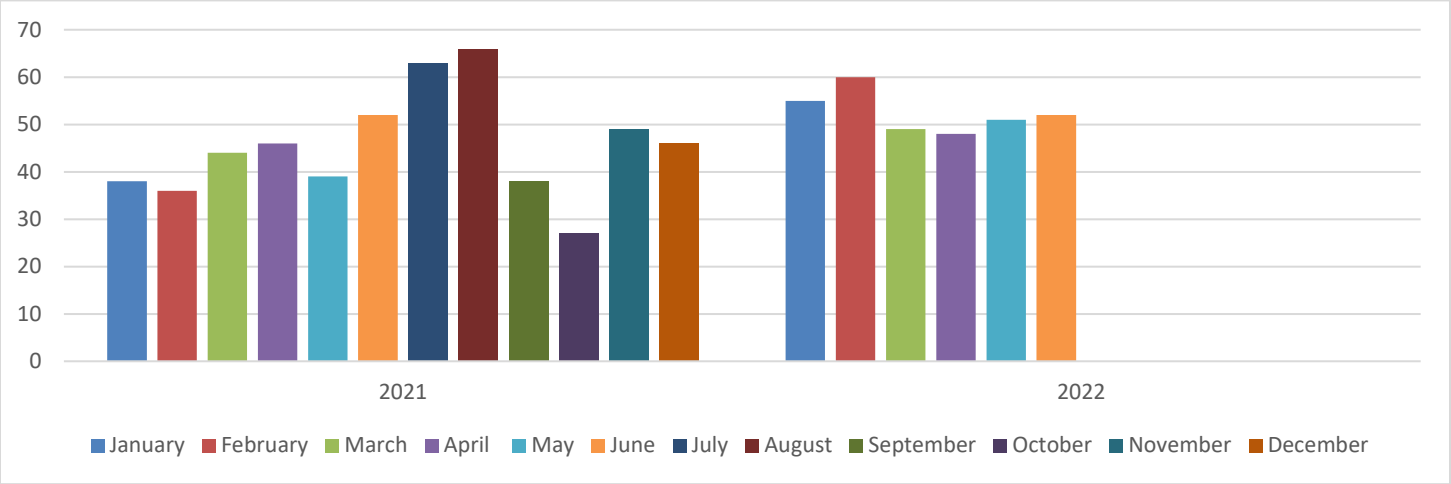
"The mission of the Thunderbolt Fire Department is to minimize loss of life, property and environment in the Town of Thunderbolt from both natural and man-made disasters, life threatening situations and to assist other emergency agencies. We will achieve this mission through professional/progressive training and fire education while providing first class services to our community."

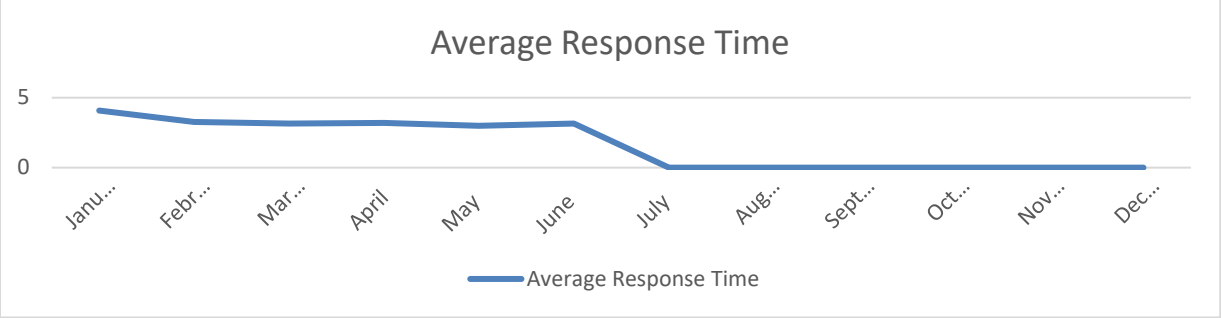
Prepared by:
Andrew Bateman
Chief of Thunderbolt Fire Department

Thunderbolt Fire Incident Breakdown

	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEPT	OCT	NOV	DEC	YTD
Fire Response	16	17	23	15	22	18							111
EMS Response	39	43	26	33	29	34							204
Grand Total	55	60	49	48	51	52	0	0	0	0	0	0	315

Call Comparison Between 2021 & 2022





Department News

Highlighted Incidents:

- Response to a Shrimp Boat Fire (Savannah Fire assisted with Engine Company and Fire Boat)
- Response to several Dumpster Fires (PD was notified of incidents. Fire cause is still undetermined by the Fire Chief)
- Assisted with Several Road Closures to include damaged trees being removed by Harrington Tree Service.

Highlighted Projects:

- Continue to work on Chief Office and Emergency Operation Center/Classroom at the Fire Station.

Chief Report:

- Department has an open full-time position due to Firefighter moving on to another department. Process has begun to advertise for Job Opening.
- Schedule has changed due to shortage (Chief currently working 24-hour shifts)
- Processing several Part Time and Volunteer Applications.
- Continually monitoring the 2022 Budget and Preplanning for 2023.

Thunderbolt Fire Department
Training

Online Training: **10 Hours**
Consisted of a variety of topics to include a few of the following-

A. **First Responder Operations Level Refresher**
B. **Forcible Entry**
C. **Water Supply**

Company Training: **25.83 Hours**
Topics to highlight include the following:

A. **Rescue and Extrication**
B. **Ventilation**
C. **Forcible Entry**
D. **Drivers Training**

Outside Training: **0 Hour**

YTD 2022 Hours: 426.41 Hours

MONTHLY STATUS REPORT

FOR

PUBLIC WORKS

FOR THE

TOWN OF THUNDERBOLT

JUNE 2022

Water Treatment Reports

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 3

Collected by Oscar Crosby

Sampling Location: ***Fire Department***
Sample Type: ***Routine***
Lab Sample No.: **115448**

Sample Collected:6/9/2022 10:30
Lab Received: 6/9/2022 11:32
Chlorine Residual: **1.40**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	6/9/2022 11:36	6/10/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 6/10/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 2

Collected by Oscar Crosby

Sampling Location: ***Thompson Park***
Sample Collected:6/9/2022 10:45

Sample Type: ***Routine***
Lab Received: 6/9/2022 11:32

Lab Sample No.: **115447**
Chlorine Residual: **0.90**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	6/9/2022 11:36	6/10/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 6/10/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 1

Collected by Oscar Crosby

Sampling Location: ***Downing St. LS***
Sample Type: ***Routine***
Lab Sample No.: **115446**

Sample Collected:6/9/2022 11:05
Lab Received: 6/9/2022 11:32
Chlorine Residual: **1.60**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	6/9/2022 11:36	6/10/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 6/10/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

Water Distribution Reports

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

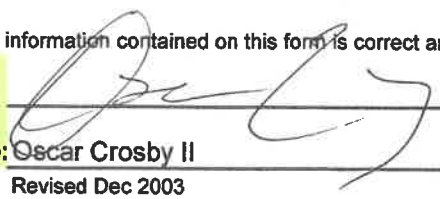
System Name: Thunderbolt Water System
WSID #: GA- 510006
Plant Name: Well #4
Plant ID# :
County: Chatham
Permit # : 510006
Summary of (MONTH) JUNE
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	225,802	225,802		1.70		8.4	
2	143,891	143,891		1.64		8.4	
3	293,761	293,761		1.37		8.4	
4	133,200	133,200		1.63		8.4	
5	115,745	115,745		0.95		8.4	
6	115,035	115,035		1.19		8.4	
7	123,517	123,517		1.36		8.3	
8	141,318	141,318		1.40		8.3	
9	246,196	246,196		1.29		8.3	
10	134,580	134,580		1.47		8.3	
11	69,452	69,452		1.80		8.3	
12	233,871	233,871		1.28		8.3	
13	218,975	218,975		0.97		8.3	
14	231,865	231,865		1.39		8.3	
15	209,860	209,860		1.17		8.4	
16	146,842	146,842		0.95		8.3	
17	108,730	108,730		1.00		8.4	
18	113,260	113,260		1.15		8.3	
19	190,400	190,400		0.83		8.4	
20	52,015	52,015		1.21		8.4	
21	113,020	113,020		0.86		8.4	
22	183,111	183,111		0.91		8.4	
23	126,256	126,256		0.99		8.4	
24	171,801	171,801		0.77		8.4	
25	197,341	197,341		0.86		8.4	
26	171,275	171,275		0.75		8.4	
27	153,742	153,742		1.41		8.4	
28	143,721	143,721		0.78		8.4	
29	93,334	93,334		0.63		8.4	
30	78,285	78,285		0.83		8.4	
31							
Total	4,680,201	4,680,201	0	34.54	0	251.00	
Days	30	30	0	30	0	30	
Avg.	156,007	156,007	0.00	1.15	0.00	8.37	
Max.	293,761	293,761	0	1.8	0	8.4	
Min.	52,015	52,015	0	0.63	0	8.3	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature: 
Title: Public Works Manager

Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

System Name: Thunderbolt Water System
WSID #: GA- 510006
Plant Name: Well # 3
Plant ID# :
County: Chatham
Permit # : 510006
Summary of (MONTH) JUNE
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	0	0		0.00	0.0	0.0	No water withdrawn from the ground.
2	0	0					
3	0	0					
4	0	0					
5	0	0					
6	0	0					
7	0	0					
8	0	0					
9	0	0					
10	0	0					
11	0	0					
12	0	0					
13	0	0					
14	0	0					
15	0	0					
16	0	0					
17	0	0					
18	0	0					
19	0	0					
20	0	0					
21	0	0					
22	0	0					
23	0	0					
24	0	0					
25	0	0					
26	0	0					
27	0	0					
28	0	0					
29	0	0					
30	0	0					
31							
Total	0	0	0	0.00	0	0.00	
Days	30	30	0	1	1	1	
Avg.	0	0	0.00	0.00	0.00	0.00	
Max.	0	0	0	0	0	0	
Min.	0	0	0	0	0	0	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature:
Title: Public Works Manager
Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

EPD 1.6 Revised Dec 2003

Thunderbolt Meter

Public Works _____ 1,500 gals.

Fire Department _____ 8,200 gals.

Senior Citizens _____ 7,160 gals.

Town Hall _____ 32,700 gals.

Thompson Park _____ 69,290 gals.

Honey Park _____ 500 gals.

Nellie Johnson Park _____ 270 gals.

Cesoroni Ball Field _____ 20 gals.

Downing St. Lift Station
Gross Pumped _____ Pending

Savannah Water Usage _____ 4,297,399 gals.

Line Flushing _____ 12,000 gals.

Chlorides: Well #3 10 ppm Well #4 80 ppm

Sanitation Report



Comprehensive Work Order Report

Description	January	February	March	April	May	June	July	August	September	October	November	December	YTD
Water													
Cut-on	45	38	46	38	26	36							229
Cut-off	42	36	41	41	21	34							215
Red-tagged residences	0	0	0	0	0	0							0
Complaints- quality	1	1	0	0	1	1							4
Complaints- LWP	0	0	0	0	1	0							1
Meters read	1104	1096	1099	1098	1103	1095							6595
Meters re-read	10	3	8	5	7	9							42
Meters/Boxes replaced	0	0	0	6	0	0							6
New meters installed	0	0	0	0	1	0							1
Data Logs	2	8	4	14	4	10							42
Lines repaired/leaks	4	0	4	0	3	4							15
Hydrant flushed	2	0	0	0	2	4							8
Wastewater													
Complaints	0	0	0	0	0	0							0
Repairs- managed	0	0	0	0	1	0							1
Repairs- enacted	0	0	0	0	1	0							1
Spills	0	0	0	0	0	0							0
Back-ups	0	0	0	0	0	0							0
LS call-outs	0	0	0	0	4	0							4
Sanitation													
Garbage Tons collected	117.65	100.9	91.42	121.43	142.02								573.42
RECY Tons collected	13.81	20.18	24.18	15.61	16.3								90.08
Dry Trash Emptied	0	0	0	0	0								0
Complaints	0	0	0	0	0								0
Cans replaced/repaired	0	0	0	0	0								0
General Maintenance													
Facilities/Parks repairs	15	19	23	12	13	19							101
Road repairs	4	3	3	6	0	0							16
Signs repaired/installed	5	8	4	3	2	3							25
Stormwater													
Tide Gates/Outfalls	0	0	0	0	0	0							0
Canals/Ditches	2	6	7	16	4	4							39
Structures	0	1	0	0	0	0							1
Repairs	0	2	0	0	0	0							2
Maintenance	6	0	0	0	0	0							6
Inspections	18	15	42	0	0	0							75

AN ORDINANCE TO AMEND THE ZONING ORDINANCES PERTAINING TO THE PLANNING AND ZONING COMMISSION MEETINGS WITHIN THE TOWN OF THUNDERBOLT, GEORGIA

IT IS HEREBY ordained by the governing authority of the Town of Thunderbolt in an open meeting that Article XVII of the zoning ordinance of the Town of Thunderbolt is hereby amended by deleting the second paragraph of paragraph numbered 3 and, in lieu thereof, is replaced by the following:.

Regular meetings shall be held as needed on the first, third or fourth Wednesdays of each month as needed as well as at the call of the Chairman at such other times as the commission may determine it is necessary to meet. Four members of the commission shall constitute a quorum.

This ordinance shall become effective on the _____ day of _____ 2022.

Adopted this the _____day of _____ 2022.

_____

Dana Williams, Mayor – Town of Thunderbolt

What has happened with the Citizens' Conservation Committee and ad hoc Committee for Water and Sewer activities over the past 6 weeks.

- Since the Blessing of the Fleet Event, the membership of the CCC has expanded to a total of 16 members. At this point there is but one member of the Town Council with committee membership. The CCC had its own float in the parade and received a good bit of attention!

- On June 6th there was a Zoom meeting of the CCC with 5 attendees. These individuals have expressed individual interests in expanding the development of shallow wells, graywater systems and municipal electrification/renewable energy, expanding the options for recycling and composting as well as expanding options for water conservation through, Town and individual infrastructure, Town policy and continuing emphasis on proper pricing of this limited resource.

- As the issues being discussed among member of the CCC are consistent with the interests of the ad hoc Committee for Water and Sewer, members of the CCC were encouraged to bring their concerns regarding these issues to the newly established Town Hall Discussion period from 6-6:30 on the 2nd Wednesday of each month prior to the Town Council Meeting.

- Members of the Council were invited to participate in a webinar on May 28th regarding the future and economics of municipal electrification. A member of the ad hoc Committee did participate and shared notes (attached) from that meeting with the other members of Town Council and the Town Administrator in anticipation of discussions regarding vehicle replacement and renewable energy as a viable option for the Town of Thunderbolt.

- Information regarding the development of “Sustainable Thunderbolt”, in line with other small municipalities, was shared with the members of Council earlier this month. The website for “Sustainable Brookhaven” was shared with members of Council for their consideration. https://www.brookhavenga.gov/sustainablebrookhaven

Composting in Thunderbolt - Part 1

On June 22nd, there was a meeting established by the Town Administrator with COR, the organization that helped start the small but successful composting option in Thunderbolt at their cost and with the support of the Wesley Oak Church who offered the site for the green drop off bin and the administrative support of the Town of Thunderbolt. Thousands of pounds of Thunderbolt waste and many cubic feet of volume that would have been part of the weekly home pickup by Atlantic Waste otherwise destined for the landfill and inevitable creation of methane gas has been transitioned to functional compost by COR.

Composting in Thunderbolt – Part 2

This meeting created the opportunity to discuss the expansion of this program with the financial support of the Town of Thunderbolt through the conservation line of the Water & Sewer budget. Based on national averages, much of this volume would have otherwise become sewage volume and as confirmed by our Public Works Administrator, put additional destructive stress on that extremely costly system, reducing costs to the Town through reduced decreased payments to the City of Savannah and helping to lengthen the life of our current infrastructure.

Composting in Thunderbolt – Part

A two phased proposal is being currently developed to -

1- Expand the number of consolidated weekly pickup locations to 3 or 4 in convenient locations throughout the Town and

2- Initiate a trial of home pickups utilizing approximately 50 homes with pickups to coincide with landfill pickups days.

Data collection from both of these initiatives will be collected by COR over a 3-4 month period and shared with the Town Administrator and the Town Council to determine the most beneficial path to follow going forward.